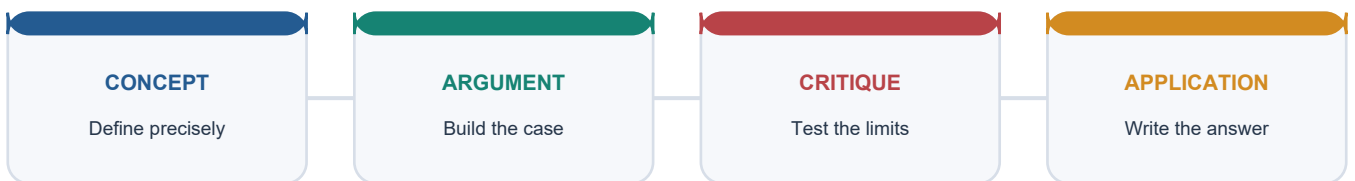


COMPLETE LEARNING SESSION

Parliament - Complete Repaired Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 17 - Parliament - Complete Topic Package

Subject: Indian Polity | **Topic:** 17 | **GS-II + Prelims** | **Controlled to:** 7 September 2026 **Source order:** canonical Parliament Markdown owners -> OCR-searchable local polity PDFs -> Constitution, statutes, House rules, judgments and official institutional sources -> Qdrant not required. **Learning contract:** Foundation/Core is independently answer-complete. Optional Advanced is separately labelled. Consolidated register notes remain the final H2 section.

Roadmap

Sequence	Outcome
Sessions 1-6	identity, origin, Houses, representation, membership, time and participation
Sessions 7-12	accountability devices, officers, privilege and the complete legislative procedure
Sessions 13-18	financial control, committees, House powers, sovereignty and anti-defection
Sessions 19-22	diplomacy, reform, ordinance/delegation and Articles 79-122 synthesis
Practice	exactly 32 original MCQs, all routed PYQs and six original Mains answers
Optional Advanced	deeper doctrine only after the complete Core
Register notes	final compressed recall plus the 12-panel ASCII master

BASIC LEARNING SESSION

SESSION 1 - ARTICLE 79 ARCHITECTURE: WHAT PARLIAMENT CONSTITUTIONALLY IS

VISUAL FIRST

ANCIENT SABHA / SAMITI -> colonial legislative councils -> Constituent Assembly choice
|
v
ARTICLE 79: PRESIDENT + RAJYA SABHA + LOK SABHA
|
popular chamber + federal/revising chamber

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Parliament joins the President with two Houses in one constitutional legislature.

Technical definition: Article 79 constitutes Parliament as the President, Council of States and House of the People.

ORIGIN AND CONSTITUTIONAL TIMELINE

Stage	Parliament-specific significance
Ancient assemblies	Sabha and samiti supply historical vocabulary, not a direct constitutional lineage.
1861-1935	Colonial council reforms gradually introduced representation, questions, budgets and bicameral experience without responsible sovereignty.
1946-49	The Constituent Assembly chose parliamentary responsibility, bicameralism and constitutional supremacy.
26 January 1950	Articles 79-122 commenced as the Union Parliament chapter.
First Amendment, 1951	Article 85(1) was recast around the maximum six-month inter-session interval instead of a rigid twice-a-year formula.
1952	The first Lok Sabha and the Council of States began functioning under the Constitution.

[LIMIT] Historical assemblies and Westminster practice illuminate the design, but Parliament's legal powers come from the Constitution, not from an unbroken customary inheritance.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

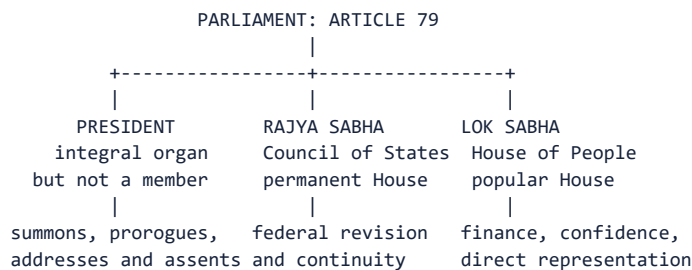
Article 79 begins the answer by defining Parliament as a tripartite constitutional institution.

MUST-WRITE KEYWORDS

- **Article 79**
- **President**
- **Rajya Sabha**
- **Lok Sabha**
- **bicameral Parliament**

How to use them: Frame the answer through Article 79; define President, connect Rajya Sabha with Lok Sabha to explain the mechanism, and use bicameral Parliament for the decisive comparison or qualification.

Visual 1 - Tripartite architecture



- [FACT] Article 79 creates Parliament as the **President + Council of States + House of the People**.
- [FACT] The President is not a member of either House but is indispensable to summoning, prorogation, address and assent.
- [ANALYSIS] Bicameralism divides democratic authority: Lok Sabha supplies direct popular legitimacy; Rajya Sabha supplies continuity, revision and a State-based federal voice.
- [LIMIT] India borrowed responsible parliamentary government, not British parliamentary sovereignty. A written Constitution, federal distribution, Fundamental Rights, judicial review and the basic-structure doctrine bind Parliament.

Core thesis: Indian Parliament is politically central but legally constituted and limited.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Article 79 makes Parliament a tripartite constitutional legislature rather than a two-House sovereign body.
- **Named evidence:** Article 79, read with Articles 85, 111 and 123, places the President inside the legislative architecture while keeping the office outside House membership.
- **Analysis:** The design joins popular representation, federal revision and constitutional assent in one law-making chain; neither House alone embodies Parliament.
- **Qualification:** The British inheritance explains cabinet responsibility, but a written Constitution, federal competence, rights, judicial review and basic structure deny Westminster-style unlimited sovereignty.
- **Prelims trap:** Do not say that Parliament consists only of Lok Sabha and Rajya Sabha or that the President is an MP.
- **Mains use:** Open broad answers by defining the institution before evaluating its power.
- **Mini recap:** Tripartite in composition, bicameral in deliberation, constitutionally limited in authority.

Paragraph model: Article 79 makes Parliament a tripartite constitutional legislature rather than a two-House sovereign body. Article 79, read with Articles 85, 111 and 123, places the President inside the legislative architecture while keeping the office outside House membership. The design joins popular representation, federal revision and constitutional assent in one law-making chain; neither House alone embodies Parliament. The British inheritance

explains cabinet responsibility, but a written Constitution, federal competence, rights, judicial review and basic structure deny Westminster-style unlimited sovereignty.

CLOSING RECALL FLOW - ARTICLE 79 ARCHITECTURE: WHAT PARLIAMENT CONSTITUTIONALLY IS

START / CONCEPT: Article 79 architecture: what Parliament constitutionally is

|

v

EXACT TERMS: Article 79 • President • Rajya Sabha • Lok Sabha • bicameral Parliament

|

v

MECHANISM / ARGUMENT: Presidential assent and two-House deliberation complete the Union legislative process.

|

v

CONSEQUENCE / CONTRAST: This design combines popular authority, federal revision and constitutional form.

|

v

UPSC TRAP / ANSWER-USE: The President is part of Parliament but is not a member of either House.

|

v

ANSWER-GRABBING FORMULATION: Article 79 begins the answer by defining Parliament as a tripartite constitutional institution.

SESSION 2 - COMPOSITION, ELECTION, TERM AND SEAT CEILINGS

VISUAL FIRST

RAJYA SABHA: elected MLAs --PR-STV/open ballot--> State representatives + 12 nominees

LOK SABHA: adult citizens --FPTP--> 543 elected members

DIFFERENT ELECTORATES -> DIFFERENT MANDATES -> ASYMMETRICAL POWERS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The two Houses use different election methods, terms and membership structures.

Technical definition: Articles 80, 81 and 83 regulate House composition, representation, continuity and duration.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Composition explains why the two Houses carry different democratic mandates and powers.

MUST-WRITE KEYWORDS

- House composition
- Rajya Sabha election
- Lok Sabha election
- seat ceilings
- House terms

How to use them: Frame the answer through House composition; define Rajya Sabha election, connect Lok Sabha election with seat ceilings to explain the mechanism, and use House terms for the decisive comparison or qualification.

Visual 2 - Two-House comparison matrix

Dimension	Rajya Sabha	Lok Sabha
Constitutional ceiling	[FACT] 250 : up to 238 elected + 12 nominated	[FACT] 550 : up to 530 States + 20 UTs
Stable sanctioned/elected figure	[FACT] 245 sanctioned ; working strength varies with vacancies	[FACT] 543 elected seats ; working strength varies with vacancies
Election	Indirect; elected State/eligible UT representatives through proportional representation by single transferable vote	Direct; territorial constituencies through first-past-the-post and universal adult suffrage

Dimension	Rajya Sabha	Lok Sabha
Nominated members	12 nominated by President for special knowledge/practical experience in literature, science, art and social service	None; Anglo-Indian nomination ceased after the 104th Amendment
Nature	Permanent; never dissolved	Normally five years; may be dissolved earlier
Individual term	Six years; roughly one-third retire every second year	House-wide term; members face dissolution together
Minimum age	30 years	25 years

Visual 3 - Election routes

RAJYA SABHA

State elected MLAs -> proportional representation -> STV -> elected RS member

|
+> open ballot under the RPA change of 2003

LOK SABHA

Eligible voters -> territorial constituency -> FPTP plurality -> elected MP

- [FACT] The 2003 removal of the Rajya Sabha candidate's State-domicile requirement and introduction of the open ballot came through amendment of the **Representation of the People Act, 1951**, not a constitutional amendment; *Kuldip Nayar v. Union of India* (2006) upheld it.
- [FACT] Lok Sabha's normal term under Article 83 is five years from its first meeting. During a national emergency Parliament may extend it by law for one year at a time, but not beyond six months after the emergency ends.
- [FACT] Rajya Sabha continuity means the whole Union legislature never disappears.
- [LIMIT] "Working strength" varies with vacancies. The stable exam facts are the ceilings, 245

sanctioned Rajya Sabha strength and 543 elected Lok Sabha seats.

Visual 4 - Continuity clock

Rajya Sabha: [1/3 retires]----2 years----[1/3 retires]----2 years----[1/3]

Member term: <----- 6 years ----->

Lok Sabha: first meeting ----- normally 5 years ----- dissolution
whole House is renewed; Speaker continues to new House's first sitting

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Different composition rules give the Houses complementary democratic mandates.
- **Named evidence:** Articles 80 and 81 create indirect State representation in Rajya Sabha and direct territorial representation in Lok Sabha; *Kuldip Nayar* (2006) upheld the 2003 open-ballot and domicile changes.
- **Analysis:** Lok Sabha translates citizen choice into government and supply, whereas Rajya Sabha supplies continuity, revision and a federal forum.
- **Qualification:** Rajya Sabha is not an equal-State chamber: Fourth Schedule allocation is population-weighted, and its working strength changes with vacancies.
- **Prelims trap:** Do not transfer FPTP to Rajya Sabha or equal representation to the States.
- **Mains use:** Use composition to explain why confidence and finance favour Lok Sabha while constitutional amendment is bicamerally equal.
- **Mini recap:** Direct popular mandate below; continuing federal-revising mandate above.

Paragraph model: Different composition rules give the Houses complementary democratic mandates. Articles 80 and 81 create indirect State representation in Rajya Sabha and direct territorial representation in Lok Sabha; *Kuldip Nayar* (2006) upheld the 2003 open-ballot and domicile changes. Lok Sabha translates citizen choice into government and supply, whereas Rajya Sabha supplies continuity, revision and a federal forum. Rajya Sabha is not an equal-State chamber: Fourth Schedule allocation is population-weighted, and its working strength changes with vacancies.

CLOSING RECALL FLOW - COMPOSITION, ELECTION, TERM AND SEAT CEILINGS

START / CONCEPT: Composition, election, term and seat ceilings

|

v

EXACT TERMS: House composition · Rajya Sabha election · Lok Sabha election · seat ceilings · House terms

|

v

MECHANISM / ARGUMENT: Direct election renews Lok Sabha while staggered retirement preserves Rajya Sabha continuity.

|

v

CONSEQUENCE / CONTRAST: Different mandates explain later differences in finance, confidence and federal revision.

|

v

UPSC TRAP / ANSWER-USE: Distinguish constitutional ceilings, sanctioned seats and vacancy-sensitive working strength.

|

v

ANSWER-GRABBING FORMULATION: Composition explains why the two Houses carry different democratic mandates and powers.

SESSION 3 - REPRESENTATION, DELIMITATION AND THE SEAT-FREEZE BARGAIN

VISUAL FIRST

1971 BASIS --42nd (1976) freeze--> 2000 --84th (2001)--> first census after 2026
| publication of relevant figures

v

PARLIAMENTARY LAW + DELIMITATION

87th (2003): 2001 data for boundary readjustment without changing State totals

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Delimitation balances population equality against fairness to low-growth States.

Technical definition: Articles 81 and 82 operate with the 42nd, 84th and 87th Amendments to control readjustment.

AMENDMENT CLAUSE CONTROL

Amendment	Exact Parliament-linked text changed	Legal effect
31st (1973), s.2	Article 81(1)(a)-(b) and proviso to Article 81(2)(a)	Raised the then State-seat ceiling to 525, fixed UT ceiling at 20 and protected small States from strict ratio application.
42nd (1976), ss.24-25	Proviso to Article 81(3); third proviso to Article 82	Retained the 1971 census reference until publication of the first census after 2000.
84th (2001), ss.3-7	Article 81(3) proviso; Article 82 third proviso; linked Articles 170, 330 and 332	Extended the freeze to publication of the first census after 2026 while permitting 1991-based limited readjustment.
87th (2003), ss.2-5	Article 81(3) proviso cl.(ii); Article 82 third proviso cl.(ii); Article 170(2)/(3) Explanations; Article 330 Explanation	Replaced the permitted 1991 census basis with 2001; it did not amend Article 332.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Delimitation turns population equality into a federal bargain over representation.

MUST-WRITE KEYWORDS

- delimitation
- seat freeze
- Article 82

- **population representation**
- **federal fairness**

How to use them: Frame the answer through delimitation; define seat freeze, connect Article 82 with population representation to explain the mechanism, and use federal fairness for the decisive comparison or qualification.

Visual 5 - Constitutional timeline

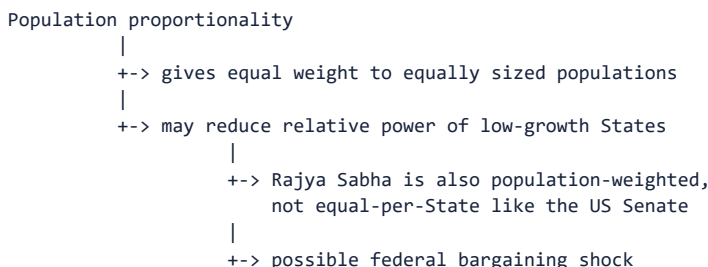
1952	1962	1972	1976	2001	2003	after 2026
Delimitation Commission published Acts	Delimitation Commission Acts	Delimitation Commission Acts	42nd Amdt freezes allocation	84th Amdt extends freeze	87th Amdt boundaries on 2001 data	first census figures -> readjustment gate

2002 Delimitation Commission: fourth all-India commission

Jammu and Kashmir after 2019: distinct statutory exercise, not a fifth all-India cycle

- [FACT] Article 81(2)(a) seeks, so far as practicable, a similar population-to-seat ratio among States; Article 170 carries the parallel Assembly principle.
- [FACT] The **42nd Amendment (1976)** froze inter-State seat allocation on the 1971 Census basis; the **84th Amendment (2001)** extended readjustment until the relevant figures of the first census taken after 2026 are published; the **87th Amendment (2003)** permitted constituency-boundary readjustment on 2001 data without altering State seat totals.
- [ANALYSIS] The freeze rewarded population-control performance by preventing successful States from immediately losing relative political weight.
- [FACT] Article 82 links post-census readjustment to an authority Parliament determines; Delimitation Acts establish commissions. Article 329(a) insulates delimitation law and allotment from judicial challenge.
- [LIMIT] The freeze does not "expire automatically in 2026". Publication of the relevant post-2026 census figures is the textual gate.
- [LIMIT] No post-freeze State-wise seat allocation, new House strength or women's-seat count exists in law.

Visual 6 - The federal dilemma



Balanced answer: democratic equality claim <-> demographic-performance fairness claim

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The delimitation freeze is a constitutional bargain between equal representation and demographic-performance fairness.
- **Named evidence:** Articles 81 and 82, the 42nd, 84th and 87th Amendments, and Article 329(a) separate seat allocation, constituency readjustment and challenge barriers.
- **Analysis:** Population equality favours periodic readjustment, while the freeze prevented States that reduced fertility from immediately losing relative political weight.
- **Qualification:** The year 2026 is not a self-executing trigger; publication of relevant figures of the first census taken after 2026 and a lawful delimitation exercise remain necessary.
- **Prelims trap:** Do not announce a new Lok Sabha strength, State allocation or women's-seat count before law completes the sequence.
- **Mains use:** Frame delimitation as both democratic equality and federal bargaining.
- **Mini recap:** Census publication opens the gate; it does not itself redraw a constituency.

Paragraph model: The delimitation freeze is a constitutional bargain between equal representation and demographic-performance fairness. Articles 81 and 82, the 42nd, 84th and 87th Amendments, and Article 329(a) separate seat allocation, constituency readjustment and challenge barriers. Population equality favours periodic readjustment, while the freeze prevented States that reduced fertility from immediately losing relative political weight. The year 2026 is not a self-executing trigger; publication of relevant figures of the first census taken after 2026 and a lawful delimitation exercise remain necessary.

CLOSING RECALL FLOW - REPRESENTATION, DELIMITATION AND THE SEAT-FREEZE BARGAIN

START / CONCEPT: Representation, delimitation and the seat-freeze bargain
|
v
EXACT TERMS: delimitation · seat freeze · Article 82 · population representation · federal fairness
|
v
MECHANISM / ARGUMENT: Published post-2026 census figures open the readjustment gate; they do not determine its outcome.
|
v
CONSEQUENCE / CONTRAST: The process may improve vote equality while creating a new federal distribution bargain.
|
v
UPSC TRAP / ANSWER-USE: The freeze does not expire automatically in 2026, and projections are not law.
|
v
ANSWER-GRABBING FORMULATION: Delimitation turns population equality into a federal bargain over representation.

SESSION 4 - QUALIFICATIONS, DISQUALIFICATIONS AND VACANCIES

VISUAL FIRST

ARTICLE 84 QUALIFICATION -> election -> ARTICLE 99 OATH -> valid participation
| |
v v
ARTICLE 102 DISQUALIFICATION -> ARTICLE 103 President + ECI opinion
ARTICLE 101 vacancy / resignation / absence; ARTICLE 104 monetary penalty

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Qualifications, disqualifications and vacancies determine whether parliamentary membership begins, continues or ends.

Technical definition: Articles 84, 101, 102 and 103 separate qualification, vacancy and sitting-member disqualification.

ARTICLES 99, 101-104 AND 106 - MEMBERSHIP AFTER ELECTION

- [FACT] Article 99 requires the Third Schedule oath or affirmation before a member takes a seat.
- [FACT] Article 101 regulates double membership, resignation, disqualification-created vacancy and a House-declared vacancy after sixty days' unauthorised absence, subject to its exclusions.
- [FACT] Article 102(2), inserted through the 52nd Amendment (1985), adds Tenth Schedule disqualification to the clause (1) grounds.
- [FACT] Article 103 assigns a sitting member's Article 102(1) question to the President, who must obtain the Election Commission's opinion; it is distinct from a Tenth Schedule decision by the presiding officer and from an election petition.
- [FACT] Article 104 imposes a daily monetary liability fixed in the constitutional text on a person who sits or votes before oath or while knowingly unqualified/disqualified.
- [FACT] Article 106 leaves MPs' salaries and allowances to parliamentary law.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

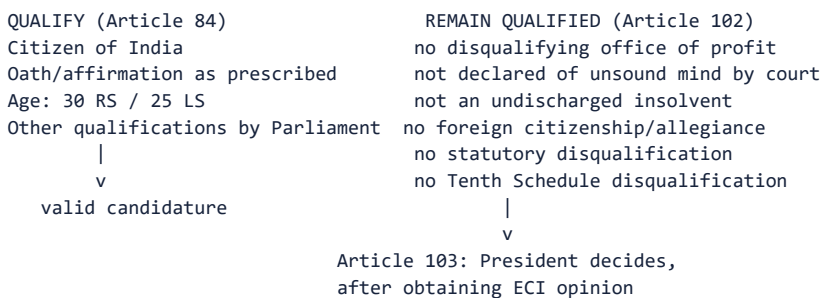
Membership law separates entry qualifications, continuing disqualifications and vacancy decisions.

MUST-WRITE KEYWORDS

- Article 84
- Article 102
- Article 103
- office of profit
- member vacancy

How to use them: Frame the answer through Article 84; define Article 102, connect Article 103 with office of profit to explain the mechanism, and use member vacancy for the decisive comparison or qualification.

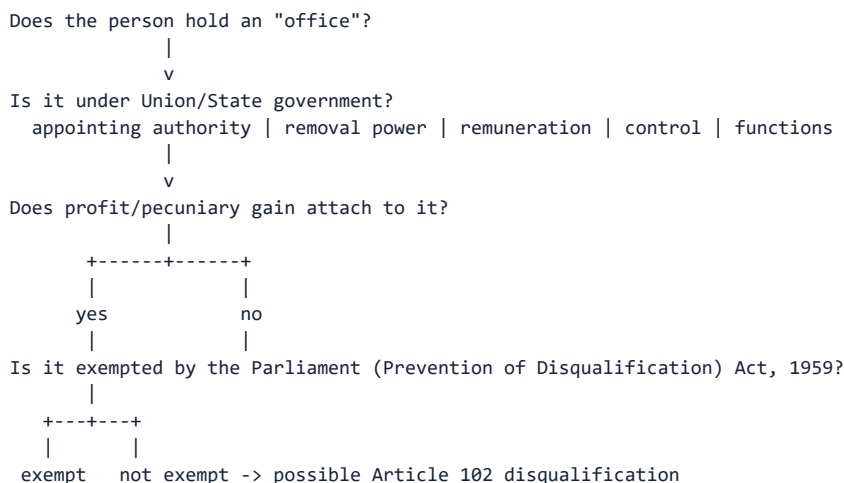
Visual 7 - Membership gate



- [FACT] Article 84 supplies constitutional qualifications; Parliament adds statutory qualifications through election law.
- [FACT] Article 102(1) lists office of profit, court-declared unsoundness of mind, undischarged insolvency, loss/acquisition of citizenship or foreign allegiance and disqualification under parliamentary law. Article 102(2) adds Tenth Schedule defection.
- [FACT] RPA 1951 grounds include specified convictions, corrupt practices, dismissal for corruption/disloyalty, government contracts, office under a government company and failure to lodge election-expense accounts.
- [FACT] *Lily Thomas v. Union of India* (2013) removed the former sitting-member shield in RPA section 8(4); a qualifying conviction can cause immediate disqualification. A stay of the **conviction**, not merely the sentence, is the relevant relief.
- [FACT] For a question whether a sitting member has incurred an Article 102(1) disqualification, Article 103 places the decision with the President, who must obtain the ECI's opinion.
- [LIMIT] Election validity is challenged through an election petition in the High Court; it is not identical to the Article 103 sitting-member reference.

Office of profit

Visual 8 - Office-of-profit test



- [FACT] The office-of-profit rule protects legislative independence from executive patronage.
- [FACT] The **Parliament (Prevention of Disqualification) Act, 1959** exempts specified offices; exemption is statutory and office-specific.
- [ANALYSIS] Courts use substance rather than label: appointment/removal, remuneration, control and governmental character matter.
- [LIMIT] "Office of profit" is not synonymous with every public office or every paid activity.

Vacancy and double membership

- [FACT] Article 101 governs vacation of seats, including simultaneous membership questions and prolonged absence without House permission.
- [FACT] A member may resign in writing to the Speaker/Chairman; the presiding officer may refuse to accept if not satisfied that resignation is voluntary or genuine.
- [FACT] The House may declare a seat vacant after absence for sixty days without permission, excluding periods specified by Article 101.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Parliamentary membership is a continuing legal status, not a one-time electoral certificate.
- **Named evidence:** Articles 84, 99 and 101-104 combine entry qualifications, oath, vacancy, disqualification and adjudication; Lily Thomas (2013) removed the former RPA section 8(4) sitting-member shield.
- **Analysis:** The chain protects representative legitimacy after election by separating candidature, House participation, later disqualification and the correct deciding authority.
- **Qualification:** A stay of sentence alone does not erase a conviction-based disqualification; the conviction itself must be stayed, and defection follows the Tenth Schedule route.
- **Prelims trap:** Do not send every membership dispute to the President or every election dispute to the Speaker.
- **Mains use:** Map the time of the defect to the correct forum: returning officer, High Court election petition, President-ECI or presiding officer.
- **Mini recap:** Election opens the door; oath and continuing qualification keep it open.

Paragraph model: Parliamentary membership is a continuing legal status, not a one-time electoral certificate. Articles 84, 99 and 101-104 combine entry qualifications, oath, vacancy, disqualification and adjudication; Lily Thomas (2013) removed the former RPA section 8(4) sitting-member shield. The chain protects representative legitimacy after election by separating candidature, House participation, later disqualification and the correct deciding authority. A stay of sentence alone does not erase a conviction-based disqualification; the conviction itself must be stayed, and defection follows the Tenth Schedule route.

CLOSING RECALL FLOW - QUALIFICATIONS, DISQUALIFICATIONS AND VACANCIES

START / CONCEPT: Qualifications, disqualifications and vacancies
|
v
EXACT TERMS: Article 84 · Article 102 · Article 103 · office of profit · member vacancy
|
v
MECHANISM / ARGUMENT: The President decides Article 102(1) questions after obtaining the Election Commission opinion.
|
v
CONSEQUENCE / CONTRAST: These routes protect legislative integrity without merging election petitions and vacancy rules.
|
v
UPSC TRAP / ANSWER-USE: A stay of sentence is not the same as a stay of conviction for disqualification.
|
v
ANSWER-GRABBING FORMULATION: Membership law separates entry qualifications, continuing disqualifications and vacancy decisions.

SESSION 5 - LEADER OF OPPOSITION AND OPPOSITION ARCHITECTURE

VISUAL FIRST

OPPOSITION PARTY -> political status
| recognition by Speaker/Chairman
v
LEADER OF OPPOSITION -> statutory office under 1977 Act
| selection committees + debate + accountability

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The recognised opposition leader is a statutory office, not merely the largest rival-party label.

Technical definition: The 1977 Act defines the Leader of Opposition through recognition by the presiding officer.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Opposition analysis must separate the statutory LoP office from recognition conventions.

MUST-WRITE KEYWORDS

- Leader of Opposition
- 1977 Act
- Speaker recognition
- opposition party
- ten percent practice

How to use them: Frame the answer through Leader of Opposition; define 1977 Act, connect Speaker recognition with opposition party to explain the mechanism, and use ten percent practice for the decisive comparison or qualification.

Visual 9 - Opposition distinctions

Institution	Legal/procedural character	Exam caution
Leader of Opposition	[FACT] Statutory office under the Salary and Allowances of Leaders of Opposition in Parliament Act, 1977	The Act does not prescribe a ten-percent threshold; recognition is by the presiding officer
Largest opposition party leader	Political fact	May exist even where no person is formally recognised as LoP

Institution	Legal/procedural character	Exam caution
Opposition party	Party outside government	Do not equate every opposition party with the "official opposition"
Committee chair from Opposition	Convention in specified context, notably PAC	Not a universal rule for all committees

- [FACT] The 1977 Act defines the LoP through recognition by the Speaker/Chairman and does not itself prescribe a numerical threshold. The one-tenth rule belongs to parliamentary recognition practice, not the statutory text. The 16th and 17th Lok Sabhas had no recognised LoP.
- [LIMIT] For the 2018 Prelims historical demand, do not invent or casually assert the identity of the "first Lok Sabha opposition party" unless the precise official source/question wording is before you.
- [ANALYSIS] A recognised LoP matters beyond debate: statutes often place the office on selection committees, making recognition part of institutional checks.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The Leader of Opposition converts electoral dissent into a recognised parliamentary checking office.
- **Named evidence:** The Salary and Allowances of Leaders of Opposition in Parliament Act, 1977 defines the office through recognition by the Speaker or Chairman.
- **Analysis:** Recognition matters beyond speaking time because several appointment statutes use the LoP as an opposition voice in institutional selection.
- **Qualification:** The 1977 Act itself does not write a ten-per-cent threshold; statutory office, recognition practice and leadership of the largest opposition party must be kept separate.
- **Prelims trap:** Do not present the ten-per-cent convention as constitutional text or as a clause of the 1977 Act.
- **Mains use:** Use the distinction when discussing opposition weakness, committee appointments or institutional appointments.
- **Mini recap:** Political opposition is broad; formal LoP status is a recognised statutory office.

Paragraph model: The Leader of Opposition converts electoral dissent into a recognised parliamentary checking office. The Salary and Allowances of Leaders of Opposition in Parliament Act, 1977 defines the office through recognition by the Speaker or Chairman. Recognition matters beyond speaking time because several appointment statutes use the LoP as an opposition voice in institutional selection. The 1977 Act itself does not write a ten-per-cent threshold; statutory office, recognition practice and leadership of the largest opposition party must be kept separate.

CLOSING RECALL FLOW - LEADER OF OPPOSITION AND OPPOSITION ARCHITECTURE

START / CONCEPT: Leader of Opposition and opposition architecture

|

v

EXACT TERMS: Leader of Opposition • 1977 Act • Speaker recognition • opposition party • ten percent practice

|

v

MECHANISM / ARGUMENT: Recognition connects parliamentary opposition with statutory selection and accountability roles.

|

v

CONSEQUENCE / CONTRAST: A recognised office strengthens institutional checks beyond ordinary floor criticism.

|

v

UPSC TRAP / ANSWER-USE: The 1977 Act itself prescribes no ten-percent threshold; do not confuse practice with text.

|

v

ANSWER-GRABBING FORMULATION: Opposition analysis must separate the statutory LoP office from recognition conventions.

SESSION 6 - SESSIONS, SITTINGS, ADJOURNMENT, PROROGATION AND DISSOLUTION

VISUAL FIRST

PRESIDENT: SUMMONS -> SESSION -> PROROGUES
CHAIR: sitting -> adjournment / sine die
ARTICLE 100: present-and-voting rule + casting vote + 1/10 quorum
ARTICLE 120: Hindi/English; permission for mother tongue

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Parliamentary time moves from House term to session to individual sitting.

Technical definition: Articles 83 and 85 distinguish duration, summoning, prorogation and Lok Sabha dissolution.

PARTICIPATION, VOTING AND LANGUAGE

- [FACT] Article 88 lets every minister and the Attorney-General speak and participate in either House, a joint sitting and relevant committees; voting still follows membership.
- [FACT] Article 100 ordinarily uses a majority of members present and voting, preserves proceedings despite vacancies, gives the presiding officer a casting vote on equality and fixes quorum at one-tenth until Parliament otherwise provides.
- [FACT] Article 120 permits business in Hindi or English and allows the presiding officer to permit a member unable to express adequately in either language to use the member's mother tongue.
- [CONVENTION] Budget, Monsoon and Winter are conventional session labels; Article 85 fixes the maximum interval, not these names or a minimum annual sitting-day count.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 85 guarantees parliamentary recurrence, but not adequate scrutiny time.

MUST-WRITE KEYWORDS

- **Article 85**
- **parliamentary session**
- **adjournment**
- **prorogation**
- **Lok Sabha dissolution**

How to use them: Frame the answer through Article 85; define parliamentary session, connect adjournment with prorogation to explain the mechanism, and use Lok Sabha dissolution for the decisive comparison or qualification.

Visual 10 - Time hierarchy

```
HOUSE TERM
|
+-- SESSION (summoned and prorogued by President)
|
+-- SITTING (opened, adjourned or adjourned sine die by presiding officer)
```

Adjournment -> pauses a sitting
Adjournment sine die -> ends a sitting without fixing the next date
Prorogation -> ends the session; pending Bills survive, notices usually lapse
Dissolution -> ends Lok Sabha itself; Rajya Sabha is never dissolved

- [FACT] Article 85 requires the President to summon each House so that six months do not intervene between the last sitting of one session and the first sitting of the next.
- [FACT] The rule guarantees at least two sessions in a year, not a constitutionally fixed "Budget-Monsoon-Winter" calendar and not a minimum number of sitting days.
- [FACT] Budget, Monsoon and Winter are conventional labels; they are not constitutional categories and should not be frozen as mandatory counts.
- [FACT] The President prorogues either House and dissolves the Lok Sabha; presiding officers adjourn sittings.

- [CURRENT] The 8th Session of the 18th Lok Sabha was adjourned sine die on **13 August 2026**. This is a dated event, not a rule about future session numbering or duration.

Visual 11 - Quorum and voting

Total House strength -> quorum = one-tenth under Article 100(3)

Lok Sabha: 550 ceiling -> Core recall figure 55

Rajya Sabha: 250 ceiling -> Core recall figure 25

Members present and voting decide ordinary questions

Presiding officer ordinarily does not vote -> casting vote only on a tie

- [FACT] If quorum is absent, the presiding officer must adjourn or suspend the meeting until quorum exists.
- [LIMIT] Vacancies do not invalidate House proceedings merely because seats are unfilled.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Parliamentary time is constitutionally bounded but politically scheduled.
- **Named evidence:** Articles 85, 88, 100 and 120 allocate summoning, participation, voting, quorum and language while leaving the annual calendar largely to responsible-government practice.
- **Analysis:** The six-month ceiling prevents indefinite executive avoidance, but agenda control and sitting duration still determine whether formal accountability devices have usable time.
- **Qualification:** Article 85 does not mandate three named sessions or a minimum number of sitting days, and ministerial participation across Houses does not create a second vote.
- **Prelims trap:** Do not confuse adjournment by the chair with prorogation by the President on ministerial advice.
- **Mains use:** Link calendar design to the quality of scrutiny rather than merely memorising vocabulary.
- **Mini recap:** Constitution prevents disappearance; rules and politics determine deliberative intensity.

Paragraph model: Parliamentary time is constitutionally bounded but politically scheduled. Articles 85, 88, 100 and 120 allocate summoning, participation, voting, quorum and language while leaving the annual calendar largely to responsible-government practice. The six-month ceiling prevents indefinite executive avoidance, but agenda control and sitting duration still determine whether formal accountability devices have usable time. Article 85 does not mandate three named sessions or a minimum number of sitting days, and ministerial participation across Houses does not create a second vote.

CLOSING RECALL FLOW - SESSIONS, SITTINGS, ADJOURNMENT, PROROGATION AND DISSOLUTION

START / CONCEPT: Sessions, sittings, adjournment, prorogation and dissolution

|

v

EXACT TERMS: Article 85 • parliamentary session • adjournment • prorogation • Lok Sabha dissolution

|

v

MECHANISM / ARGUMENT: The President summons and prorogues; presiding officers adjourn; dissolution ends Lok Sabha life.

|

v

CONSEQUENCE / CONTRAST: Correct time vocabulary determines whether business survives and accountability can recur.

|

v

UPSC TRAP / ANSWER-USE: Budget, Monsoon and Winter are conventional labels, not constitutional categories.

|

v

ANSWER-GRABBING FORMULATION: Article 85 guarantees parliamentary recurrence, but not adequate scrutiny time.

SESSION 7 - QUESTIONS, ZERO HOUR, DISCUSSIONS AND MOTIONS

VISUAL FIRST

INFORMATION: starred / unstarred / short-notice questions

↓

URGENT ATTENTION: Zero Hour / Calling Attention / short-duration discussion

↓

RESPONSIBILITY: adjournment / censure / no-confidence / cut motions

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Questions and motions convert parliamentary sitting time into public executive accountability.

Technical definition: House rules and Article 75(3) connect information devices with the Lok Sabha confidence sanction.

MOTIONS, RESOLUTIONS AND CONFIDENCE - DO NOT MERGE THEM

Device	Source and House	Legal-political consequence
No-confidence motion	Lok Sabha Rule 198; fifty members must support leave	Tests the Council as a whole under Article 75(3); reasons need not be stated.
Confidence motion	Government-initiated practice in Lok Sabha	Demonstrates continuing majority; constitutional responsibility supplies the basis, not a separately named Article.
Censure motion	Rule-based political motion; may target policy, minister or government	Must state reasons; passage is serious criticism but is not textually identical to no-confidence.
Adjournment motion	Lok Sabha extraordinary device on a definite urgent public matter; fifty-member support	Interrupts normal business and carries censuring force without automatically removing the ministry.
Calling Attention	Rule-based Indian innovation; no vote	Member calls a minister to make a statement on an urgent public matter.
Resolution	Substantive, statutory or constitutional expression of House opinion/decision	A resolution is self-contained; every resolution is a substantive motion, but not every motion is a resolution.
Privilege motion	Invokes alleged breach of House/member privilege	May lead to inquiry and House action; it is not a confidence test.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Questions and motions form an accountability ladder from information to government survival.

MUST-WRITE KEYWORDS

- Question Hour
- Zero Hour
- no confidence
- parliamentary motions
- executive accountability

How to use them: Frame the answer through Question Hour; define Zero Hour, connect no confidence with parliamentary motions to explain the mechanism, and use executive accountability for the decisive comparison or qualification.

Visual 12 - Question taxonomy

Device	Reply	Supplementaries	Core use
Starred question	Oral	Yes	Live ministerial cross-examination
Unstarred question	Written	No	Detailed factual disclosure
Short-notice question	Oral, on urgent matter with shorter notice	Yes	Urgent accountability
Supplementary	Follow-up to oral answer	It is itself the follow-up	Tests and clarifies the minister's reply

- [FACT] Question Hour is rule-based. Zero Hour is an Indian parliamentary innovation conventionally dated to 1962 and is not formally in the Rules.
- [ANALYSIS] Written questions build an administrative record; oral supplementaries expose omissions in real time.

Visual 13 - Accountability ladder

INFORMATION

Questions -> Zero Hour -> Calling Attention -> Half-an-Hour Discussion

|

DEBATE AND CRITICISM

Short-Duration Discussion -> Censure Motion -> Adjournment Motion

|

FINANCIAL PRESSURE

Cut Motions -> refusal of supply

|

SURVIVAL

No-Confidence Motion in Lok Sabha

Device	Purpose	Key distinction
Calling Attention	Urgent matter of public importance; ministerial statement	Indian innovation; does not itself test confidence
Half-an-Hour Discussion	Clarifies a matter arising from an answer	Information-focused
Short-Duration Discussion	Debate without a formal vote	Discussion, not censure
Adjournment Motion	Interrupts normal business for a definite urgent matter; censures government	Lok Sabha; requires support of 50 members
Censure Motion	Condemns specified policy/action	Reasons must be stated; may target a minister/group/council
No-Confidence Motion	Tests whether the Council retains Lok Sabha confidence	No reasons required; support of 50 members for admission
Motion of Thanks	Responds to President's Address	Amendments may politically test government

- [FACT] Article 75(3) makes the Council of Ministers collectively responsible to the **Lok Sabha**, so the confidence key lies only there.
- [LIMIT] Rajya Sabha may criticise, question and defeat ordinary legislation, but cannot constitutionally remove the Union ministry through no-confidence.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Accountability devices form a graded ladder from information to political survival.
- **Named evidence:** Question rules, Lok Sabha Rules 56, 197 and 198, cut-motion procedure and Article 75(3) distinguish disclosure, urgent debate, censure and loss of confidence.
- **Analysis:** The ladder lets members calibrate scrutiny: most devices expose or criticise; only the confidence route directly determines the ministry's collective tenure.
- **Qualification:** Rule numbers and admissibility conditions differ across Houses, and a censure or adjournment defeat does not mechanically equal passage of no-confidence.
- **Prelims trap:** Do not call Calling Attention a motion with a vote or place no-confidence in Rajya Sabha.
- **Mains use:** Organise Mains answers by rising intensity instead of listing devices randomly.
- **Mini recap:** Questions inform, motions pressure, no-confidence decides survival.

Paragraph model: Accountability devices form a graded ladder from information to political survival. Question rules, Lok Sabha Rules 56, 197 and 198, cut-motion procedure and Article 75(3) distinguish disclosure, urgent debate, censure and loss of confidence. The ladder lets members calibrate scrutiny: most devices expose or criticise; only the confidence route directly determines the ministry's collective tenure. Rule numbers and admissibility conditions differ across Houses, and a censure or adjournment defeat does not mechanically equal passage of no-confidence.

CLOSING RECALL FLOW - QUESTIONS, ZERO HOUR, DISCUSSIONS AND MOTIONS

START / CONCEPT: Questions, Zero Hour, discussions and motions

|

v

EXACT TERMS: Question Hour · Zero Hour · no confidence · parliamentary motions · executive accountability

|

v

MECHANISM / ARGUMENT: Questions obtain information, motions escalate criticism, and no-confidence tests survival.

|

v

CONSEQUENCE / CONTRAST: The devices span disclosure, debate, censure, financial pressure and government removal.

|

v

UPSC TRAP / ANSWER-USE: Zero Hour is conventional; an adjournment motion is not the same as no-confidence.

|

v

ANSWER-GRABBING FORMULATION: Questions and motions form an accountability ladder from information to government survival.

SESSION 8 - PRESIDING OFFICERS: AUTHORITY, CONTINUITY AND NEUTRALITY

VISUAL FIRST

LOK SABHA: Speaker <-> Deputy Speaker (Arts 93-96)

RAJYA SABHA: Vice-President/Chairman <-> Deputy Chairman (Arts 89-92)

ARTICLE 98: separate House secretariats -> procedural continuity and institutional memory

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Presiding officers combine procedural control with duties requiring visible impartiality.

Technical definition: Articles 89 to 97 govern election, tenure, removal, continuity and voting of parliamentary chairs.

OFFICERS, SALARIES AND SECRETARIATS

- [FACT] Articles 89-92 create the Rajya Sabha Chairman/Deputy Chairman offices, vacancy/removal rules, acting arrangements and the rule that the Chairman or Deputy Chairman does not preside during consideration of that officer's removal.
- [FACT] Articles 93-96 supply the corresponding Lok Sabha offices and safeguards; Article 94 preserves the Speaker until immediately before the new House's first meeting after dissolution.
- [FACT] Article 97 places presiding-officer salaries and allowances under parliamentary law and charges them on the Consolidated Fund of India.
- [FACT] Article 98 gives each House a separate secretarial staff, permits common posts and allows Parliament to regulate recruitment and service conditions; each Secretariat supports procedure, committees, records, research and institutional continuity.
- [CURRENT, checked 7 September 2026] Official parliamentary controls identify Om Birla as Lok Sabha Speaker; the Deputy Speaker office remains vacant. C. P. Radhakrishnan is Rajya Sabha Chairman by virtue of the Vice-Presidency, and Harivansh is Deputy Chairman.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Powerful presiding offices require neutrality safeguards proportionate to their consequences.

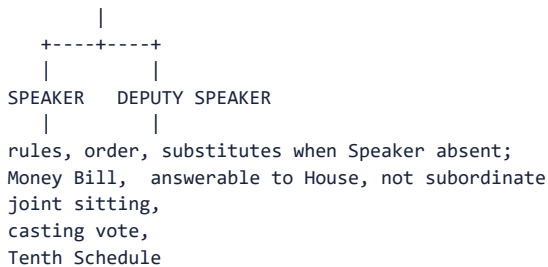
MUST-WRITE KEYWORDS

- Lok Sabha Speaker
- Deputy Speaker
- Rajya Sabha Chairman
- presiding officer neutrality
- Article 94

How to use them: Frame the answer through Lok Sabha Speaker; define Deputy Speaker, connect Rajya Sabha Chairman with presiding officer neutrality to explain the mechanism, and use Article 94 for the decisive comparison or qualification.

Visual 14 - Lok Sabha chair hierarchy

HOUSE ELECTS UNDER ARTICLE 93



Speaker

- [FACT] Articles 93-97 govern the Speaker and Deputy Speaker. The House elects them from among its members.
- [FACT] The Speaker vacates by ceasing to be a member, resigning to the Deputy Speaker or removal by a majority of **all the then members of the House** after fourteen days' notice.
- [FACT] The Speaker does **not** vacate on dissolution; Article 94 continues the office until immediately before the first sitting of the new Lok Sabha.
- [FACT] During consideration of the Speaker's removal resolution, Article 96 prevents the Speaker from presiding. The Speaker may speak and vote in the first instance but has no casting vote in that proceeding.
- [FACT] Major powers include maintaining order, interpreting House rules, certifying a Money Bill, presiding over a joint sitting, using a casting vote on a tie and deciding Tenth Schedule petitions subject to judicial review.
- [ANALYSIS] These powers make impartiality structural, not ceremonial.

Deputy Speaker

- [FACT] The Deputy Speaker is independently elected by the House; when presiding, the Deputy Speaker exercises the Speaker's powers and is answerable to the House.
- [FACT] Article 93 says the House shall, as soon as may be, choose a Speaker and Deputy Speaker but fixes no numerical deadline.
- [CURRENT] The official Lok Sabha page checked on **7 September 2026** states that the position has been vacant since **May 2019**.
- [LIMIT] This is a dated current-office control, not a timeless constitutional rule.

Rajya Sabha Chairman and Deputy Chairman

- [FACT] Article 89 makes the Vice-President the ex-officio Chairman of Rajya Sabha; the Chairman is not a Rajya Sabha member.
- [FACT] The House elects a Deputy Chairman from among its members.
- [FACT] The Chairman ordinarily has no first-instance vote and uses a casting vote on equality under Article 100.
- [FACT] When a resolution for removal of the Vice-President is under consideration, Article 92 prevents the Chairman from presiding.

Visual 15 - Neutrality problem

High decisional powers
 Money Bill + discipline + debate + defection
 |
 Party-linked route to office
 |
 Perception of partisan incentive
 |
 Reforms: convention of detachment | timely rulings |
 reasoned decisions | independent defection tribunal

- [ANALYSIS] Britain's "once a Speaker, always a Speaker" convention is not followed in India: the Speaker retains a party-linked political career and contests elections.
- [LIMIT] Institutional risk does not prove that every ruling is partisan. A good answer distinguishes design vulnerability from allegations in a particular case.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Presiding neutrality depends on constitutional continuity, procedural powers and an autonomous secretariat, not on personal stature alone.
- **Named evidence:** Articles 89-98 protect office continuity and House staffing; Article 96 gives the Speaker a first-instance vote but no casting vote during a removal resolution.
- **Analysis:** A stable chair and permanent secretariat preserve rules, records and committee capacity across partisan and electoral change.
- **Qualification:** Indian law does not require a Speaker to resign from the political party, so the British 'once a Speaker' convention remains an aspirational comparison rather than a legal command.
- **Prelims trap:** Do not say the Speaker vacates on dissolution or that the Vice-President is a Rajya Sabha member.
- **Mains use:** Connect neutrality reform to institutional design: election timing, party distance, reasoned rulings and timely decisions.
- **Mini recap:** The chair governs proceedings; the secretariat preserves the House.

Paragraph model: Presiding neutrality depends on constitutional continuity, procedural powers and an autonomous secretariat, not on personal stature alone. Articles 89-98 protect office continuity and House staffing; Article 96 gives the Speaker a first-instance vote but no casting vote during a removal resolution. A stable chair and permanent secretariat preserve rules, records and committee capacity across partisan and electoral change. Indian law does not require a Speaker to resign from the political party, so the British 'once a Speaker' convention remains an aspirational comparison rather than a legal command.

CLOSING RECALL FLOW - PRESIDING OFFICERS: AUTHORITY, CONTINUITY AND NEUTRALITY

START / CONCEPT: Presiding officers: authority, continuity and neutrality
 |
 v
 EXACT TERMS: Lok Sabha Speaker · Deputy Speaker · Rajya Sabha Chairman · presiding officer
 neutrality · Article 94
 |
 v
 MECHANISM / ARGUMENT: The chairs interpret rules, maintain order and exercise specified
 certification and tribunal powers.
 |
 v
 CONSEQUENCE / CONTRAST: Their decisions shape debate, membership, bicameralism and institutional
 legitimacy.
 |
 v
 UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: official status checked in 2026
 dates the Deputy Speaker vacancy from May 2019.
 |
 v
 ANSWER-GRABBING FORMULATION: Powerful presiding offices require neutrality safeguards proportionate
 to their consequences.

SESSION 9 - PARLIAMENTARY PRIVILEGES AND THE SITA SOREN (2024) BOUNDARY

VISUAL FIRST

ARTICLE 105 IMMUNITY -> speech/vote connected to legislative function
| not a corruption licence
v
SITA SOREN (2024): bribe acceptance not protected
HOUSE DISCIPLINE <-> JUDICIAL REVIEW FOR SUBSTANTIVE ILLEGALITY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Privilege protects legislative work but does not create personal immunity for bribery.

Technical definition: Article 105 protects speech, votes and authorised publication subject to constitutional limits.

PRIVILEGE, ETHICS AND JUDICIAL BOUNDARY

- [FACT] Article 105 protects speech and votes in Parliament and authorised publication; other privileges remain partly uncodified.
- [FACT] Article 121 bars discussion of Supreme Court or High Court judges' conduct except on a removal motion.
- [FACT] *Raja Ram Pal v. Speaker, Lok Sabha* (2007) upheld Parliament's expulsion power but held that privilege action is reviewable for substantive illegality or unconstitutionality.
- [FACT] *Amarinder Singh v. Punjab Vidhan Sabha* (2010) required a real nexus between claimed privilege and legislative functioning.
- [FACT] *Sita Soren v. Union of India* (2024) overruled the contrary bribery immunity in *P. V. Narasimha Rao* (1998): accepting a bribe for speech or vote is not protected.
- [INSTITUTION] Ethics Committees examine unethical conduct; Privileges Committees examine breach of privilege or contempt. Their jurisdictions overlap at the margins but are not identical.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Legislative privilege is justified by function and ends where bribery begins.

MUST-WRITE KEYWORDS

- Article 105
- parliamentary privilege
- Sita Soren (2024)
- legislative bribery
- judicial review

How to use them: Frame the answer through Article 105; define parliamentary privilege, connect Sita Soren (2024) with legislative bribery to explain the mechanism, and use judicial review for the decisive comparison or qualification.

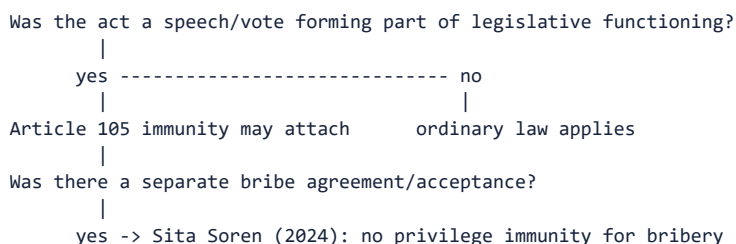
Visual 16 - Privilege shield

CORE PROTECTED ZONE	OUTSIDE THE SHIELD
Speech in House	bribery transaction
Vote in House	criminal act lacking functional nexus
Authorised parliamentary publication	mala fide exercise reviewable for illegality
Internal discipline and contempt powers	
+> protection exists so Parliament can function, not to create a personal criminal immunity	

- [FACT] Article 105 protects freedom of speech in Parliament subject to the Constitution and House rules, and immunises members from court proceedings for speech or vote in Parliament.
- [FACT] Privileges belong to each House, its members and committees; breach of privilege violates a specific privilege, while contempt is wider conduct that obstructs House functions.
- [FACT] Privilege powers are not wholly beyond judicial review. *Raja Ram Pal v. Speaker, Lok Sabha* (2007) accepted review for substantive or procedural illegality while respecting legislative autonomy.

- [FACT] In **Sita Soren (2024) v. Union of India (2024)** a unanimous seven-judge Bench overruled *P.V. Narasimha Rao* (1998): a legislator who accepts a bribe for a vote or speech receives **no Article 105/194 immunity**; the bribery offence is complete on acceptance.
- [LIMIT] *Sita Soren (2024)* removed a bribery shield. It did not abolish ordinary immunity for bona fide parliamentary speech and votes.

Visual 17 - Case logic

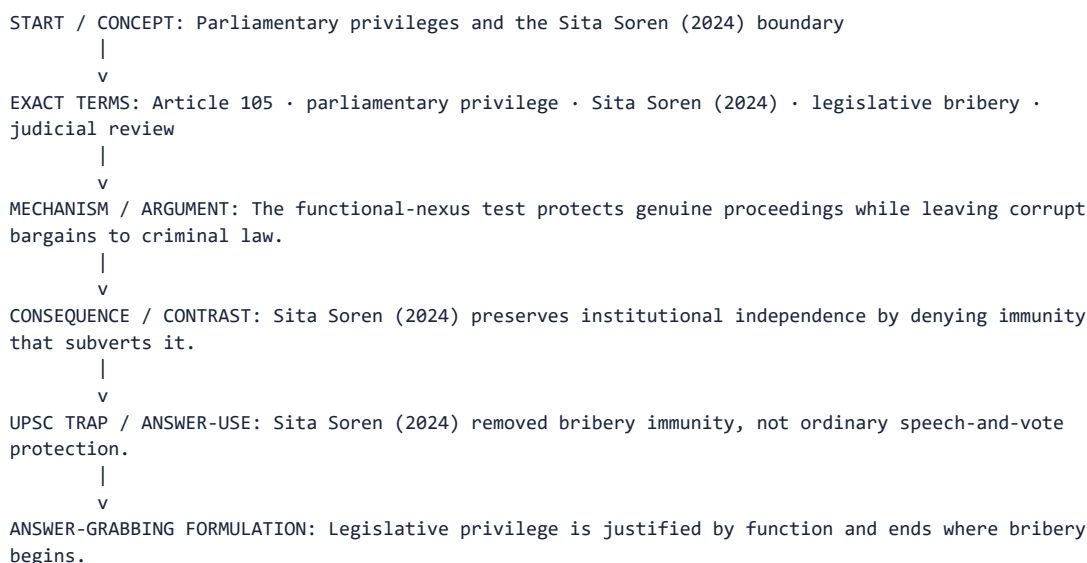


HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Legislative privilege protects institutional independence, not personal impunity.
- **Named evidence:** Article 105 and *Sita Soren (2024)* preserve bona fide speech-and-vote immunity while excluding bribery completed outside the protected legislative act.
- **Analysis:** Functional immunity prevents intimidation of debate; removing a corruption shield protects equality before criminal law and public trust.
- **Qualification:** Courts do not sit as appellate rule committees, but *Raja Ram Pal* permits review when House action crosses from procedural irregularity into substantive illegality or constitutional violation.
- **Prelims trap:** Do not infer that every statement by an MP everywhere, or every offence linked to a vote, receives Article 105 protection.
- **Mains use:** Use function, nexus and constitutional limit as the three-part privilege test.
- **Mini recap:** Protect the legislative act; prosecute the independent crime.

Paragraph model: Legislative privilege protects institutional independence, not personal impunity. Article 105 and *Sita Soren (2024)* preserve bona fide speech-and-vote immunity while excluding bribery completed outside the protected legislative act. Functional immunity prevents intimidation of debate; removing a corruption shield protects equality before criminal law and public trust. Courts do not sit as appellate rule committees, but *Raja Ram Pal* permits review when House action crosses from procedural irregularity into substantive illegality or constitutional violation.

CLOSING RECALL FLOW - PARLIAMENTARY PRIVILEGES AND THE SITA SOREN (2024) BOUNDARY



SESSION 10 - LEGISLATIVE PROCEDURE FOR AN ORDINARY BILL

VISUAL FIRST

INTRODUCTION -> GENERAL PRINCIPLE -> COMMITTEE / CLAUSE SCRUTINY -> THIRD READING
-> SECOND HOUSE -> PRESIDENT UNDER ARTICLE 111
PRIVATE MEMBER BILL: same legislative stages, different sponsor and scarce allotted time

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: An ordinary Bill becomes law only after both Houses agree and the President acts.

Technical definition: Articles 107 and 111 structure introduction, bicameral passage, return and presidential assent.

GOVERNMENT AND PRIVATE MEMBERS' BUSINESS

- [FACT] Article 107 permits an ordinary Bill to originate in either House and ordinarily requires agreement of both Houses.
- [RULE] A minister sponsors a Government Bill; any other member sponsors a Private Member's Bill or resolution. Private members' business is rule-based, receives specially allotted time and rarely becomes law, but it can frame alternatives and force debate.
- [FACT] A Bill commonly moves through introduction, general consideration, committee or other detailed scrutiny, clause-by-clause consideration and final passage before transmission to the other House.
- [FACT] Under Article 111 the President may assent, withhold assent or return a non-Money Bill once; if both Houses pass it again, assent cannot then be withheld.
- [LIMIT] Committee referral is not constitutionally automatic for every Bill; House rules and political choice govern the route.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Ordinary lawmaking converts policy into agreed bicameral text before presidential assent.

MUST-WRITE KEYWORDS

- **ordinary Bill**
- **first reading**
- **second reading**
- **bicameral passage**
- **Article 111**

How to use them: Frame the answer through ordinary Bill; define first reading, connect second reading with bicameral passage to explain the mechanism, and use Article 111 for the decisive comparison or qualification.

Visual 18 - Five-stage route

FIRST READING
introduction and publication
|
SECOND READING
general discussion -> committee/reference -> clause-by-clause consideration
|
THIRD READING
final acceptance or rejection
|
SECOND HOUSE
pass | amend and return | reject | hold for six months
|
PRESIDENT: Article 111
assent | withhold | return once (if not a Money Bill)
|
If repassed: President cannot withhold assent

- [FACT] An ordinary Bill may originate in either House and may be introduced by a minister or private member.
- [FACT] Both Houses must agree to identical text.

- [FACT] The President may return a non-Money Bill once. If both Houses pass it again, with or without amendment, the President shall not withhold assent.
- [ANALYSIS] Committee reference is the point at which general policy becomes clause-level legal scrutiny.
- [LIMIT] Not every Bill is constitutionally required to go to a committee; making referral routine is a reform proposal.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Bicameral law-making is a sequence of public authorisation and revisable scrutiny, not a single floor vote.
- **Named evidence:** Articles 107 and 111 connect two-House agreement with presidential reconsideration, while committee and clause stages supply detailed scrutiny.
- **Analysis:** Multiple stages expose principle, drafting and implementation consequences before coercive law is finalised.
- **Qualification:** Fast-track passage may still be legally valid when constitutional minima are met, but reduced committee and debate time weakens deliberative quality and evidence testing.
- **Prelims trap:** Do not say every ordinary Bill must be introduced by a minister or referred to a standing committee.
- **Mains use:** Evaluate procedure by both legality and deliberative adequacy.
- **Mini recap:** Introduction starts a Bill; bicameral agreement and assent complete it.

Paragraph model: Bicameral law-making is a sequence of public authorisation and revisable scrutiny, not a single floor vote. Articles 107 and 111 connect two-House agreement with presidential reconsideration, while committee and clause stages supply detailed scrutiny. Multiple stages expose principle, drafting and implementation consequences before coercive law is finalised. Fast-track passage may still be legally valid when constitutional minima are met, but reduced committee and debate time weakens deliberative quality and evidence testing.

CLOSING RECALL FLOW - LEGISLATIVE PROCEDURE FOR AN ORDINARY BILL

```

START / CONCEPT: Legislative procedure for an ordinary Bill
|
v
EXACT TERMS: ordinary Bill • first reading • second reading • bicameral passage • Article 111
|
v
MECHANISM / ARGUMENT: Introduction leads to debate and clause scrutiny, identical passage, then
assent or return.
|
v
CONSEQUENCE / CONTRAST: The sequence converts policy into tested legal text while preserving a
limited suspensive veto.
|
v
UPSC TRAP / ANSWER-USE: Committee referral is valuable but is not constitutionally automatic for
every Bill.
|
v
ANSWER-GRABBING FORMULATION: Ordinary lawmaking converts policy into agreed bicameral text before
presidential assent.

```

SESSION 11 - ORDINARY, MONEY, FINANCIAL AND CONSTITUTION AMENDMENT BILLS

VISUAL FIRST

MONEY BILL Art 110 -> LS only -> RS recommendations/14 days -> no joint sitting
FINANCIAL BILL-I Art 117(1) -> LS only + recommendation -> both Houses otherwise
FINANCIAL BILL-II Art 117(3) -> either House -> recommendation before consideration
APPROPRIATION BILL Art 114 -> legal authority to withdraw from CFI

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Bill classification decides origin, recommendation, Rajya Sabha power and deadlock routes.

Technical definition: Articles 109, 110, 117 and 368 create distinct procedures for fiscal and amendment Bills.

APPROPRIATION AND THE FINANCIAL-BILL FIREWALL

- [FACT] Article 109 creates the special Money Bill route; Article 110 requires that a Money Bill contain **only** the listed matters and incidental provisions.
- [FACT] Article 110(3) makes the Speaker's certification final within the parliamentary text, but *Rojer Mathew* (2019) confirms that certification is not wholly beyond constitutional judicial review and referred the broader definition issue to a larger Bench.
- [FACT] Article 117(1) Financial Bill-I contains Article 110 matter plus other matter: Lok Sabha-only introduction and presidential recommendation apply, but Rajya Sabha otherwise has ordinary-Bill power.
- [FACT] Article 117(3) Financial Bill-II may originate in either House; presidential recommendation is required before consideration, not necessarily before introduction.
- [FACT] Article 114's Appropriation Bill authorises withdrawal from the Consolidated Fund after demands for grants; amendments cannot vary a grant or alter the destination of charged expenditure.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Every legislative-procedure answer should classify the Bill before narrating its route.

MUST-WRITE KEYWORDS

- **Money Bill**
- **Financial Bill**
- **Article 110**
- **Article 117**
- **Constitution Amendment Bill**

How to use them: Frame the answer through Money Bill; define Financial Bill, connect Article 110 with Article 117 to explain the mechanism, and use Constitution Amendment Bill for the decisive comparison or qualification.

Visual 19 - Bill classification tree

Does the Bill contain ONLY Article 110(1)(a)-(g) matters and incidental matters?

|
yes -> MONEY BILL
|
no
v

Does it contain an Article 110 matter plus other matters?

|
yes -> FINANCIAL BILL-I: Article 117(1)
|
no
v

Would it involve expenditure from the Consolidated Fund?

|
yes -> FINANCIAL BILL-II: Article 117(3)
|
no -> ORDINARY BILL

Does it amend the Constitution? -> ARTICLE 368 CONSTITUTION AMENDMENT BILL

Visual 20 - Procedure comparison matrix

Feature	Ordinary Bill	Money Bill	Financial Bill-I	Financial Bill-II	Constitution Amendment Bill
Provision	General	Arts 109-110	Art 117(1)	Art 117(3)	Art 368
Origin	Either House	Lok Sabha only	Lok Sabha only	Either House	Either House
President recommendation	Not generally required for introduction	Required	Required	Required before consideration, not necessarily introduction	Not required
Rajya Sabha power	Equal	Recommend only; 14 days	Equal/full	Equal/full	Equal; must pass separately
Joint sitting	Possible	No	Possible	Possible	No
Speaker certificate	No	Yes	No Money Bill certificate	No	No
President may return	Yes	No	Yes	Yes	No; must assent after due passage

Money Bill firewall

- [FACT] Article 110 is exhaustive: a Bill is a Money Bill only if it contains **only** listed fiscal matters and incidental matters.
- [FACT] Article 109 gives Rajya Sabha fourteen days to recommend changes. Lok Sabha may accept or reject any recommendation; non-return within fourteen days results in deemed passage in Lok Sabha form.
- [FACT] Article 110(3) says the Speaker's decision is final, and the certificate is endorsed under Article 110(4).
- [LIMIT] Textual finality does not create absolute constitutional immunity. Judicial review remains narrow and is addressed in Optional Advanced.

Constitution Amendment Bill

- [FACT] It may begin in either House, must be passed separately by each House and has no joint-sitting escape.
- [FACT] The ordinary Article 368 special majority has two concurrent limbs: majority of total membership **and** two-thirds of members present and voting.
- [FACT] Amendments touching specified federal provisions also need ratification by at least half of State legislatures.
- [FACT] After valid passage the President must assent.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The word 'only' in Article 110 is the constitutional firewall against using finance to bypass bicameralism.
- **Named evidence:** Articles 109, 110, 114 and 117 create four distinct procedural routes for Money, Financial-I, Appropriation and Financial-II Bills.

- **Analysis:** Lok Sabha primacy protects popular control of taxation and supply, but overbroad certification can disable Rajya Sabha on provisions lacking the required financial nexus.
- **Qualification:** Not every Finance Bill is a Money Bill, and judicial review corrects constitutional misuse without converting courts into routine certifiers of House procedure.
- **Prelims trap:** Do not assume Rajya Sabha has recommendation-only power over every Bill carrying expenditure.
- **Mains use:** Classify the Bill first; only then state origin, recommendation, Rajya Sabha power, joint sitting and presidential options.
- **Mini recap:** Money is narrow; financial is wider; appropriation turns voted authority into lawful withdrawal.

Paragraph model: The word 'only' in Article 110 is the constitutional firewall against using finance to bypass bicameralism. Articles 109, 110, 114 and 117 create four distinct procedural routes for Money, Financial-I, Appropriation and Financial-II Bills. Lok Sabha primacy protects popular control of taxation and supply, but overbroad certification can disable Rajya Sabha on provisions lacking the required financial nexus. Not every Finance Bill is a Money Bill, and judicial review corrects constitutional misuse without converting courts into routine certifiers of House procedure.

CLOSING RECALL FLOW - ORDINARY, MONEY, FINANCIAL AND CONSTITUTION AMENDMENT BILLS

START / CONCEPT: Ordinary, Money, Financial and Constitution Amendment Bills

|
v

EXACT TERMS: Money Bill · Financial Bill · Article 110 · Article 117 · Constitution Amendment Bill

|
v

MECHANISM / ARGUMENT: Classify first, then apply the correct House powers, recommendation rule and assent path.

|
v

CONSEQUENCE / CONTRAST: Accurate classification prevents fiscal primacy from becoming an unintended bicameral bypass.

|
v

UPSC TRAP / ANSWER-USE: Financial Bill-I gives Rajya Sabha full power and is not a Money Bill.

|
v

ANSWER-GRABBING FORMULATION: Every legislative-procedure answer should classify the Bill before narrating its route.

SESSION 12 - JOINT SITTING, LEGISLATIVE DEADLOCK AND BILL LAPSE

VISUAL FIRST

ORDINARY DEADLOCK Art 108 -> rejection / final disagreement / >6-month delay -> joint sitting

NO JOINT SITTING -> Money Bill or Article 368 amendment

DISSOLUTION -> trace the Bill's last House and whether joint-sitting intention was notified

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Deadlock and dissolution affect Bills differently according to class and procedural stage.

Technical definition: Article 108 supplies joint sitting for eligible deadlocks while dissolution rules determine lapse.

CONSTITUTION AMENDMENT BILLS AND DISSOLUTION

- [FACT] Article 368 Bills may originate in either House, require the prescribed special majority in each House and, for specified federal provisions, ratification by at least half the State Legislatures.
- [FACT] There is no joint sitting for a Constitution Amendment Bill; failure in either House defeats the measure.
- [FACT] A Bill pending in Lok Sabha, or passed by Lok Sabha and pending in Rajya Sabha, lapses on Lok Sabha dissolution.
- [FACT] A Bill pending in Rajya Sabha that Lok Sabha has not passed, a Bill passed by both Houses awaiting assent, a returned Bill, and a Bill for which joint-sitting intention has already been notified do not lapse.
- [FACT] India's three joint sittings concerned the Dowry Prohibition Bill (1961), Banking Service Commission (Repeal) Bill (1978) and Prevention of Terrorism Bill (2002).

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 108 resolves only eligible deadlocks, while dissolution selectively ends pending business.

MUST-WRITE KEYWORDS

- **Article 108**
- **joint sitting**
- **legislative deadlock**
- **Bill lapse**
- **Lok Sabha dissolution**

How to use them: Frame the answer through Article 108; define joint sitting, connect legislative deadlock with Bill lapse to explain the mechanism, and use Lok Sabha dissolution for the decisive comparison or qualification.

Visual 21 - Article 108 deadlock route

Ordinary/eligible Financial Bill
|
Second House rejects OR final disagreement OR holds > 6 months
|
President may notify intention to summon joint sitting
|
Speaker presides -> members present and voting decide
|
Numerical strength normally favours Lok Sabha

NO joint sitting: Money Bill | Constitution Amendment Bill

- [FACT] Only three joint sittings have occurred: Dowry Prohibition Bill (1961), Banking Service Commission (Repeal) Bill (1978) and Prevention of Terrorism Bill (2002).
- [LIMIT] Joint sitting is an available constitutional mechanism, not an automatic consequence of every disagreement.

Visual 22 - Lapse decision tree on Lok Sabha dissolution

Where is the Bill?

```
|
+-- pending in Lok Sabha -----> LAPSES
|
+-- passed by Lok Sabha, pending in Rajya Sabha -----> LAPSES
|
+-- pending in Rajya Sabha, not passed by Lok Sabha --> SURVIVES
|
+-- passed by both, awaiting President's assent -----> SURVIVES
|
+-- returned by President -----> SURVIVES
|
+-- joint sitting already notified -----> SURVIVES
```

- [ANALYSIS] Rajya Sabha permanence protects Bills that originate and remain pending there; dissolution cuts off business dependent on the expired Lok Sabha's will.
- [FACT] Prorogation does not cause Bills to lapse.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Joint sitting resolves ordinary bicameral deadlock but cannot repair failure to obtain a constitutionally distinct special consent.
- **Named evidence:** Article 108 lists deadlock triggers, while Articles 109 and 368 exclude Money and Constitution Amendment Bills by their separate procedures.
- **Analysis:** The mechanism favours governability yet preserves stronger federal and amendment safeguards from Lok Sabha's numerical advantage.
- **Qualification:** A joint sitting is discretionary presidential summoning on ministerial advice, not an automatic consequence of disagreement; dissolution effects depend on the Bill's procedural location.
- **Prelims trap:** Do not apply the six-month deadlock rule to a Money Bill or say every Rajya Sabha-pending Bill lapses.
- **Mains use:** Draw a decision tree: class of Bill, origin/status, deadlock trigger, dissolution, notified joint sitting.
- **Mini recap:** Ordinary deadlock may merge Houses; constitutional amendment never does.

Paragraph model: Joint sitting resolves ordinary bicameral deadlock but cannot repair failure to obtain a constitutionally distinct special consent. Article 108 lists deadlock triggers, while Articles 109 and 368 exclude Money and Constitution Amendment Bills by their separate procedures. The mechanism favours governability yet preserves stronger federal and amendment safeguards from Lok Sabha's numerical advantage. A joint sitting is discretionary presidential summoning on ministerial advice, not an automatic consequence of disagreement; dissolution effects depend on the Bill's procedural location.

CLOSING RECALL FLOW - JOINT SITTING, LEGISLATIVE DEADLOCK AND BILL LAPSE

START / CONCEPT: Joint sitting, legislative deadlock and Bill lapse

|

v

EXACT TERMS: Article 108 · joint sitting · legislative deadlock · Bill lapse · Lok Sabha dissolution

|

v

MECHANISM / ARGUMENT: Rejection, final disagreement or six-month delay may trigger notification for an eligible Bill.

|

v

CONSEQUENCE / CONTRAST: The mechanism can resolve ordinary deadlock while preserving special procedures for money and amendment.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: money Bills and Constitution Amendment Bills have no joint-sitting route.

|

v

ANSWER-GRABBING FORMULATION: Article 108 resolves only eligible deadlocks, while dissolution selectively ends pending business.

SESSION 13 - BUDGET, GRANTS AND THE CONSTITUTIONAL FUNDS

VISUAL FIRST

ARTICLE 112 AFS -> charged/voted split -> ARTICLE 113 demands for grants
-> ARTICLE 114 appropriation -> Finance legislation -> execution
-> CAG/PAC post-audit; Arts 115-116 handle later or interim needs

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Financial control runs from disclosure and voting to appropriation, spending and audit.

Technical definition: Articles 112 to 116 and 266 to 267 regulate grants, appropriation and constitutional funds.

ARTICLES 112-116 - COMPLETE SUPPLY CHAIN

- [FACT] Article 112 requires the Annual Financial Statement and separates charged expenditure from other expenditure.
- [FACT] Article 113 allows discussion of charged expenditure but no vote; Lok Sabha votes demands for grants, which require presidential recommendation.
- [FACT] Article 114 requires appropriation by law before withdrawal from the Consolidated Fund of India.
- [FACT] Article 115 covers supplementary, additional and excess grants.
- [FACT] Article 116 distinguishes vote on account, vote of credit and exceptional grant.
- [ANALYSIS] Financial control has an ex ante limb (authorisation) and an ex post limb (audit and committees); neither alone completes the power of the purse.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Parliamentary financial control is a chain from disclosure and authorisation to audit.

MUST-WRITE KEYWORDS

- Annual Financial Statement
- demands for grants
- Appropriation Bill
- Consolidated Fund
- Public Account

How to use them: Frame the answer through Annual Financial Statement; define demands for grants, connect Appropriation Bill with Consolidated Fund to explain the mechanism, and use Public Account for the decisive comparison or qualification.

Visual 23 - Budget sequence

```

Annual Financial Statement: Article 112
|
General discussion
|
DRSC scrutiny of ministry demands
|
Lok Sabha votes Demands for Grants: Article 113
|           |
cut motions guillotine at deadline
|
Appropriation Bill: Article 114 -> legal authority to withdraw
|
Finance Bill -> taxation proposals enacted
|
PAC-CAG post-expenditure audit closes the loop

```

- [FACT] The Constitution calls the budget the **Annual Financial Statement**.
- [FACT] Expenditure charged on the Consolidated Fund may be discussed but is not submitted to vote; other expenditure is voted through demands for grants.

- [FACT] Rajya Sabha may discuss the budget but only Lok Sabha votes demands for grants, on the President's recommendation.
- [FACT] **Policy Cut** reduces a demand to **Re 1**; Economy Cut specifies a reduction; **Token Cut** reduces it by **Rs 100** to ventilate a grievance.
- [FACT] The guillotine puts remaining undiscussed demands to vote at the scheduled deadline.
- [ANALYSIS] The budget demonstrates Lok Sabha primacy and also the accountability cost of limited House time.

Visual 24 - Grant toolkit

Device	Time and purpose	Trap
Vote on Account	Advance for ordinary expenditure pending full budget	Not a separate full budget
Vote of Credit	Unexpected demand of indefinite character, often emergency-like	Amount/details cannot be stated with ordinary precision
Exceptional Grant	Special purpose outside the current service	Distinct from routine annual service
Supplementary Grant	Authorised amount proves insufficient	In-year top-up
Additional Grant	Need arises for a new service not in budget	New service
Excess Grant	Spending exceeded authorisation	Post-facto; PAC examines before regularisation

Visual 25 - Three constitutional funds

CONSOLIDATED FUND: Article 266(1)
revenues + loans + loan recoveries
withdrawal requires appropriation by law

PUBLIC ACCOUNT: Article 266(2)
provident funds and other money held in trust
withdrawal does not require parliamentary appropriation

CONTINGENCY FUND: Article 267
advance for unforeseen expenditure at President's disposal
later recouped from Consolidated Fund through legislative authorisation

- [FACT] The Appropriation Bill authorises withdrawal from the Consolidated Fund; the Finance Bill gives effect to taxation proposals.
- [FACT] An Appropriation Bill is treated through the Money Bill procedure.
- [LIMIT] "Parliament controls every withdrawal in the same way" is wrong: Public Account transactions do not require appropriation.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Parliamentary financial control is a chain of disclosure, voting, appropriation and audit.
- **Named evidence:** Articles 112-116, the Consolidated Fund architecture and CAG-PAC review distinguish approval of policy, legal withdrawal authority and later accountability.
- **Analysis:** The chain prevents the executive from treating budget presentation as spending authority and lets Parliament revisit unforeseen or excess expenditure.
- **Qualification:** Rajya Sabha may discuss the Budget but does not vote demands for grants; charged expenditure is discussable even though it is not submitted to vote.
- **Prelims trap:** Do not equate the Finance Bill, Appropriation Bill and demands for grants.
- **Mains use:** Write financial-control answers chronologically from estimate to post-audit.
- **Mini recap:** No withdrawal without appropriation; no accountability without audit.

Paragraph model: Parliamentary financial control is a chain of disclosure, voting, appropriation and audit. Articles 112-116, the Consolidated Fund architecture and CAG-PAC review distinguish approval of policy, legal withdrawal authority and later accountability. The chain prevents the executive from treating budget presentation as spending authority and lets Parliament revisit unforeseen or excess expenditure. Rajya Sabha may discuss the Budget but does not vote demands for grants; charged expenditure is discussable even though it is not submitted to vote.

START / CONCEPT: Budget, grants and the constitutional funds

SESSION 14 - PARLIAMENTARY CONTROL OF THE EXECUTIVE

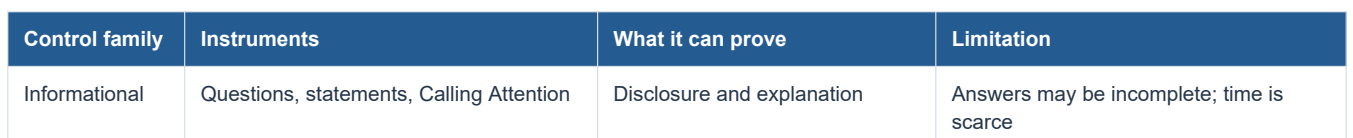
POLITICAL: questions + debates + no-confidence
FINANCIAL: grants + cut motions + appropriation + audit
TECHNICAL: DRSCs + financial committees
LEGAL: statutes + courts + constitutional limits

Plain-language definition: Parliament controls the executive through information, law, finance, committees and confidence.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

- **Article 75(3)**
- **executive accountability**
- **financial control**
- **parliamentary committees**
- **no confidence**

Visual 26 - Control cycle



Control family	Instruments	What it can prove	Limitation
Deliberative	Debates, motions, President's Address	Public justification and criticism	Majority controls outcomes
Legislative	Amendment, rejection, committee scrutiny	Changes legal text	Government dominates most business
Financial	Demands, cuts, appropriation, PAC-CAG	Controls and audits public money	Guillotine and post-facto character
Responsibility	No-confidence and confidence	Tests authority to govern	Whip makes defeat unlikely for stable majority
Committee	DRSCs and specialised committees	Detailed, cross-party scrutiny	Reports are advisory and referral varies

- [FACT] Article 75(3) is the constitutional foundation of collective responsibility to Lok Sabha.
- [ANALYSIS] Parliament is **strong in instruments but weak in use** when party discipline, disruption and a compressed calendar prevent those instruments from operating.
- [ANALYSIS] Rajya Sabha contributes scrutiny even without the confidence key through questions, ordinary legislation, committees and federal debate.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Parliament controls the executive through multiple imperfect instruments rather than one decisive sanction.
- **Named evidence:** Article 75(3), Question Hour, Rule 198, cut motions, DRSC scrutiny and PAC examination create political, informational and financial accountability.
- **Analysis:** Different devices reveal facts, contest policy, withhold supply or test survival, so their cumulative use matters more than the rarity of government defeat.
- **Qualification:** A disciplined majority, executive calendar control, disruptions and guillotining can blunt these instruments without abolishing them.
- **Prelims trap:** Do not measure control only by successful no-confidence motions.
- **Mains use:** Answer 'to what extent' through instruments, actual constraints and a graded verdict.
- **Mini recap:** Text supplies tools; political incentives determine bite.

Paragraph model: Parliament controls the executive through multiple imperfect instruments rather than one decisive sanction. Article 75(3), Question Hour, Rule 198, cut motions, DRSC scrutiny and PAC examination create political, informational and financial accountability. Different devices reveal facts, contest policy, withhold supply or test survival, so their cumulative use matters more than the rarity of government defeat. A disciplined majority, executive calendar control, disruptions and guillotining can blunt these instruments without abolishing them.

CLOSING RECALL FLOW - PARLIAMENTARY CONTROL OF THE EXECUTIVE

START / CONCEPT: Parliamentary control of the executive

|

v

EXACT TERMS: Article 75(3) · executive accountability · financial control · parliamentary committees · no confidence

|

v

MECHANISM / ARGUMENT: Questions disclose, Bills constrain, grants authorise, committees investigate and confidence decides survival.

|

v

CONSEQUENCE / CONTRAST: Formal instruments become effective only when time, information and party incentives permit scrutiny.

|

v

UPSC TRAP / ANSWER-USE: Rajya Sabha scrutinises the executive but cannot remove the Union ministry.

|

v

ANSWER-GRABBING FORMULATION: Executive accountability depends on converting formal parliamentary devices into actual scrutiny.

SESSION 15 - PARLIAMENTARY COMMITTEES: ARCHITECTURE AND EXACT CONTROLS

VISUAL FIRST

STANDING -> financial + DRSC + House/business + scrutiny/control + inquiry
AD HOC -> Select/Joint Committee on Bill + JPC/inquiry
FLOOR MANDATE -> small-group evidence -> report -> House/government response

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Committees provide specialised scrutiny that the full House often lacks time to perform.

Technical definition: Financial committees, DRSCs and ad hoc bodies divide audit, estimates, legislation and inquiry.

COMMITTEE FUNCTIONS THAT MUST NOT BE SWAPPED

Committee	Function / composition control
Public Accounts Committee	22 (15 LS + 7 RS); examines CAG-based accounts and regularity; Opposition chair is convention.
Estimates Committee	30, Lok Sabha only; suggests economies, efficiency and alternative policy presentation before expenditure.
Committee on Public Undertakings	22 (15 LS + 7 RS); examines reports/accounts of specified public undertakings.
DRSCs	24; normally 31 each (21 LS + 10 RS); examine demands, Bills referred, annual reports and long-term policy; ministers excluded.
Committee on Subordinate Legislation	Scrutinises whether delegated rules, regulations and orders stay within the parent law and proper delegation.
Committee on Government Assurances	Tracks assurances, promises and undertakings made by ministers on the floor.
Ethics Committee	Examines unethical conduct; Lok Sabha procedure permits a non-member complaint when forwarded by an MP.
Committee on Private Members' Bills and Resolutions	Classifies and allocates time for private members' legislative business in Lok Sabha.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Committees are Parliaments detailed working rooms, not substitutes for plenary authority.

MUST-WRITE KEYWORDS

- Public Accounts Committee
- Estimates Committee
- DRSCs
- committee scrutiny
- ad hoc committee

How to use them: Frame the answer through Public Accounts Committee; define Estimates Committee, connect DRSCs with committee scrutiny to explain the mechanism, and use ad hoc committee for the decisive comparison or qualification.

Visual 27 - Committee hierarchy

PARLIAMENTARY COMMITTEES

```

|
+-- STANDING: continuing category, generally reconstituted periodically
|   |
|   +-- financial committees
|   +-- Department-related Standing Committees
|   +-- House/business committees
|   +-- inquiry/oversight committees
|
+-- AD HOC: end after assigned work
|   |
|   +-- Select/Joint Committees on Bills
|   +-- Joint Parliamentary Committees for a specified inquiry

```

Not a parliamentary committee:

Consultative Committee chaired by a minister

Financial committees

Visual 28 - Financial trio

Committee	Exact composition	Chair/control	Function	Membership caution
Public Accounts Committee	22 = 15 LS + 7 RS	Opposition chair by convention since 1967	CAG reports, appropriation and financial regularity	Ministers barred; ordinarily does not question policy itself
Estimates Committee	30, Lok Sabha only	Ruling-party chair	Economy, efficiency and alternative policy/administrative arrangements in estimates	No Rajya Sabha members; ministers barred
Committee on Public Undertakings	22 = 15 LS + 7 RS	Chair from Lok Sabha	Reports/accounts of public undertakings	Ministers barred

- [ANALYSIS] The trio divides time: Estimates looks forward, PAC audits backward and CoPU specialises by institutional form.

Department-related Standing Committees

- [FACT] The system began with **17 committees in 1993** and was restructured to **24 from 2004**.
- [FACT] Each DRSC has **31 members: 21 Lok Sabha + 10 Rajya Sabha**; **16** are serviced by the Lok Sabha Secretariat and **8** by the Rajya Sabha Secretariat.
- [FACT] Ministers are barred; the term is one year.
- [FACT] They examine demands for grants, referred Bills, annual reports and long-term policy documents.
- [LIMIT] Recommendations are advisory. Bills are not automatically or constitutionally required to be referred.

Visual 29 - DRSC scrutiny loop

MINISTRY

```

| budget demand | Bill | annual report | policy paper
v

```

DRSC: evidence -> expert/member questions -> cross-party deliberation

```

|
v

```

REPORT AND RECOMMENDATIONS

```

|
+--> Government action-taken response
|
+--> better-informed House debate

```

Weak links: optional referral | one-year term | low attendance | research constraints | non-binding recommendations

Other high-yield committees

Committee	Core function	Exact control/caution
Committee on Subordinate Legislation	Tests whether delegated rule-making stays within legislative authority	This is the 2018 delegated-legislation answer, not PAC
Ethics Committee	Examines unethical conduct of members	Distinct from privilege
Committee of Privileges	Examines breach of privilege/contempt	Privilege protects institutional function
Committee on Government Assurances	Tracks promises/assurances made by ministers	Follow-up, not financial audit
Business Advisory Committee	Recommends allocation of House time	Does not replace the government's agenda role
Rules Committee	Considers House procedure/rules	House-specific
Committee on Petitions	Processes qualifying petitions	Citizen-to-House channel
Welfare of SCs and STs	30 = 20 LS + 10 RS , one-year term, chair appointed by Speaker	Examines NCSC/NCST reports and Article 335 representation; ministers barred

- [FACT] Ethics and Privileges are separate: unethical conduct need not be a breach of a specific privilege, and privilege proceedings serve institutional functioning.
- [FACT] The Welfare of SCs/STs Committee is a parliamentary committee, not the constitutional National Commissions under Articles 338 and 338A.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Committees are Parliament's principal technology for sustained, evidence-based scrutiny.
- **Named evidence:** The PAC, Estimates Committee, CoPU, 24 DRSCs and the Committee on Subordinate Legislation divide post-audit, economy, undertaking, departmental and delegated-law review.
- **Analysis:** Smaller forums create continuity, expertise and cross-party evidence work that a time-constrained plenary cannot replicate.
- **Qualification:** Most recommendations are advisory, referral is often discretionary and one-year reconstitution can weaken expertise; committee secrecy is useful only if reports feed public accountability.
- **Prelims trap:** Do not give Rajya Sabha members to the Estimates Committee or confuse consultative committees with parliamentary committees.
- **Mains use:** Name the committee and its exact scrutiny object instead of praising committees generically.
- **Mini recap:** Floor authorises; committees investigate, compare and report.

Paragraph model: Committees are Parliament's principal technology for sustained, evidence-based scrutiny. The PAC, Estimates Committee, CoPU, 24 DRSCs and the Committee on Subordinate Legislation divide post-audit, economy, undertaking, departmental and delegated-law review. Smaller forums create continuity, expertise and cross-party evidence work that a time-constrained plenary cannot replicate. Most recommendations are advisory, referral is often discretionary and one-year reconstitution can weaken expertise; committee secrecy is useful only if reports feed public accountability.

CLOSING RECALL FLOW - PARLIAMENTARY COMMITTEES: ARCHITECTURE AND EXACT CONTROLS

START / CONCEPT: Parliamentary committees: architecture and exact controls

|

v

EXACT TERMS: Public Accounts Committee • Estimates Committee • DRSCs • committee scrutiny • ad hoc committee

|

v

MECHANISM / ARGUMENT: Small cross-party forums take evidence, examine documents and report findings to the Houses.

|

v

CONSEQUENCE / CONTRAST: They improve legislative information even though recommendations remain advisory.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: pAC, Estimates and CoPU have different composition, timing and subjects.

|

v

ANSWER-GRABBING FORMULATION: Committees are Parliaments detailed working rooms, not substitutes for plenary authority.

SESSION 16 - RAJYA SABHA: EQUAL, UNEQUAL AND EXCLUSIVE POWERS

VISUAL FIRST

EQUAL: ordinary law + amendment + impeachment/removal participation

UNEQUAL: money/supply + confidence + joint-sitting arithmetic

EXCLUSIVE RS: Art 249 + Art 312 + VP removal initiation + emergency continuity

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Rajya Sabha is weaker on money and confidence but equal or distinctive in other fields.

Technical definition: Articles 109, 249, 312 and 368 create a graded rather than uniformly subordinate second chamber.

FOUR RAJYA SABHA SPECIAL POWERS

- [FACT] Article 249: by a two-thirds majority of members present and voting, Rajya Sabha may resolve that national interest requires Parliament to legislate on a State List matter for the stated renewable period.
- [FACT] Article 312: by the same present-and-voting supermajority, Rajya Sabha may authorise creation of one or more All India Services common to Union and States.
- [FACT] Article 67(b): a Vice-Presidential removal resolution can be initiated only in Rajya Sabha; Lok Sabha must agree.
- [FACT] Articles 352, 356 and 360 preserve a Rajya-Sabha-only approval bridge when Lok Sabha is dissolved during the relevant proclamation-approval window, subject to later Lok Sabha approval after reconstitution.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Rajya Sabha is secondary on money and confidence, but co-equal or distinctive elsewhere.

MUST-WRITE KEYWORDS

- **Rajya Sabha powers**
- **Article 249**
- **Article 312**
- **Money Bill**
- **bicameral equality**

How to use them: Frame the answer through Rajya Sabha powers; define Article 249, connect Article 312 with Money Bill to explain the mechanism, and use bicameral equality for the decisive comparison or qualification.

Visual 30 - Power map

Field	Rajya Sabha position relative to Lok Sabha
Ordinary Bills	Equal, subject to joint-sitting mechanism
Constitution Amendment Bills	Equal; each House must separately pass
President and Vice-President elections	Participates under respective constitutional rules
Money Bills	Inferior: recommendation only, fourteen days
Demands for Grants	Discusses but does not vote
Confidence in Union ministry	No removal power; Article 75(3) attaches to Lok Sabha
Joint sitting	Participates, but Lok Sabha's numbers usually dominate
Federal special powers	Rajya Sabha alone initiates Articles 249 and 312

Article 249

- [FACT] By a resolution supported by not less than two-thirds of members present and voting, Rajya Sabha may declare it necessary or expedient in the national interest for Parliament to legislate on a State List matter.
- [FACT] The resolution lasts up to one year and may be renewed; laws continue for six months after the resolution ceases.

Article 312

- [FACT] A two-thirds present-and-voting Rajya Sabha resolution may declare it necessary or expedient in the national interest to create one or more All-India Services common to Union and States.

Visual 31 - Qualified verdict

SECONDARY ON: money + supply + confidence
CO-EQUAL ON: ordinary law + constitutional amendment
DISTINCTIVE ON: continuity + federal revision
EXCLUSIVE ON: Articles 249 and 312

Verdict: supporting second chamber, not subordinate chamber

- [ANALYSIS] Calling Rajya Sabha "secondary" is accurate only for finance and government survival; it is misleading for ordinary law, constitutional amendment and federal functions.
- [LIMIT] Do not add loosely described powers to the list of Rajya Sabha's two exclusive constitutional powers controlled by Core: Articles 249 and 312.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Rajya Sabha is secondary in supply and confidence but co-equal or specially empowered in federal and constitutional matters.
- **Named evidence:** Articles 109, 75(3), 249, 312 and 368 create a graded rather than uniform bicameral relationship.
- **Analysis:** Asymmetry protects responsible government in the popular chamber while using the continuing chamber for federal consent, specialised review and emergency continuity.
- **Qualification:** Population-weighted representation and Lok Sabha dominance at a joint sitting limit the federal check; nevertheless Rajya Sabha is not a merely advisory House.
- **Prelims trap:** Do not say Article 249 permanently transfers a State List subject or that Rajya Sabha can dismiss the ministry.
- **Mains use:** Answer Rajya Sabha questions through equal, unequal and exclusive powers.
- **Mini recap:** Weak on supply, strong on continuity, indispensable on selected federal gateways.

Paragraph model: Rajya Sabha is secondary in supply and confidence but co-equal or specially empowered in federal and constitutional matters. Articles 109, 75(3), 249, 312 and 368 create a graded rather than uniform bicameral relationship. Asymmetry protects responsible government in the popular chamber while using the

continuing chamber for federal consent, specialised review and emergency continuity. Population-weighted representation and Lok Sabha dominance at a joint sitting limit the federal check; nevertheless Rajya Sabha is not a merely advisory House.

CLOSING RECALL FLOW - RAJYA SABHA: EQUAL, UNEQUAL AND EXCLUSIVE POWERS

START / CONCEPT: Rajya Sabha: equal, unequal and exclusive powers

|

v

EXACT TERMS: Rajya Sabha powers · Article 249 · Article 312 · Money Bill · bicameral equality

|

v

MECHANISM / ARGUMENT: It revises ordinary law, shares amendment power and alone initiates two federal resolutions.

|

v

CONSEQUENCE / CONTRAST: Continuity and federal initiative partly offset Lok Sabha primacy in finance and survival.

|

v

UPSC TRAP / ANSWER-USE: Do not describe Rajya Sabha as either equal or inferior in every field.

|

v

ANSWER-GRABBING FORMULATION: Rajya Sabha is secondary on money and confidence, but co-equal or distinctive elsewhere.

SESSION 17 - ANTI-DEFECTION, WHIP AND THE INDIVIDUAL PARLIAMENTARIAN

VISUAL FIRST

LOK SABHA SPECIAL CORE -> confidence + demands for grants + Money Bill origin
+ numerical advantage at joint sitting + direct electoral renewal

PARLIAMENTARY POWER -> limited by competence, rights, federalism, review, basic structure

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Anti-defection rules protect stability but can narrow independent legislative judgment.

Technical definition: The Tenth Schedule regulates party exit and whip defiance, with tribunal decisions under review.

LOK SABHA SPECIAL POWERS AND SOVEREIGNTY LIMITS

- [FACT] Article 75(3) makes Lok Sabha the confidence chamber.
- [FACT] Articles 109, 113 and 117 give Lok Sabha primacy over Money Bills, demands for grants and Financial Bill-I introduction.
- [ANALYSIS] Lok Sabha's larger membership normally gives it numerical advantage in an Article 108 joint sitting.
- [FACT] Parliament remains limited by the Seventh Schedule distribution, Fundamental Rights, constitutional procedures, judicial review and the basic-structure doctrine under Article 368.
- [LIMIT] 'Parliamentary supremacy' in India is best used for political centrality or control over the executive, not as a claim of legally unlimited legislative competence.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

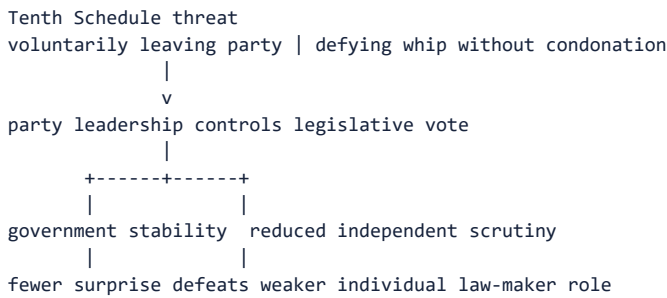
Anti-defection law stabilises government by narrowing the voting autonomy of legislators.

MUST-WRITE KEYWORDS

- Tenth Schedule
- party whip
- Kihoto Hollohan
- legislator autonomy
- two thirds merger

How to use them: Frame the answer through Tenth Schedule; define party whip, connect Kihoto Hollohan with legislator autonomy to explain the mechanism, and use two thirds merger for the decisive comparison or qualification.

Visual 32 - Incentive chain



- [FACT] The 52nd Amendment (1985) inserted the Tenth Schedule; the 91st Amendment (2003) deleted the one-third split exception. Only merger supported by at least two-thirds of the legislature party survives.
- [FACT] Party members risk disqualification for voluntarily giving up membership or defying a direction without prior permission and without condonation within fifteen days.
- [FACT] Independents are disqualified on joining any party; nominated members may join within six months but not thereafter without consequence.
- [FACT] *Kihoto Hollohan* (1992) treats the Speaker/Chairman as a tribunal subject to judicial review. *Keisham Meghachandra* (2020) urged ordinarily deciding within about three months and proposed consideration of an independent tribunal.
- [ANALYSIS] The whip stabilises responsible government but turns MPs from deliberators into party vote units when used beyond confidence and core financial matters.
- [LIMIT] Limiting the whip and shifting adjudication are reform proposals, not existing law.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Lok Sabha dominance is function-specific, not a general power to override every constitutional counterweight.
- **Named evidence:** Articles 75(3), 109, 113 and 117 privilege popular control of government and supply, while Articles 13, 246 and 368 preserve constitutional limits.
- **Analysis:** Direct election justifies decisive authority over who governs and how public money is authorised, but not over rights, federal boundaries or amendment identity.
- **Qualification:** Even a large majority cannot use an ordinary statute to evade a special constitutional procedure or destroy basic structure.
- **Prelims trap:** Do not turn financial and confidence primacy into British-style parliamentary sovereignty.
- **Mains use:** Separate political supremacy, procedural primacy and constitutional competence.
- **Mini recap:** Lok Sabha governs supply and survival; the Constitution governs Lok Sabha.

Paragraph model: Lok Sabha dominance is function-specific, not a general power to override every constitutional counterweight. Articles 75(3), 109, 113 and 117 privilege popular control of government and supply, while Articles 13, 246 and 368 preserve constitutional limits. Direct election justifies decisive authority over who governs and how public money is authorised, but not over rights, federal boundaries or amendment identity. Even a large majority cannot use an ordinary statute to evade a special constitutional procedure or destroy basic structure.

CLOSING RECALL FLOW - ANTI-DEFECTION, WHIP AND THE INDIVIDUAL PARLIAMENTARIAN

START / CONCEPT: Anti-defection, whip and the individual parliamentarian

|
v

EXACT TERMS: Tenth Schedule · party whip · Kihoto Hollohan · legislator autonomy · two thirds merger

|
v

MECHANISM / ARGUMENT: Party directions shape voting, while Speaker decisions remain subject to constitutional judicial review.

|
v

CONSEQUENCE / CONTRAST: Stability rises, but debate and member-level scrutiny may weaken when whips are overused.

|
v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: the one-third split exception is gone.

|
v

ANSWER-GRABBING FORMULATION: Anti-defection law stabilises government by narrowing the voting autonomy of legislators.

SESSION 18 - INDIAN PARLIAMENTARY GROUP, IPU AND CPA

VISUAL FIRST

TENTH SCHEDULE -> party direction / voluntary giving up / independent / nominated rules

-> Speaker/Chairman decision -> judicial review

WHIP STABILITY <-> INDIVIDUAL DELIBERATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Indian Parliamentary Group connects Parliament with global and Commonwealth networks.

Technical definition: IPG is India's National Group in the IPU and main India Branch of the CPA.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

IPG extends parliamentary dialogue through global and Commonwealth-specific networks.

MUST-WRITE KEYWORDS

- Indian Parliamentary Group
- Inter Parliamentary Union
- Commonwealth Parliamentary Association
- parliamentary diplomacy
- international exchange

How to use them: Frame the answer through Indian Parliamentary Group; define Inter Parliamentary Union, connect Commonwealth Parliamentary Association with parliamentary diplomacy to explain the mechanism, and use international exchange for the decisive comparison or qualification.

Visual 33 - Inter-parliamentary network

INDIAN PARLIAMENT

|

v

INDIAN PARLIAMENTARY GROUP, formed 1949

|

+--> India's National Group in the INTER-PARLIAMENTARY UNION
| global organisation of national parliaments, founded 1889

|

+--> Main India Branch of the COMMONWEALTH PARLIAMENTARY ASSOCIATION
| Commonwealth parliamentary network

- [FACT] All MPs may become IPG members. The Lok Sabha Speaker is ex-officio President; the Deputy Speaker and Rajya Sabha Deputy Chairman are ex-officio Vice-Presidents.
- [FACT] IPG supports exchanges, delegations and parliamentary diplomacy.
- [LIMIT] IPG is not a Ministry of External Affairs organ; IPU represents parliaments, not governments; CPA is Commonwealth-specific while IPU is global.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Anti-defection law stabilises governments by relocating much parliamentary choice from members to party leadership.
- **Named evidence:** The 52nd Amendment (1985) inserted the Tenth Schedule and Article 102(2); Kihoto Hollohan (1992) preserved adjudication subject to judicial review.
- **Analysis:** The threat of disqualification protects confidence majorities but broad whipping reduces independent scrutiny even on ordinary policy and legislation.
- **Qualification:** The Constitution does not require a whip on every vote; reform can narrow mandatory directions to confidence, supply and core manifesto commitments without abolishing party coherence.
- **Prelims trap:** Do not apply the two-thirds merger exception to a mere split or treat the presiding officer's ruling as immune from review.
- **Mains use:** Connect member decline to the scope of whips, not simply to party existence.
- **Mini recap:** Stability gained can become deliberation lost.

Paragraph model: Anti-defection law stabilises governments by relocating much parliamentary choice from members to party leadership. The 52nd Amendment (1985) inserted the Tenth Schedule and Article 102(2); Kihoto Hollohan (1992) preserved adjudication subject to judicial review. The threat of disqualification protects confidence majorities but broad whipping reduces independent scrutiny even on ordinary policy and legislation. The Constitution does not require a whip on every vote; reform can narrow mandatory directions to confidence, supply and core manifesto commitments without abolishing party coherence.

CLOSING RECALL FLOW - INDIAN PARLIAMENTARY GROUP, IPU AND CPA

START / CONCEPT: Indian Parliamentary Group, IPU and CPA

|

v

EXACT TERMS: Indian Parliamentary Group · Inter Parliamentary Union · Commonwealth Parliamentary Association · parliamentary diplomacy · international exchange

|

v

MECHANISM / ARGUMENT: Members use IPG channels for delegations, exchanges and inter-parliamentary dialogue.

|

v

CONSEQUENCE / CONTRAST: Parliamentary diplomacy supplements government diplomacy without becoming an executive ministry function.

|

v

UPSC TRAP / ANSWER-USE: IPU represents parliaments, while CPA is Commonwealth-specific.

|

v

ANSWER-GRABBING FORMULATION: IPG extends parliamentary dialogue through global and Commonwealth-specific networks.

SESSION 19 - PARLIAMENTARY DECLINE: DIAGNOSIS, COUNTER-EVIDENCE AND REFORM

VISUAL FIRST

INDIAN PARLIAMENTARY GROUP (national group/branch)

-> Inter-Parliamentary Union: global parliamentary dialogue

-> Commonwealth Parliamentary Association: Commonwealth exchange

PARLIAMENTARY FORUMS -> cross-party issue awareness, not executive ministries

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Parliamentary decline describes uneven use of strong powers, requiring diagnosis, counter-evidence and reform.

Technical definition: Executive agenda control, wide whips, disruption, guillotine and optional referral produce ratification risk.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Parliamentary decline is a gap between constitutional capacity and political use.

MUST-WRITE KEYWORDS

- **parliamentary decline**
- **executive dominance**
- **committee referral**
- **whip reform**
- **sitting calendar**

How to use them: Frame the answer through parliamentary decline; define executive dominance, connect committee referral with whip reform to explain the mechanism, and use sitting calendar for the decisive comparison or qualification.

Visual 34 - Decline mechanism

Executive controls most business and legislative drafting
+
wide whip and secure majority
+
short/uncertain sitting time and disruption
+
guillotine, limited committee referral, ordinance or contested Money Bill route
|
v
less member autonomy -> less debate -> thinner scrutiny -> ratification risk

Diagnosis

- [ANALYSIS] **Executive agenda dominance:** the government controls most House business and drafts most legislation.
- [ANALYSIS] **Party dominance:** the Tenth Schedule makes rebellion costly and narrows individual judgement.
- [ANALYSIS] **Time scarcity:** disruptions and limited sittings weaken questions, grants and clause-level debate.
- [ANALYSIS] **Bypass/acceleration:** ordinances, guillotine and overbroad Money Bill classification can reduce bicameral scrutiny.
- [ANALYSIS] **Committee erosion:** optional referral and non-binding recommendations weaken the institution best suited to technical scrutiny.

Counter-evidence

- [FACT] No-confidence, questions, motions, bicameral consent, budget authorisation and committee inquiry remain constitutionally available.
- [FACT] PAC-CAG scrutiny can expose financial irregularity; courts review constitutional boundaries; elections renew political responsibility.

- [ANALYSIS] Decline is therefore not institutional extinction. It is a gap between formal capacity and political use.

Visual 35 - Reform matrix

Problem	Reform direction	Qualification
Too little scrutiny time	Predictable calendar and minimum sitting norms	Preserve genuine emergency flexibility
Weak Bill examination	Default DRSC/Select Committee referral with reasoned exceptions	Avoid an absolute rule that blocks urgency
Overbroad whip	Limit compulsory whip to confidence and essential financial votes	Requires legal/political change
Speaker partisanship concerns	Reasoned rulings, timely defection decisions, independent tribunal debate	Neutrality cannot rest on convention alone
Money Bill misuse risk	Apply Article 110's "only" test strictly and preserve narrow judicial review	Do not erase legitimate fiscal procedure
Weak committee capacity	Longer tenure, research staff, attendance and action-taken follow-up	Reports can remain advisory yet influential
Opposition voice	Protect Question Hour, opposition business and chair conventions	Opposition also bears responsibility for functioning

Qualified verdict: [ANALYSIS] Parliament's problem is not absence of power but uneven conversion of power into scrutiny. Reform should change time, incentives and information, not merely add more devices.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Parliamentary diplomacy extends legislative exchange without transferring India's constitutional authority.
- **Named evidence:** The Indian Parliamentary Group serves as India's National Group of the IPU and main branch of the CPA, while parliamentary forums organise cross-party issue engagement.
- **Analysis:** These networks spread procedural learning, committee practice and dialogue across national legislatures.
- **Qualification:** They are not treaty-making governments, constitutional Houses or substitutes for standing committees; their resolutions do not bind Parliament as law.
- **Prelims trap:** Do not confuse the IPG with an inter-governmental organisation or a ministry.
- **Mains use:** Use these institutions as bounded evidence of parliamentary capacity and diplomacy.
- **Mini recap:** Dialogue travels; constitutional power stays home.

Paragraph model: Parliamentary diplomacy extends legislative exchange without transferring India's constitutional authority. The Indian Parliamentary Group serves as India's National Group of the IPU and main branch of the CPA, while parliamentary forums organise cross-party issue engagement. These networks spread procedural learning, committee practice and dialogue across national legislatures. They are not treaty-making governments, constitutional Houses or substitutes for standing committees; their resolutions do not bind Parliament as law.

CLOSING RECALL FLOW - PARLIAMENTARY DECLINE: DIAGNOSIS, COUNTER-EVIDENCE AND REFORM

START / CONCEPT: Parliamentary decline: diagnosis, counter-evidence and reform

|
v

EXACT TERMS: parliamentary decline · executive dominance · committee referral · whip reform · sitting calendar

|
v

MECHANISM / ARGUMENT: Diagnose the constraint, identify the lost scrutiny function and match it to a targeted reform.

|
v

CONSEQUENCE / CONTRAST: Better time, information and incentives can activate existing powers without inventing new devices.

|
v

UPSC TRAP / ANSWER-USE: Decline means uneven political use, not disappearance of constitutional authority.

|
v

ANSWER-GRABBING FORMULATION: Parliamentary decline is a gap between constitutional capacity and political use.

SESSION 20 - LIVE UNIT: 106TH AMENDMENT, CENSUS 2027 AND DELIMITATION

VISUAL FIRST

DECLINE SIGNALS -> fewer sittings + disruption + weak referral + guillotine + broad whip

COUNTER-EVIDENCE -> questions + committees + opposition + bicameral delay + courts

REFORM -> time guarantee + default scrutiny + reasoned rulings + narrow survival whip

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The women's reservation amendment is in force but its seat reservation is not yet operational.

Technical definition: Article 334A requires published post-commencement census figures and purpose-specific delimitation.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Women reservation remains non-operational until the Article 334A census-publication-delimitation chain completes.

MUST-WRITE KEYWORDS

- 106th Amendment
- Article 334A
- Census 2027
- women's reservation
- delimitation

How to use them: Frame the answer through 106th Amendment; define Article 334A, connect Census 2027 with women's reservation to explain the mechanism, and use delimitation for the decisive comparison or qualification.

A. Three registers that must never be merged

Visual 36 - Women's reservation status registers

REGISTER 1: ENACTED / INCORPORATED
September 2023 assent; Articles 330A, 332A and 334A in Constitution



REGISTER 2: COMMENCED
16 April 2026 notification under section 1(2)

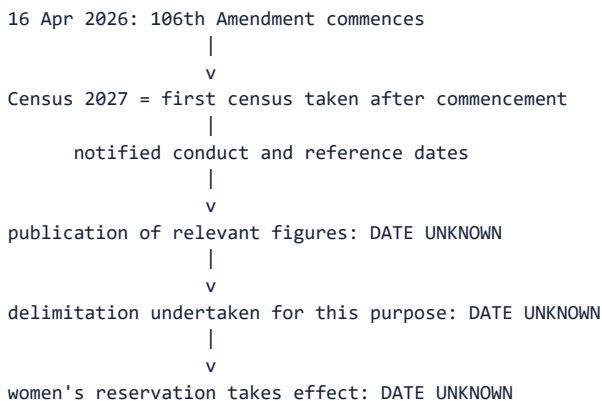


REGISTER 3: OPERATIONAL RESERVATION
NOT YET
requires publication of relevant first post-commencement census figures
-> delimitation undertaken for this purpose -> reservation takes effect

- [FACT] The 106th Amendment provides one-third reservation for women in Lok Sabha, State Legislative Assemblies and the Delhi Legislative Assembly, including within SC/ST-reserved seats.
- [FACT] It **commenced on 16 April 2026**.
- [FACT] Article 334A(1) makes operationalisation contingent on delimitation undertaken for this purpose after publication of relevant figures of the first census taken after commencement.
- [FACT] Article 334A(2) permits continuance as Parliament may by law determine; Article 334A(3) links rotation to each subsequent delimitation.
- [LIMIT] Quote the duration phrase as **"fifteen years from such commencement"**. Do not derive a 2041 end date because the referent of "such commencement" is contested in commentary.
- [LIMIT] Commencement is not operationalisation; no seat is presently reserved under these provisions.

B. Census 2027 controls

Visual 37 - Trigger sequence



Census control	Official position	Limit
Houselisting and Housing Census	1 April-30 September 2026 window; each State/UT chooses a fixed 30-day period	Do not claim a single nationwide completion date
Population Enumeration	February 2027 generally; September 2026 in identified snow-bound areas	Enumeration is not publication
Reference date	00:00 on 1 March 2027 generally	Snow-bound reference date differs
Snow-bound reference date	00:00 on 1 October 2026	Keep both reference dates separate
Design	First fully digital census; self-enumeration; caste enumeration announced	Do not predict findings or legal use
Legal frame	Census Act, 1948 and Census Rules, 1990	The census is statutory; Articles 82/334A borrow its figures

- [FACT] Census 2027 is also the first census after 2026 relevant to the 84th Amendment/Article 82 readjustment trigger.
- [LIMIT] Conduct date, reference date and publication date are different. The constitutional trigger turns on **publication**.

C. The defeated 2026 delimitation package

Visual 38 - Legislative event timeline

16 APRIL 2026: introduced in Lok Sabha
Constitution (131st Amendment) Bill
Delimitation Bill
Union Territories Laws (Amendment) Bill

17 APRIL 2026: constitutional amendment division
298 for | 230 against | 528 present and voting

Article 368 tests
majority of total membership: cleared
two-thirds present and voting: not cleared (needed about 352)

RESULT: amendment defeated; linked Bills did not pass

- [FACT] The amendment Bill proposed raising the Article 81 ceiling from 550 to **850**: up to 815 State seats and 35 UT seats.
- [FACT] It proposed permitting Parliament to determine the census figures used, with an immediate exercise on 2011 Census figures, and sought to advance operationalisation of the women's quota.
- [FACT] 298 votes exceeded a majority of the total elected strength of 543 but fell short of two-thirds of 528 present and voting.
- [ANALYSIS] The episode cleanly proves that a government majority is not an Article 368 amending majority.
- [LIMIT] Every number above belongs only to the defeated Bill/event. Existing Article 81 ceiling remains 550; existing elected Lok Sabha strength remains 543; Article 334A remains unchanged.
- [LIMIT] Do not say the Bill "lost the division": it received more ayes than noes but failed the special-majority threshold.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** India's parliamentary deficit is principally a problem of weakened use, not absence of constitutional instruments.
- **Named evidence:** Question Hour, committees, bicameral stages and financial votes coexist with executive agenda control, guillotining, disruptions and broad party discipline.
- **Analysis:** When time and referral shrink, legal passage may remain valid while representative justification and error correction deteriorate.
- **Qualification:** Decline is uneven: committees, opposition pressure, judicial review and electoral contestation still generate correction, so institutional diagnosis must avoid a total-collapse narrative.
- **Prelims trap:** Do not use a single session's productivity statistic as a timeless verdict.
- **Mains use:** Pair every criticism with mechanism, counter-evidence and implementable reform.
- **Mini recap:** The remedy is deeper use of Parliament, not romanticising an imagined past.

Paragraph model: India's parliamentary deficit is principally a problem of weakened use, not absence of constitutional instruments. Question Hour, committees, bicameral stages and financial votes coexist with executive agenda control, guillotining, disruptions and broad party discipline. When time and referral shrink, legal passage may remain valid while representative justification and error correction deteriorate. Decline is uneven: committees, opposition pressure, judicial review and electoral contestation still generate correction, so institutional diagnosis must avoid a total-collapse narrative.

CLOSING RECALL FLOW - LIVE UNIT: 106TH AMENDMENT, CENSUS 2027 AND DELIMITATION

START / CONCEPT: Live unit: 106th Amendment, Census 2027 and delimitation

|
v

EXACT TERMS: 106th Amendment · Article 334A · Census 2027 · womens reservation · delimitation

|
v

MECHANISM / ARGUMENT: Commencement is followed by census publication and delimitation before reserved seats take effect.

|
v

CONSEQUENCE / CONTRAST: The sequence links representation reform to an unresolved demographic and federal bargain.

|
v

UPSC TRAP / ANSWER-USE: The defeated 850-seat proposal and 2011 census basis are not existing law.

|
v

ANSWER-GRABBING FORMULATION: Women reservation remains non-operational until the Article 334A census-publication-delimitation chain completes.

SESSION 21 - ORDINANCE INTERFACE, DELEGATED LEGISLATION AND PRIVATE MEMBERS

VISUAL FIRST

PRIMARY LAW: Parliament fixes policy, power, limits and safeguards

|

+-> DELEGATED LAW: executive fills authorised detail -> Committee on Subordinate Legislation

|

+-> ORDINANCE Art 123: recess necessity -> same force as Act -> lay before Houses -> temporary

|

+-> PRIVATE MEMBER: non-minister proposes Bill/resolution -> allotted House time

Plain-language definition: These are three different ways in which legislative initiative or detail can move outside the ordinary Government-Bill floor sequence.

Technical definition: Article 123 ordinances are temporary primary legislation during the constitutionally specified recess condition; delegated legislation derives authority from a parent Act; private members' business is initiated by MPs who are not ministers under House rules.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Legislative flexibility is constitutional only when Parliament retains policy control, scrutiny and the capacity to reject or replace the instrument.

MUST-WRITE KEYWORDS

- **Article 123**
- **immediate action**
- **parent Act**
- **delegated legislation**
- **Committee on Subordinate Legislation**
- **Private Member's Bill**
- **repromulgation**
- [FACT] An ordinance may be promulgated when both Houses are not in session and the President is satisfied that circumstances require immediate action; ministerial advice governs the satisfaction.
- [FACT] It has the same force as an Act but must be laid before both Houses and ceases six weeks after reassembly unless disapproved earlier; when Houses reassemble on different dates, the later date controls the six-week calculation.
- [FACT] Ordinance power cannot amend the Constitution, exceed Parliament's legislative competence or violate Fundamental Rights.

- [FACT] *D. C. Wadhwa v. State of Bihar* (1987) condemned routine repromulgation; *Krishna Kumar Singh v. State of Bihar* (2017) treated repromulgation as a fraud on constitutional power and required effects to be justified rather than presumed permanent.
- [FACT] Delegated legislation is valid when the legislature states policy and standards while authorising subordinate detail; excessive delegation and departure from the parent Act remain reviewable.
- [INSTITUTION] The Committee on Subordinate Legislation checks whether rules and regulations remain within delegation, avoid improper retrospective effect and respect required procedure.
- [RULE] Private Members' Bills follow legislative stages but receive limited allotted time; their low enactment rate does not erase their agenda-setting and alternative-drafting value.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Ordinances and delegated legislation are instruments of necessity and administrative detail, not substitutes for Parliament.
- **Named evidence:** Article 123, *D. C. Wadhwa* (1987), *Krishna Kumar Singh* (2017) and the Committee on Subordinate Legislation establish temporariness, anti-repromulgation control and continuing scrutiny.
- **Analysis:** Flexibility can prevent legal paralysis and permit technical updating, but unchecked executive law-making compresses bicameral debate and accountability.
- **Qualification:** A valid ordinance may create legal effects and a valid delegation may be broad in a complex field; the constitutional defect lies in evasion, excess or absence of legislative standards, not in every use.
- **Prelims trap:** An ordinance is not available merely because one House is not sitting, and a rule cannot override its parent Act.
- **Mains use:** Compare source of authority, duration, scrutiny and judicial control across all three devices.
- **Mini recap:** Initiative may shift; parliamentary responsibility cannot.

Paragraph model: Ordinances and delegated legislation are instruments of necessity and administrative detail, not substitutes for Parliament. Article 123, *D. C. Wadhwa* (1987), *Krishna Kumar Singh* (2017) and the Committee on Subordinate Legislation establish temporariness, anti-repromulgation control and continuing scrutiny. Flexibility can prevent legal paralysis and permit technical updating, but unchecked executive law-making compresses bicameral debate and accountability. A valid ordinance may create legal effects and a valid delegation may be broad in a complex field; the constitutional defect lies in evasion, excess or absence of legislative standards, not in every use.

CLOSING RECALL FLOW - ORDINANCE, DELEGATION AND PRIVATE INITIATIVE

NEED / DETAIL / ALTERNATIVE -> choose correct device -> preserve parliamentary control
 ORDINANCE -> temporary primary law; DELEGATION -> parent-Act detail; PRIVATE MEMBER -> non-minister initiative

SESSION 22 - ARTICLES 79-122 DECODED, PROCEDURAL AUTONOMY AND JUDICIAL REVIEW

VISUAL FIRST

79-88 ORGANISATION -> 89-98 OFFICERS/SECRETARIATS -> 99-106 MEMBERS
-> 107-111 LEGISLATION -> 112-117 FINANCE -> 118-122 PROCEDURE/LANGUAGE/LIMITS
|
v

ARTICLE 122 procedural-irregularity shield != immunity for substantive unconstitutionality

Plain-language definition: The constitutional chapter is a connected operating system, not a list of isolated Article numbers.

Technical definition: Part V, Chapter II distributes Parliament's composition, officers, membership, legislative and financial procedure, rule-making, language and institutional-procedure protections across Articles 79-122.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 79-122 make Parliament autonomous in procedure but subordinate to the Constitution in power.

MUST-WRITE KEYWORDS

- Articles 79-122
- Article 118 rules
- Article 119 financial procedure
- Article 120 language
- Article 121 judicial-conduct bar
- Article 122 procedural irregularity
- substantive illegality

Article	Decoded rule
79	Parliament consists of the President, Council of States and House of the People.
80	Rajya Sabha composition: State/UT representatives and twelve presidential nominees in specified fields.
81	Lok Sabha composition and population-representation principles.
82	Parliament provides post-census readjustment through an authority and law, subject to freeze provisos.
83	Rajya Sabha continues; Lok Sabha normally lasts five years with bounded Emergency extension.
84	Citizenship, oath-related requirement, age and parliamentary-law qualifications for membership.
85	President summons, prorogues and dissolves Lok Sabha; no more than six months between specified sittings.
86	President may address either/both Houses and send messages.
87	Special presidential address after each general election and at the first session each year.
88	Ministers and Attorney-General may participate across Houses; vote follows membership.
89-92	Rajya Sabha Chairman/Deputy Chairman, vacancies, acting arrangements and removal-proceeding safeguards.
93-96	Lok Sabha Speaker/Deputy Speaker, continuity, acting arrangements and removal-proceeding safeguards.
97	Presiding-officer salaries and allowances are fixed by parliamentary law.
98	Separate House secretariats, possible common posts and parliamentary regulation of service conditions.
99	Member must take the Third Schedule oath/affirmation before taking the seat.
100	Present-and-voting majority, casting vote, validity despite vacancies and one-tenth quorum.
101	Vacation of seats, resignation, double membership and unauthorised absence.
102	Constitutional/statutory disqualifications plus Tenth Schedule through clause (2).
103	President decides Article 102(1) sitting-member questions after obtaining ECI opinion.

Article	Decoded rule
104	Monetary liability for knowingly sitting/voting before oath or while unqualified/disqualified.
105	Speech/vote/publication immunities and other parliamentary privileges.
106	MPs' salaries and allowances are determined by parliamentary law.
107	Ordinary introduction and passage rule; both Houses ordinarily agree.
108	Joint sitting for specified ordinary-Bill deadlocks.
109	Special Money Bill route and Rajya Sabha's fourteen-day recommendation window.
110	Exhaustive 'only' definition and Speaker certification of a Money Bill.
111	Presidential assent, withholding and one-return power for a non-Money Bill.
112	Annual Financial Statement and charged/voted expenditure distinction.
113	Discussion of estimates; Lok Sabha voting on demands for grants.
114	Appropriation law required for withdrawal from the Consolidated Fund.
115	Supplementary, additional and excess grants.
116	Vote on account, vote of credit and exceptional grant.
117	Financial Bill-I and Financial Bill-II recommendation/origin controls.
118	Each House makes procedure rules; President may make initial rules; joint-sitting procedure is regulated.
119	Parliament may by law regulate timely completion of financial business.
120	Hindi or English, with presiding permission for mother tongue.
121	No discussion of higher-court judges' conduct except on a removal motion.
122	Courts do not invalidate proceedings for mere procedural irregularity or supervise authorised procedural/order powers.

- [FACT] Article 122 does not erase judicial review for lack of legislative competence, Fundamental Rights violation, mala fides or substantive constitutional illegality; *Raja Ram Pal* (2007) states the controlling distinction.
- [FACT] Article 118 rules are subordinate to the Constitution and statutes; convention fills gaps but cannot amend constitutional text.
- [ANALYSIS] A strong answer labels the source of each proposition: constitutional text, statute, House rule, convention, judicial holding or dated practice.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Parliamentary autonomy protects deliberation from routine judicial micromanagement while constitutional review protects the higher legal order.
- **Named evidence:** Articles 118 and 122, read with *Raja Ram Pal* (2007), distinguish House control of procedure from judicial control of substantive illegality.
- **Analysis:** The boundary lets elected chambers organise business and discipline members without turning procedural privilege into a power to violate competence, rights or constitutional structure.
- **Qualification:** Courts ordinarily avoid testing internal irregularities or the wisdom of rulings; intervention requires a constitutional defect, not dissatisfaction with parliamentary technique.
- **Prelims trap:** 'Proceedings shall not be called in question for procedural irregularity' does not mean that every parliamentary act is immune.
- **Mains use:** End broad Parliament answers by distinguishing constitutional text, rules, convention, practice and review.
- **Mini recap:** Procedure is House-controlled; power remains Constitution-controlled.

Paragraph model: Parliamentary autonomy protects deliberation from routine judicial micromanagement while constitutional review protects the higher legal order. Articles 118 and 122, read with Raja Ram Pal (2007), distinguish House control of procedure from judicial control of substantive illegality. The boundary lets elected chambers organise business and discipline members without turning procedural privilege into a power to violate competence, rights or constitutional structure. Courts ordinarily avoid testing internal irregularities or the wisdom of rulings; intervention requires a constitutional defect, not dissatisfaction with parliamentary technique.

CLOSING RECALL FLOW - ARTICLES 79-122 AND REVIEW

ORGANISE -> STAFF -> QUALIFY -> DELIBERATE -> LEGISLATE -> AUTHORISE MONEY -> REGULATE PROCEDURE
HOUSE AUTONOMY + CONSTITUTIONAL SUPREMACY = RESPONSIBLE PARLIAMENT

BASIC MCQS / REMEDIATION

32 original MCQs

Answer rotation: ABCD repeated eight times. Each question contains four substantive option-specific explanations and one unique question-specific Examiner trap.

MCQ 1. Article 79 composition

Under Article 79, Parliament consists of:

A. President, Rajya Sabha and Lok Sabha B. Prime Minister, Rajya Sabha and Lok Sabha C. President and Lok Sabha only D. Rajya Sabha and Lok Sabha only

Answer: A.

Option explanations:

- **A:** Correct: Article 79 makes the President an integral component with both Houses.
- **B:** Incorrect: the Prime Minister leads government but is not a separate component of Parliament.
- **C:** Incorrect: excluding Rajya Sabha removes the constitutionally created Council of States.
- **D:** Incorrect: the two Houses alone omit the President from the legislative institution.

Examiner trap 1: The trap turns 'not a member of either House' into 'not part of Parliament'.

MCQ 2. Rajya Sabha election

How are elected State representatives to Rajya Sabha chosen?

A. Direct FPTP by State voters B. Proportional representation by single transferable vote through elected MLAs C. List voting by all members of the State Legislature D. Nomination by the Governor

Answer: B.

Option explanations:

- **A:** Incorrect: direct territorial election belongs to Lok Sabha.
- **B:** Correct: elected MLAs vote through proportional representation by single transferable vote.
- **C:** Incorrect: the electorate excludes Legislative Council members and the method is not closed-list PR.
- **D:** Incorrect: Governors do not nominate the elected State component.

Examiner trap 2: The electorate is elected MLAs, not the whole State Legislature.

MCQ 3. Lok Sabha Emergency extension

During a national emergency, Parliament may extend Lok Sabha's term:

A. once for the entire emergency B. for six months at a time without an outer limit C. one year at a time, not beyond six months after the emergency ends D. only after Rajya Sabha is dissolved

Answer: C.

Option explanations:

- **A:** Incorrect: Article 83 permits repeated annual extensions while the emergency operates.
- **B:** Incorrect: the extension unit is one year, with a six-month post-emergency outer limit.
- **C:** Correct: both the annual unit and final six-month ceiling must be stated.
- **D:** Incorrect: Rajya Sabha is a continuing House and is never dissolved.

Examiner trap 3: UPSC often swaps the one-year extension with the six-month terminal limit.

MCQ 4. Seat-freeze trigger

Which statement correctly describes the present constitutional readjustment gate?

A. Readjustment automatically began on 1 January 2026. B. The 87th Amendment permanently prohibited changing State seat totals. C. Only Census conduct, not publication, is constitutionally relevant. D. Relevant figures of the first census taken after 2026 must be published before the deferred readjustment opens.

Answer: D.

Option explanations:

- **A:** Incorrect: the date 2026 is not self-executing.
- **B:** Incorrect: the 87th Amendment changed the census basis for boundary work without creating a permanent ban.
- **C:** Incorrect: publication of relevant figures is part of the constitutional wording.
- **D:** Correct: the 84th Amendment preserved the publication-linked gate.

Examiner trap 4: Do not convert 'after 2026' into 'in 2026'.

MCQ 5. Article 84 qualification

Which is a constitutional qualification for Parliament membership?

A. Citizenship of India B. A university degree C. Ten years' residence in the represented State D. Prior service in a legislature

Answer: A.

Option explanations:

- **A:** Correct: citizenship is expressly required alongside age, oath-related and statutory conditions.
- **B:** Incorrect: the Constitution prescribes no degree requirement.
- **C:** Incorrect: no such ten-year constitutional residence test exists.
- **D:** Incorrect: legislative experience is politically relevant but legally unnecessary.

Examiner trap 5: Statutory qualifications may supplement Article 84, but educational and experience conditions are not implied.

MCQ 6. Article 103 forum

Who decides whether a sitting MP incurred an Article 102(1) disqualification?

- A. Speaker acting without another institution B. President after obtaining the Election Commission's opinion C. Supreme Court in original jurisdiction D. Returning Officer after the election

Answer: B.

Option explanations:

- **A:** Incorrect: the Speaker's separate Tenth Schedule jurisdiction must not be imported.
- **B:** Correct: Article 103 creates the President-ECI route.
- **C:** Incorrect: courts may review but do not replace the first-instance constitutional forum.
- **D:** Incorrect: a returning officer handles candidature-stage issues, not this later reference.

Examiner trap 6: Identify whether the issue is Article 102(1), defection or election validity before naming the forum.

MCQ 7. Article 101 absence

A House may declare an MP's seat vacant for unauthorised absence of:

- A. thirty calendar days B. forty-five sittings C. sixty days calculated with Article 101's excluded periods D. six consecutive months in every case

Answer: C.

Option explanations:

- **A:** Incorrect: thirty days is not the constitutional period.
- **B:** Incorrect: Article 101 does not use forty-five sittings.
- **C:** Correct: sixty days applies subject to constitutionally excluded adjournment/prorogation periods.
- **D:** Incorrect: six months is the Article 85 session-gap ceiling, not the absence rule.

Examiner trap 7: The distractor borrows six months from summoning law.

MCQ 8. Article 85

Article 85 constitutionally requires that:

- A. three named sessions be held annually B. Parliament sit for at least 100 days C. both Houses always meet simultaneously D. six months shall not intervene between the last sitting of one session and first sitting of the next

Answer: D.

Option explanations:

- **A:** Incorrect: Budget, Monsoon and Winter are conventional labels.
- **B:** Incorrect: no constitutional minimum sitting-day number is written.
- **C:** Incorrect: Houses may have different sitting arrangements.
- **D:** Correct: the inter-session ceiling is the textual safeguard.

Examiner trap 8: At least two sessions is an inference from the interval rule, not the Article's wording.

MCQ 9. Quorum

Until Parliament otherwise provides, Article 100 fixes quorum at:

A. one-tenth of the total number of members of the House B. one-third of sanctioned strength C. fifty members in either House D. a majority of members present

Answer: A.

Option explanations:

- **A:** Correct: one-tenth is the constitutional fraction.
- **B:** Incorrect: one-third is associated with Rajya Sabha retirement, not quorum.
- **C:** Incorrect: the Houses do not share a fixed fifty-member quorum.
- **D:** Incorrect: present members cannot define quorum circularly.

Examiner trap 9: Keep quorum separate from the majority needed to decide an ordinary question.

MCQ 10. Article 88 participation

A Rajya Sabha minister in Lok Sabha may:

A. vote only on Money Bills B. speak and participate but vote only through House membership C. neither speak nor join a committee D. cast one vote in each House

Answer: B.

Option explanations:

- **A:** Incorrect: Article 88 creates no special financial vote.
- **B:** Correct: voice extends across Houses; voting follows membership.
- **C:** Incorrect: participation expressly includes relevant committees.
- **D:** Incorrect: ministerial office never creates dual-House membership.

Examiner trap 10: Article 88 enlarges participation, not the electorate of either House.

MCQ 11. Speaker removal sitting

While the Speaker's removal resolution is under consideration, which combination is correct?

A. Speaker presides and has only a casting vote B. Speaker cannot speak or vote C. Speaker does not preside, may vote in the first instance, and has no casting vote D. Deputy Speaker must also leave the House

Answer: C.

Option explanations:

- **A:** Incorrect: Article 96 removes the Speaker from the chair for this proceeding.
- **B:** Incorrect: the Speaker retains speech and first-instance voting rights.
- **C:** Correct: this balances participation with conflict-of-interest control.
- **D:** Incorrect: no automatic exclusion of the Deputy Speaker follows.

Examiner trap 11: The special voting rule reverses the Speaker's ordinary no-first-vote/casting-vote position.

MCQ 12. Rajya Sabha Chairman

Which statement about the Rajya Sabha Chairman is correct?

A. The Chairman is elected from Rajya Sabha members. B. The Chairman votes in the first instance on every question. C. The Chairman continues as an MP after Vice-Presidential resignation. D. The Vice-President is ex officio Chairman but is not a Rajya Sabha member.

Answer: D.

Option explanations:

- **A:** Incorrect: Rajya Sabha elects the Deputy Chairman, not the Chairman.
- **B:** Incorrect: the Chairman ordinarily has only a casting vote on equality.
- **C:** Incorrect: the office flows from the Vice-Presidency, not House membership.
- **D:** Correct: Article 64 and Article 89 create the ex officio arrangement.

Examiner trap 12: Do not describe the Vice-President as the presiding 'member' of Rajya Sabha.

MCQ 13. Privilege and bribery

What did *Sita Soren v. Union of India* (2024) establish?

A. Accepting a bribe for a legislative speech or vote is not immunised by Articles 105/194. B. All parliamentary speech can be prosecuted. C. Privilege provisions were struck down. D. Only the House may investigate bribery.

Answer: A.

Option explanations:

- **A:** Correct: the offence of bribery is independent of the protected legislative act.
- **B:** Incorrect: bona fide speech and voting immunity survives.
- **C:** Incorrect: the Court interpreted privilege; it did not invalidate the Articles.
- **D:** Incorrect: ordinary criminal law and courts remain available.

Examiner trap 13: The holding narrows corruption immunity without destroying deliberative immunity.

MCQ 14. Question Hour

Which pairing is correct?

A. Starred-written-no supplementaries B. Unstarred-written-no supplementaries C. Short-notice-written only D. Zero Hour-formally codified first hour

Answer: B.

Option explanations:

- **A:** Incorrect: starred questions are answered orally and permit supplementaries.
- **B:** Correct: unstarred questions create a written record without oral follow-up.
- **C:** Incorrect: short-notice questions are ordinarily oral on urgent matters.
- **D:** Incorrect: Zero Hour is an informal Indian innovation, not the rule-based first hour.

Examiner trap 14: The answer turns on reply mode and follow-up, not on urgency alone.

MCQ 15. No-confidence motion

Which statement is correct about a no-confidence motion?

A. It may be moved in either House. B. It must list charges against each minister. C. It is a Lok Sabha device requiring fifty members to support leave and tests the Council collectively. D. Its admission itself compels resignation.

Answer: C.

Option explanations:

- **A:** Incorrect: collective responsibility is to Lok Sabha.
- **B:** Incorrect: reasons need not be stated for no-confidence.
- **C:** Correct: Rule 198 admission and Article 75(3) consequence must be combined.
- **D:** Incorrect: only passage, not admission, determines political survival.

Examiner trap 15: Do not merge censure's reasoned criticism with no-confidence's bare majority test.

MCQ 16. Resolution distinction

Which statement best distinguishes a resolution?

A. Every procedural motion is a resolution. B. A resolution can never arise under a statute. C. A resolution necessarily removes the government. D. A resolution is a self-contained substantive expression of House opinion or decision; every resolution is a motion, but not every motion is a resolution.

Answer: D.

Option explanations:

- **A:** Incorrect: many motions merely regulate procedure.
- **B:** Incorrect: statutory resolutions are a recognised category.
- **C:** Incorrect: most resolutions do not test confidence.
- **D:** Correct: the hierarchy captures both form and consequence.

Examiner trap 16: UPSC may use 'motion' as the wider genus and 'resolution' as a substantive species.

MCQ 17. Private Member's Bill

A Private Member's Bill is:

A. introduced by an MP who is not a minister and processed under specially allotted House business B. introduced only by a recognised opposition leader C. exempt from presidential assent D. incapable of becoming law

Answer: A.

Option explanations:

- **A:** Correct: sponsor status, not party, defines private-member business.
- **B:** Incorrect: government-party backbenchers may also be private members.
- **C:** Incorrect: enactment still requires the ordinary constitutional completion route.
- **D:** Incorrect: rarity of enactment is political practice, not legal incapacity.

Examiner trap 17: Private member means non-minister, not opposition member.

MCQ 18. Ordinary Bill origin

An ordinary Union Bill may constitutionally originate:

A. only in Lok Sabha B. in either House, subject to any specific constitutional recommendation requirement C. only after joint-committee scrutiny D. only when introduced by a minister

Answer: B.

Option explanations:

- **A:** Incorrect: Lok Sabha-only origin is a special financial rule.
- **B:** Correct: Article 107 permits either-House origin for ordinary legislation.
- **C:** Incorrect: committee scrutiny is not an automatic precondition.
- **D:** Incorrect: private members may introduce Bills.

Examiner trap 18: Classify the Bill before applying an origin restriction.

MCQ 19. Money Bill content

For a Bill to be a Money Bill under Article 110, it must:

A. contain at least one taxation clause regardless of other content B. be titled a Finance Bill C. contain only listed Article 110 matters and incidental provisions D. be passed at a joint sitting

Answer: C.

Option explanations:

- **A:** Incorrect: unrelated substantive provisions defeat the 'only' requirement.
- **B:** Incorrect: title does not determine constitutional classification.
- **C:** Correct: exclusivity is the controlling textual firewall.
- **D:** Incorrect: no joint sitting exists for Money Bills.

Examiner trap 19: A financial subject somewhere in the Bill is insufficient.

MCQ 20. Financial Bill-II

Which statement correctly describes an Article 117(3) Financial Bill?

A. It is a Money Bill. B. It can originate only in Lok Sabha. C. Rajya Sabha may only recommend changes. D. It may originate in either House, but presidential recommendation is required before consideration.

Answer: D.

Option explanations:

- **A:** Incorrect: it contains expenditure implications without being confined to Article 110.
- **B:** Incorrect: the Lok Sabha-only rule belongs to clause (1).
- **C:** Incorrect: both Houses otherwise have ordinary-Bill powers.
- **D:** Correct: recommendation timing is before consideration.

Examiner trap 20: Do not apply Financial Bill-I restrictions to Financial Bill-II.

MCQ 21. Appropriation Bill

What is the central function of an Appropriation Bill?

A. To authorise withdrawal from the Consolidated Fund of India for voted grants and charged expenditure B. To impose every tax announced in the Budget C. To obtain Rajya Sabha's vote on demands for grants D. To approve CAG reports

Answer: A.

Option explanations:

- **A:** Correct: Article 114 converts parliamentary financial approval into lawful withdrawal authority.
- **B:** Incorrect: taxation measures ordinarily travel through finance legislation.
- **C:** Incorrect: demands for grants are voted only in Lok Sabha.
- **D:** Incorrect: PAC examines CAG material after expenditure.

Examiner trap 21: Budget presentation and grant voting still do not permit withdrawal without appropriation.

MCQ 22. Joint-sitting trigger

Which is an Article 108 deadlock trigger for an eligible Bill?

A. President returns the Bill once. B. The second House rejects it or the Houses finally disagree on amendments. C. A State Legislature refuses ratification. D. Rajya Sabha recommends changes to a Money Bill.

Answer: B.

Option explanations:

- **A:** Incorrect: presidential reconsideration is governed by Article 111.
- **B:** Correct: rejection and final disagreement are express deadlock routes.
- **C:** Incorrect: State ratification belongs to Article 368 and has no joint sitting.
- **D:** Incorrect: Money Bill recommendations are handled under Article 109.

Examiner trap 22: Joint sitting resolves inter-House ordinary-law deadlock, not every failed consent.

MCQ 23. Bill lapse

Which Bill lapses on Lok Sabha dissolution?

A. A Bill passed by both Houses awaiting assent B. A Rajya-Sabha-origin Bill still pending only in Rajya Sabha C. A Bill passed by Lok Sabha and pending in Rajya Sabha D. A Bill for which joint-sitting intention was notified before dissolution

Answer: C.

Option explanations:

- **A:** Incorrect: bicameral passage preserves the Bill for assent.
- **B:** Incorrect: it has not acquired an expired Lok Sabha mandate.
- **C:** Correct: unfinished Lok Sabha passage lapses with that House.
- **D:** Incorrect: prior joint-sitting notification prevents lapse.

Examiner trap 23: Track whether the dissolved Lok Sabha had passed the Bill.

MCQ 24. Constitution Amendment Bill

Which statement about an Article 368 Bill is correct?

A. It must originate in Lok Sabha. B. A simple majority in a joint sitting can pass it. C. The President may return it for reconsideration. D. Each House must separately pass the required special majority; no joint sitting cures failure.

Answer: D.

Option explanations:

- **A:** Incorrect: either House may introduce it.
- **B:** Incorrect: Article 108 does not apply.
- **C:** Incorrect: after valid passage the President shall give assent.
- **D:** Correct: bicameral special consent is independently required.

Examiner trap 24: An amendment Bill is not an ordinary Bill with a higher combined vote.

MCQ 25. Charged expenditure

Charged expenditure on the Consolidated Fund of India:

A. may be discussed but is not submitted to Lok Sabha vote B. cannot even be discussed C. is voted by Rajya Sabha alone D. requires a cut motion

Answer: A.

Option explanations:

- **A:** Correct: Article 113 preserves discussion while withholding the grant vote.
- **B:** Incorrect: non-votable does not mean non-discussable.
- **C:** Incorrect: Rajya Sabha does not vote demands for grants.
- **D:** Incorrect: cut motions apply to votable demands.

Examiner trap 25: UPSC tests the difference between discussion and voting.

MCQ 26. Public Accounts Committee

Which description of the PAC is correct?

A. Thirty Lok Sabha members examining estimates B. Twenty-two members examining CAG-linked accounts; Opposition chair is a convention C. Thirty-one members examining ministry Bills D. A minister-chaired consultative body

Answer: B.

Option explanations:

- **A:** Incorrect: that composition and forward-looking function belong to Estimates Committee.
- **B:** Correct: 15 Lok Sabha and 7 Rajya Sabha members conduct post-expenditure scrutiny.
- **C:** Incorrect: 31-member structures describe DRSCs.
- **D:** Incorrect: ministers cannot sit on the financial committees.

Examiner trap 26: Opposition chairmanship is convention, while composition and function come from rules.

MCQ 27. Estimates Committee

Which feature belongs to the Estimates Committee?

A. Seven Rajya Sabha members B. Post-audit examination of CAG reports C. Thirty Lok Sabha-only members examining economy and efficiency in estimates D. Review of delegated rules

Answer: C.

Option explanations:

- **A:** Incorrect: Rajya Sabha has no representation on this committee.
- **B:** Incorrect: that is the PAC's principal audit route.
- **C:** Correct: it is the largest financial committee and looks forward to economies.
- **D:** Incorrect: subordinate legislation has a separate scrutiny committee.

Examiner trap 27: Do not swap pre-expenditure economy review with post-expenditure audit.

MCQ 28. Subordinate legislation

The Committee on Subordinate Legislation principally examines whether:

A. the Council retains confidence B. CAG certified expenditure C. a Bill should be treated as a Money Bill D. rules and regulations remain within the parent Act and proper delegated authority

Answer: D.

Option explanations:

- **A:** Incorrect: confidence belongs to the House floor.
- **B:** Incorrect: PAC handles CAG-linked financial scrutiny.
- **C:** Incorrect: Money Bill certification belongs to the Speaker.
- **D:** Correct: the committee checks delegated-law legality and propriety.

Examiner trap 28: The committee scrutinises executive-made detail after legislative delegation.

MCQ 29. Article 249

A valid Rajya Sabha resolution under Article 249 enables:

A. Parliament to legislate temporarily on a State List matter in the national interest B. Rajya Sabha to amend the State List permanently C. the President to dissolve a State Assembly D. creation of an All India Service

Answer: A.

Option explanations:

- **A:** Correct: the resolution opens a time-bound national-interest legislative window.
- **B:** Incorrect: constitutional distribution is not permanently rewritten.
- **C:** Incorrect: dissolution questions arise under other provisions.
- **D:** Incorrect: service creation is Article 312.

Examiner trap 29: Article 249 shifts legislative competence temporarily, not ownership of the subject.

MCQ 30. Article 312

Article 312 requires which gateway for creating a new All India Service?

A. Lok Sabha simple majority B. Rajya Sabha resolution by two-thirds of members present and voting in the national interest C. Approval by every State Legislature D. A joint sitting

Answer: B.

Option explanations:

- **A:** Incorrect: the special federal gateway is located in Rajya Sabha.
- **B:** Correct: the present-and-voting supermajority precedes parliamentary law.
- **C:** Incorrect: unanimous State ratification is not required.
- **D:** Incorrect: Article 108 is irrelevant.

Examiner trap 30: Keep the Article 312 gateway distinct from the later law that creates the service.

MCQ 31. Ordinance reassembly

If the Houses reassemble on different dates, the six-week ordinance period is counted from:

A. the earlier House's date B. the date of promulgation C. the later reassembly date D. the next Budget Session

Answer: C.

Option explanations:

- **A:** Incorrect: the Constitution uses the later date for the combined parliamentary opportunity.
- **B:** Incorrect: promulgation begins operation but not the six-week reassembly clock.
- **C:** Correct: the later date controls.
- **D:** Incorrect: conventional session labels do not govern Article 123 expiry.

Examiner trap 31: The two-House calculation is a classic close-option trap.

MCQ 32. Article 122

Which statement best states Article 122?

A. It bars all judicial review of parliamentary action. B. It makes every Speaker ruling final against Fundamental Rights. C. It allows courts to supervise daily House procedure. D. It protects proceedings from challenge for mere procedural irregularity while leaving substantive constitutional illegality reviewable.

Answer: D.

Option explanations:

- **A:** Incorrect: Raja Ram Pal rejects blanket immunity.
- **B:** Incorrect: constitutional violations remain reviewable.
- **C:** Incorrect: courts do not manage ordinary parliamentary procedure.
- **D:** Correct: procedural autonomy and constitutional supremacy coexist.

Examiner trap 32: Irregularity is not the same as illegality or unconstitutionality.

PYQS AND ANSWER PRACTICE

Answer-writing control

Marks	Maximum length	Minimum viable architecture
10	150 words	Direct thesis -> two mechanisms -> named evidence -> qualification -> verdict
15	250 words	Define boundary -> 4-5 dimensions -> case/committee/article evidence -> counterpoint -> reform/verdict
20	250 words	Constitutional map -> institutional operation -> criticism and counter-evidence -> reforms -> qualified conclusion

Mandatory paragraph logic: claim -> named evidence -> analysis -> qualification. A list of devices without explaining how they change executive incentives is not analysis.

Audited routed Prelims PYQs

[FACT] The question numbers and neutral demands below follow the repository's audited local official-paper routing ledgers. Older scanned booklets are recorded without inventing an answer key. The 2024-2025 letters are printed only because final official Set-A keys are held locally; the 2026 key is provisional and is therefore withheld.

PYQ-P1. 2018 Prelims - routed question 1

Verified demand: First Lok Sabha opposition party and Leader of Opposition history.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 1 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P2. 2018 Prelims - routed question 20

Verified demand: Parliamentary committee that scrutinises delegated legislation.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 2 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P3. 2018 Prelims - routed question 31

Verified demand: Constitutional provisions and definition of a Money Bill.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 3 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P4. 2019 Prelims - routed question 49

Verified demand: Parliament (Prevention of Disqualification) Act and office of profit.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 4 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P5. 2019 Prelims - routed question 69

Verified demand: Parliamentary committees reviewing independent sector regulators.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 5 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P6. 2020 Prelims - routed question 2

Verified demand: Area in which Rajya Sabha has power equal to Lok Sabha.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 6 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P7. 2020 Prelims - routed question 3

Verified demand: MPLADS durable assets, SC/ST allocation and carry-forward rules.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 7 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P8. 2020 Prelims - routed question 20

Verified demand: Presidential summoning and the constitutional session interval.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 8 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P9. 2022 Prelims - routed question 15

Verified demand: Exclusive constitutional powers of Lok Sabha.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 9 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P10. 2022 Prelims - routed question 20

Verified demand: Election and rulings of the Deputy Speaker of Lok Sabha.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 10 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P11. 2023 Prelims - routed question 37

Verified demand: Finance Bill and Money Bill: Rajya Sabha powers and joint sitting.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 11 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P12. 2024 Prelims - routed question 68

Verified demand: Money Bill: Article 109, Rajya Sabha recommendation and non-binding changes.

Official Set-A answer: C.

Answer route: Use the Parliament rule taught in Sessions 12 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P13. 2024 Prelims - routed question 80

Verified demand: Lok Sabha Ethics Committee: ad hoc origin, complaint route and sub judice bar.

Official Set-A answer: C.

Answer route: Use the Parliament rule taught in Sessions 13 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P14. 2024 Prelims - routed question 81

Verified demand: Nari Shakti Vandan Adhiniyam: commencement, duration and SC-women sub-reservation.

Official Set-A answer: C.

Answer route: Use the Parliament rule taught in Sessions 14 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P15. 2024 Prelims - routed question 93

Verified demand: Speaker during consideration of a removal resolution.

Official Set-A answer: A.

Answer route: Use the Parliament rule taught in Sessions 15 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P16. 2024 Prelims - routed question 94

Verified demand: Bills that lapse on dissolution of Lok Sabha.

Official Set-A answer: B.

Answer route: Use the Parliament rule taught in Sessions 16 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P17. 2024 Prelims - routed question 95

Verified demand: Prorogation and dissolution by the President on ministerial advice.

Official Set-A answer: C.

Answer route: Use the Parliament rule taught in Sessions 17 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P18. 2025 Prelims - routed question 87

Verified demand: Speaker's post-dissolution continuity, party membership and removal majority.

Official Set-A answer: C.

Answer route: Use the Parliament rule taught in Sessions 18 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P19. 2026 Prelims - routed question 58

Verified demand: Starred/unstarred questions and supplementary questions in Parliament.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 19 and state the decisive close-option distinction rather than guessing from political practice.

PYQ-P20. 2026 Prelims - routed question 59

Verified demand: Parliamentary Committee on Welfare of Scheduled Castes and Scheduled Tribes.

Answer withheld pending official UPSC key.

Answer route: Use the Parliament rule taught in Sessions 20 and state the decisive close-option distinction rather than guessing from political practice.

Eight directly routed Mains PYQs with model answers

Provenance rule: The seven 2018-2023 demands are routed by the audited Core owner. The 2024 GS-II Q3 wording is verified in the cross-owned Polity 11/16 packages. Neutral wording is used where exact UPSC wording has not been independently reproduced here.

PYQ-M1. 2018 GS-II Q4 - Usefulness of parliamentary committees, especially the Estimates Committee

Demand decoding

- "Discuss" requires functions, usefulness, limitations and a balanced conclusion.
- **10 marks | 150 words:** use three institutional units, not a catalogue of every committee.

Model answer

Claim: Parliamentary committees are indispensable "working rooms" of Parliament because they preserve detailed scrutiny when plenary time is scarce.

Named evidence: The **Estimates Committee** has **30 Lok Sabha members**, excludes ministers and examines budget estimates for economy, efficiency and administrative improvement. It complements the **PAC**, which audits CAG findings after expenditure, and **CoPU**, which specialises in public undertakings. The **24 DRSCs**, each with 21 Lok Sabha and 10 Rajya Sabha members, examine demands for grants, referred Bills and ministry reports.

Analysis: Small membership, evidence-taking, continuity and less theatrical party competition allow technical and often cross-party scrutiny. Estimates scrutiny is preventive: it asks whether public money can be spent better before audit identifies failure.

Qualification: Reports are advisory; attendance, research support and Bill referral vary. Estimates recommendations cannot themselves alter grants.

Verdict: Committees do not replace the House, but they make its financial and legislative control credible. Routine referral and stronger follow-up would increase their usefulness.

Examiner note: Exact Estimates-PAC-CoPU differentiation, DRSC evidence and one limitation make this complete rather than descriptive.

Mark/word discipline: 10 marks; target 145-155 words; 3 named committee units plus a qualified verdict.

Why this earns marks: Exact committee differentiation, causal usefulness and a bounded advisory-status verdict satisfy the directive.

How to improve this answer: If compressed, retain Estimates 30 LS-only, PAC-CAG, one DRSC function and the advisory/referral limit; drop the wider committee catalogue.

PYQ-M2. 2019 GS-II Q15 - Decline of the individual parliamentarian and debate quality

Demand decoding

- "Discuss" requires mechanisms causing decline, surviving opportunities and reforms.
- **15 marks | 250 words:** separate member autonomy, House time and scrutiny quality.

Model answer

Claim: The individual MP's law-making role has declined because party and executive institutions increasingly determine both the vote and the agenda.

Named evidence and analysis: First, the **Tenth Schedule** makes defiance of a party direction potentially disqualifying. This stabilises government but converts many legislative choices into party commands. Second, the executive controls most government business and drafting; limited sitting time, disruption and the **guillotine** can pass demands without discussion. Third, fewer or selective referrals to **DRSCs** remove the main site for clause-level, evidence-based scrutiny. Fourth, ordinances under **Article 123** and an overbroad **Article 110** Money Bill route can compress prior bicameral deliberation. Finally, the rarity of successful Private Members' Bills signals limited non-government law-making space.

Counter-evidence: MPs still use starred questions, Zero Hour, motions, committee reports, amendments and constituency knowledge. Rajya Sabha scrutiny and opposition-led PAC work can produce institutional effects even without defeating the government.

Qualification: Decline varies with majority size, coalition politics, committee referral and presiding-officer practice; it is not a constitutional disappearance of the MP.

Verdict: The parliamentarian has shifted from autonomous law-maker toward party-linked scrutiniser. Predictable sittings, default committee referral and a whip confined to confidence/core finance would restore deliberation without destabilising government.

Examiner note: The answer explains the causal chain and acknowledges surviving agency; it does not confuse low autonomy with legal powerlessness.

Mark/word discipline: 15 marks; target 230-250 words; 5 mechanisms, 2 counter-instruments and 3 reforms.

Why this earns marks: The answer explains the whip-agenda-time causal chain, preserves surviving MP agency and closes with feasible reforms.

How to improve this answer: For 150 words, keep Tenth Schedule, executive agenda, one scrutiny loss and one reform; for 250 words retain counter-evidence and variation by majority size.

PYQ-M3. 2020 GS-II Q5 - "Once a Speaker, always a Speaker" and objectivity

Demand decoding

- Answer both parts: whether the convention operates in India and its implications for objectivity.
- **10 marks | 150 words:** one institutional contrast, three powers, one reform.

Model answer

Claim: The British convention that a Speaker severs party ties and is normally returned unopposed does not operate in India; therefore neutrality rests more on individual conduct than institutional insulation.

Named evidence: Under **Articles 93-97**, the Speaker controls procedure and discipline. The office also certifies a Money Bill under **Article 110**, presides over an **Article 108** joint sitting and decides Tenth Schedule petitions subject to *Kihoto Hollohan*. The Speaker retains party membership and ordinarily contests again on a party ticket.

Analysis: These high-stakes powers can affect bicameralism, government survival and member status. A party-linked career therefore creates a perception of bias even when a decision is legally defensible. Delayed defection rulings and disputed Money Bill certification intensify the concern.

Qualification: Article 94 continuity after dissolution, charged salary and House removal safeguards provide some independence; party origin does not prove actual partisanship.

Verdict: "Once a Speaker, always a Speaker" is aspirational, not Indian practice. Reasoned rulings, political detachment and independent defection adjudication would make objectivity structural.

Examiner note: Direct convention answer plus powers-mechanism-qualification sequence satisfies both limbs.

Mark/word discipline: 10 marks; target 145-155 words; 3 named powers and one balanced reform.

Why this earns marks: It answers both the comparative-convention and objectivity limbs through three high-stakes powers and a qualified institutional judgment.

How to improve this answer: Compress to Article 110, Tenth Schedule and party-linked career; improve further by separating perceived bias from proof of bias in one explicit sentence.

PYQ-M4. 2020 GS-II Q14 - Rajya Sabha as a supporting organ

Demand decoding

- "Highlight factors and areas" requires separate treatment of causes and fields of subordination.
- **15 marks | 250 words:** avoid the absolute claim that Rajya Sabha is inferior everywhere.

Model answer

Claim: Rajya Sabha is a supporting chamber in finance and confidence, but a co-equal or distinctive chamber in ordinary law, constitutional amendment and federal protection.

Areas of subordination: Under **Articles 109-110**, it can only recommend changes to a Money Bill within fourteen days. It cannot vote demands for grants, and **Article 75(3)** gives only Lok Sabha the confidence key. In an **Article 108** joint sitting, Lok Sabha's larger numbers usually prevail.

Factors: Direct election gives Lok Sabha stronger popular legitimacy; executive survival is tied to its majority; and disputed use of the Money Bill route can bypass the Upper House. Political disruption and limited referral can further weaken revision.

Counter-evidence: Rajya Sabha has equal power over ordinary Bills and **Article 368** amendments. As a permanent House it supplies continuity. Its two exclusive powers - **Article 249** State List legislation in the national interest and **Article 312** creation of All-India Services - make it a federal gatekeeper. It also shares committee scrutiny and national debate.

Qualification: State representation is population-weighted, not equal-per-State; its federal design is therefore weaker than a senate based on State equality.

Verdict: Rajya Sabha supports Lok Sabha without being subordinate to it. The label is accurate only where the Constitution deliberately prioritises popular control over money and government survival.

Examiner note: Separates "factors" from "areas" and gives a degree-based verdict with Articles 249/312.

Mark/word discipline: 15 marks; target 230-250 words; 3 subordinate fields, 4 counterweights and one design caveat.

Why this earns marks: The graded equal-unequal-exclusive structure directly answers both factors and areas without reducing Rajya Sabha to a uniformly inferior chamber.

How to improve this answer: Under time pressure use a three-row power matrix, then add Articles 249/312 and the population-weighted federal caveat before the verdict.

PYQ-M5. 2021 GS-II Q4 - Extent of Parliament's executive accountability

Demand decoding

- "To what extent" demands a graded judgment, not a list of devices.
- **10 marks | 150 words:** instruments -> limits -> degree-based verdict.

Model answer

Claim: Parliament possesses a comprehensive accountability toolkit, but its effectiveness is conditional on time, information and party incentives.

Named evidence: Starred questions and supplementaries compel ministerial explanation; Zero Hour, Calling Attention and motions expose policy failure. **Article 75(3)** enables Lok Sabha no-confidence control. **Articles 112-114** require budget presentation, voting of grants and appropriation. **PAC-CAG** audit and **DRSC** scrutiny extend control beyond the floor.

Analysis: These instruments cover the full administrative cycle - information, authorisation, ongoing criticism, financial audit and ultimate removal.

Qualification: A secure majority and the Tenth Schedule make government defeat unlikely. Disruptions, the guillotine, limited sitting days, selective committee referral and ordinances can weaken scrutiny.

Verdict: Accountability is constitutionally strong but behaviourally uneven: Parliament usually extracts information and audit, yet only exceptionally threatens executive survival. Protected scrutiny time and stronger committees would narrow the gap.

Examiner note: "Extent" is answered explicitly by distinguishing routine oversight from survival control.

Mark/word discipline: 10 marks; target 145-155 words; 4 evidence families and 4 limitations.

Why this earns marks: A clear extent judgment distinguishes routine information/audit control from the exceptional survival sanction.

How to improve this answer: Retain Article 75(3), one financial-control chain, one committee and two operating limits; do not spend words cataloguing every motion.

PYQ-M6. 2021 GS-II Q15 - Working of DRSCs in enforcing executive control

Demand decoding

- "Evaluate" requires criteria: design, performance, weaknesses and final assessment.
- **15 marks | 250 words:** exact composition is essential.

Model answer

Claim: DRSCs are Parliament's most capable instrument of continuous ministry-wise oversight, but they enforce control through information and persuasion rather than binding command.

Named evidence: Introduced as **17 committees in 1993** and restructured to **24 from 2004**, each now has **31 members - 21 Lok Sabha and 10 Rajya Sabha**; sixteen are Lok Sabha-secretariat serviced and eight Rajya Sabha-secretariat serviced. Ministers are barred. They examine demands for grants, referred Bills, annual reports and long-term policy.

Analysis: Their smaller forum permits evidence-taking, clause scrutiny, technical learning and cross-party consensus away from floor grandstanding. Demand-for-grants reports connect policy priorities with spending; Bill reports improve legal design; action-taken reports sustain follow-up.

Weaknesses: Referral is not automatic, recommendations are non-binding, terms are only one year, attendance and research support can be weak, and the government may provide delayed or formalistic responses. Major Bills passed without referral show that effectiveness depends on executive and presiding-officer choices.

Qualification: Non-binding status is not uselessness: reasoned reports shape debate, media and later policy, while final law and supply must remain with the House.

Verdict: DRSCs work effectively when used, but are under-used. Default referral, longer specialisation, expert staff and public reasons for bypass would convert potential into systematic control.

Examiner note: Exact 1993/2004 and 21+10 controls, functions and enforceability distinction produce an evaluative answer.

Mark/word discipline: 15 marks; target 235-250 words; 4 functions, 5 weaknesses and 4 reforms.

Why this earns marks: Exact 17-to-24 chronology, 21+10 composition, functions and non-binding influence provide evaluative rather than descriptive depth.

How to improve this answer: If shortening, preserve composition, demands/Bill scrutiny, optional referral and one reform; remove generic praise before removing institutional evidence.

PYQ-M7. 2023 GS-II Q16 - Committee structure and role of financial committees

Demand decoding

- "Explain the structure" requires classification before evaluating the financial arm.
- **15 marks | 250 words:** use exact committee compositions.

Model answer

Claim: Parliament's committee system combines permanent subject/House oversight with task-specific inquiry; its financial committees operationalise the constitutional power of the purse.

Structure: **Standing committees** include financial committees, 24 DRSCs, House-management committees and oversight bodies such as Subordinate Legislation, Privileges, Ethics, Government Assurances and Welfare of SCs/STs. **Ad hoc committees** include Select/Joint Committees on Bills and JPCs formed for a specified inquiry.

Named financial evidence: The **PAC** has **22 members (15 LS + 7 RS)**, is conventionally chaired by the Opposition and examines CAG reports after expenditure. The **Estimates Committee** has **30 Lok Sabha members only** and seeks economy and administrative improvement before or during expenditure planning. **CoPU** has **22 members (15+7)** and specialises in public undertakings. Ministers are barred from all three.

Analysis: Estimates supplies prospective efficiency scrutiny, PAC retrospective legality/regularity scrutiny and CoPU institution-specific commercial accountability. DRSC examination of demands bridges these stages.

Qualification: Reports are advisory, PAC ordinarily avoids questioning policy itself and referral/follow-up may be weak.

Verdict: The structure substitutes depth for scarce floor time; its financial arm closes the authorisation-audit loop but needs stronger research and action-taken enforcement.

Examiner note: Begins with the required architecture, then explains rather than merely names each financial committee.

Mark/word discipline: 15 marks; target 230-250 words; classification plus exact 22/30/22 evidence.

Why this earns marks: Classification precedes the exact financial trio, and prospective, retrospective and undertaking-specific roles are analytically separated.

How to improve this answer: Use a standing-versus-ad-hoc opening, then PAC 15+7, Estimates 30 LS-only and CoPU 15+7; end with advisory-status and follow-up limits.

PYQ-M8. 2024 GS-II Q3 - Cabinet growth and marginalisation of parliamentary supremacy

Demand decoding

- "Elucidate" requires a mechanism showing how cabinet growth affects Parliament.
- "Parliamentary supremacy" must mean effective control/deliberation, not UK-style legal sovereignty.
- **10 marks | 150 words:** three mechanisms, correctives and qualified verdict.

Model answer

Claim: The cabinet remains responsible to Lok Sabha under **Article 75(3)**, yet fusion of executive and legislature can let a disciplined cabinet majority dominate the institution meant to control it.

Named evidence and analysis: The Tenth Schedule whip reduces independent voting; the government controls most Bills and House time; guillotining demands, selective DRSC referral and compressed debate weaken scrutiny. Ordinances under **Article 123** and an overbroad **Article 110** route can reduce prior legislative and bicameral examination. PMO-centred coordination may add prime-ministerial dominance over cabinet dominance.

Qualification: Parliament still authorises supply, may remove the ministry, asks questions and uses PAC-CAG/DRSC scrutiny. Courts enforce constitutional limits and elections renew responsibility.

Verdict: Cabinet growth has marginalised Parliament's deliberative and control functions, not transferred constitutional sovereignty. Predictable sittings, routine committee scrutiny and narrower whip use can restore responsible fusion.

Examiner note: It clarifies the proposition, proves the mechanism and avoids the sovereignty trap.

Mark/word discipline: 10 marks; target 145-155 words; 4 mechanisms, 3 correctives and one reform verdict.

Why this earns marks: The answer links cabinet growth to agenda, whip and time control while retaining constitutional counterweights and a degree-based conclusion.

How to improve this answer: For 150 words, keep Article 75(3), agenda control, whip, committee/Question Hour counterweight and one activation reform; avoid repeating the word dominance.

Six original solved Mains answers

Original Q1 - 10 marks, 150 words

Question: Explain how the constitutional design of parliamentary sessions both enables and limits executive accountability.

Demand decoding: "Explain how" requires a mechanism, not merely definitions. Cover summoning rule, devices and the weak sitting-day floor.

Model solution

Claim: Session design keeps the executive periodically answerable but leaves the intensity of accountability to political control of the calendar.

Named evidence: **Article 85** prevents more than six months between sessions, ensuring at least two annual opportunities for scrutiny. Within sittings, starred questions, supplementaries, Zero Hour, Calling Attention and motions demand explanation; **Article 75(3)** allows Lok Sabha to test confidence.

Analysis: Periodic summoning prevents indefinite executive rule without Parliament, while oral questions and motions convert presence into public responsibility.

Qualification: The Constitution fixes no minimum sitting days and does not mandate three named sessions. Executive influence over summoning, disruption and loss of Question Hour may satisfy Article 85 while weakening real scrutiny.

Verdict: The design guarantees recurrence, not adequacy. A predictable calendar and protected accountability time would convert the six-month floor into effective control.

Examiner comment: Strong because Article 85 is linked to actual devices and its design limitation, rather than treated as a calendar fact.

Why this earns marks: Direct thesis; two Articles; mechanism; qualification; feasible reform within 150-word scale.

How to improve this answer: If space is tight, retain Article 85, two live accountability devices and the no-minimum-sitting-days qualification; state the reform as protected scrutiny time.

Original Q2 - 10 marks, 150 words

Question: Legislative privilege is a functional immunity, not a personal impunity. Discuss with reference to *Sita Soren (2024)*.

Demand decoding: Define function, apply the case and preserve the surviving immunity.

Model solution

Claim: Article 105 protects fearless legislative functioning, not private criminal bargains.

Named evidence: It immunises proceedings for speech and vote in Parliament and protects authorised parliamentary publication. Yet in *Sita Soren (2024) v. Union of India (2024)* a unanimous seven-judge Bench overruled *P.V. Narasimha Rao* and held that accepting a bribe for a speech or vote attracts no Article 105/194 immunity; bribery is complete on acceptance.

Analysis: The functional-nexus test explains the distinction: debate and voting require autonomy from external litigation, whereas a bribe subverts rather than enables that function.

Qualification: The judgment did not expose bona fide speeches or votes to ordinary suits. Nor does judicial review authorise courts to manage routine House procedure.

Verdict: Privilege remains a shield for institutional independence, but *Sita Soren (2024)* correctly denies its conversion into a personal criminal safe harbour.

Examiner comment: Uses exact case proposition and avoids the frequent overstatement that all speech immunity has disappeared.

Why this earns marks: Definition, Article, overruled precedent, functional analysis and precise qualification.

How to improve this answer: Keep the functional-nexus test, the overruled precedent and the acceptance-completes-bribery rule; do not imply that ordinary speech immunity disappeared.

Original Q3 - 15 marks, 250 words

Question: The Money Bill procedure is necessary for popular control of finance but vulnerable to bicameral bypass. Critically examine.

Demand decoding: "Critically examine" requires the rationale, misuse risk, case law and a bounded verdict.

Model solution

Claim: Articles 109-110 legitimately privilege the directly elected Lok Sabha in narrowly fiscal legislation, but overbroad certification can convert financial primacy into general legislative supremacy.

Named evidence: A Money Bill must contain **only** Article 110(1)(a)-(g) matters and incidental provisions. It begins in Lok Sabha on presidential recommendation; Rajya Sabha may only recommend within fourteen days, and no joint sitting exists. The Speaker certifies it, with Article 110 calling the decision final.

Analysis: This design protects supply and taxation from Upper-House obstruction and aligns financial responsibility with the House that can dismiss the ministry. However, classification also removes Rajya Sabha's amendment veto. Adding substantial non-fiscal provisions therefore harms bicameralism and federal revision.

Judicial evidence: *Puttaswamy (Aadhaar)*, 2018 upheld the Aadhaar route by 4:1; *Rojer Mathew v. South Indian Bank (2019)* doubted the reasoning and referred the larger question to seven judges.

Qualification: Textual finality is not ordinary merits appeal, yet narrow constitutional review for illegality/misuse remains. As of 7 September 2026 no visible final larger-Bench resolution was located.

Verdict: Popular financial control requires the special procedure, but constitutional fidelity requires strict enforcement of "only", reasoned certification and narrow review.

Examiner comment: Balances democratic rationale and federal cost, uses both leading cases and preserves current-status caution.

Why this earns marks: Article -> mechanism -> consequence -> cases -> qualification -> reform verdict.

How to improve this answer: Use a two-column rationale-versus-bypass frame; quote Article 110 only, preserve the pending-status date and avoid presenting review as a merits appeal.

Original Q4 - 15 marks, 250 words

Question: Parliament's power of the purse is exercised through a chain, not a single budget vote. Analyse.

Demand decoding: Build the complete authorisation-to-audit cycle and identify weak links.

Model solution

Claim: Financial control is a sequence of disclosure, deliberation, authorisation, expenditure and audit rather than one annual approval.

Named evidence and analysis: **Article 112** requires the Annual Financial Statement and distinguishes charged from voted expenditure. Under **Article 113**, Lok Sabha alone votes demands for grants, using Policy, Economy and Token Cut Motions. DRSCs examine ministry demands before voting, though the **guillotine** may pass undiscussed demands. **Article 114** then requires an Appropriation Act before withdrawal from the Consolidated Fund, while the Finance Bill enacts taxation. **Articles 115-116** provide supplementary, additional, excess grants, vote on account, vote of credit and exceptional grants. After spending, the **CAG** audits and the **PAC** examines reports; excess expenditure is regularised only after this post-facto scrutiny.

Qualification: Rajya Sabha discusses but does not vote demands. Charged expenditure is discussed but not voted. Public Account withdrawal is outside appropriation. Majority discipline makes cut-motion success rare, and PAC review is retrospective.

Verdict: The chain is constitutionally comprehensive but only as strong as DRSC time, grant debate and audit follow-up. Protecting these stages matters more than ritual budget passage.

Examiner comment: The answer maps the entire cycle and differentiates charged expenditure, Public Account and Rajya Sabha's role.

Why this earns marks: Six named constitutional/institutional units linked analytically rather than listed.

How to improve this answer: Draw the authorisation-to-audit chain first, then add charged expenditure and Public Account as the two highest-value distinctions; omit minor grant taxonomy if necessary.

Original Q5 - 20 marks, 250 words

Question: Delimitation after the population freeze is simultaneously a democratic-equality and a federal-fairness problem. Examine with reference to the women's reservation trigger.

Demand decoding: Examine both normative claims, then integrate Article 334A and current controls.

Model solution

Claim: Restoring population-proportional representation answers malapportionment but may penalise States that reduced fertility, making delimitation a federal bargain rather than a cartographic exercise.

Named evidence: **Article 81(2)(a)** links State seats to population. The **42nd Amendment** froze allocation on 1971 figures; the **84th Amendment** extended readjustment until publication of the first post-2026 census figures; the **87th** enabled 2001-based boundary readjustment. Because Rajya Sabha is population-weighted rather than equal-per-State, low-growth States lack a US-Senate-type counterweight.

Women's-reservation link: The **106th Amendment** inserted Articles 330A, 332A and 334A. It commenced on **16 April 2026**, but Article 334A requires publication of relevant first post-commencement census figures and delimitation before reservation operates. Census 2027 is the trigger census, yet publication and delimitation dates are unknown.

Counterpoint: Permanent under-representation of populous citizens is itself a democratic deficit; the freeze cannot substitute forever for representation.

Qualification: The defeated 131st Amendment Bill's 850 ceiling and 2011 basis are not law. No State or women's-seat projection is valid.

Verdict: Reform must reconcile vote equality with demographic-performance fairness, possibly through negotiated House design, without forecasting an outcome the Constitution has not yet produced.

Examiner comment: Integrates static freeze law, federal theory and the exact commenced-but-not-operational sequence.

Why this earns marks: Balanced normative analysis with Articles, amendments, current trigger and explicit risk controls.

How to improve this answer: Separate democratic equality, federal fairness and Article 334A into three paragraphs; never turn the defeated 850-seat proposal or an unknown publication date into law.

Original Q6 - 20 marks, 250 words

Question: "Parliament is strong in constitutional instruments but weak in their political use." Critically examine and propose reforms.

Demand decoding: Test both halves, cover the full accountability architecture and rank reforms.

Model solution

Claim: Parliament retains formidable powers over law, supply and executive survival, yet majority discipline and scarcity of scrutiny time often convert control into formal ratification.

Strength in instruments: Article 75(3) permits no-confidence removal; questions, motions and debates force explanation. Articles 112-114 require financial disclosure, grant voting and appropriation. Ordinary Bills need bicameral consent; DRSCs provide detailed ministry scrutiny; PAC-CAG review closes the audit loop. Rajya Sabha adds continuity and Articles 249/312.

Weakness in use: The Tenth Schedule discourages independent voting; government controls most business; disruption reduces Question Hour; the guillotine passes demands without debate; Bill referral is optional; ordinances and contested Money Bill routing compress scrutiny. Speaker-linked defection and certification powers create neutrality concerns.

Counter-evidence: Committee consensus, opposition-led PAC work, judicial review and public debate can alter policy even when the government wins every vote. Weakness varies with coalition arithmetic and institutional leadership.

Reform: create a predictable sitting calendar; protect questions and opposition time; make committee referral the default with reasoned urgency exceptions; strengthen research/action-taken review; narrow the whip to confidence/core supply; require timely, reasoned presiding-officer decisions.

Verdict: The constitutional hardware remains sound; political incentives and procedural time are the failing software. Reform should activate existing accountability before inventing new devices.

Examiner comment: Covers instruments, causal limits, counterevidence and a prioritised reform package within the directive.

Why this earns marks: Eight named evidence units and a memorable but qualified hardware/software verdict.

How to improve this answer: Rank reforms by the diagnosed cause: time, information, referral and whip. In a shorter answer retain four instruments, four constraints and three matched remedies.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

A1. Constitutional supremacy versus parliamentary supremacy

Visual 40 - Three levels of authority

CONSTITUTIONAL SUPREMACY

written text + federal distribution + rights + judicial review + basic structure

PARLIAMENTARY CENTRALITY

law, supply, representation, accountability, amendment

EXECUTIVE AGENDA DOMINANCE

government controls most Bills, time and majority management

- [ANALYSIS] "Parliamentary supremacy" in Indian GS-II questions usually means effective deliberative and control capacity, not unlimited legal sovereignty.
- [FACT] Parliament cannot enact ordinary law beyond constitutional competence, and Article 368 itself is limited by the basic-structure doctrine.
- [ANALYSIS] Cabinet dominance can marginalise Parliament without transferring constitutional sovereignty to the Cabinet.

A2. Money Bill certification and the unresolved larger-Bench issue

- [FACT] In *K.S. Puttaswamy (Aadhaar) (2018)*, a 4:1 majority upheld the Aadhaar Act's Money Bill route; Chandrachud J dissented.
- [FACT] In *Rojer Mathew v. South Indian Bank (2019)*, the Court doubted the earlier Article 110 reasoning and referred the issue to a larger seven-judge Bench.
- [CURRENT] As of 7 September 2026, no visible final decision resolving that larger-Bench issue was located on the official Supreme Court judgment portals.
- [LIMIT] The safe formulation is: **Article 110 calls the Speaker's decision final, but constitutional courts retain narrow review for illegality or constitutional misuse; the larger doctrinal issue remains without a visible final resolution.**

Visual 41 - Judicial-review boundary

Speaker's Article 110 certificate: textually final

not ordinary merits appeal

narrow constitutional review for illegality/misuse

larger doctrinal issue referred in *Rojer Mathew v. South Indian Bank (2019)*

no visible final ruling by 28 Aug 2026

A3. Procedure refinements that separate strong answers

- [FACT] A private member may introduce an ordinary Bill; "government Bill" describes sponsor, not a separate constitutional class.
- [FACT] A Financial Bill-I is not a Money Bill: it starts only in Lok Sabha on recommendation, but Rajya Sabha retains full amending/rejecting power and joint sitting is possible.
- [FACT] A Financial Bill-II may originate in either House; recommendation is needed before consideration because expenditure from the Consolidated Fund is involved.
- [FACT] A constitutional amendment deadlock is fatal to the Bill; neither joint sitting nor a suspensive presidential return exists.
- [FACT] A joint sitting already notified survives dissolution, showing that presidential notification changes the lapse position.
- [ANALYSIS] Procedure questions reward classification before narration: identify Bill type first, then origin, recommendation, Rajya Sabha power, deadlock route and assent.

A4. Committees as the realistic deliberative centre

- [ANALYSIS] Televised floors reward party signalling; smaller committees lower visibility costs, allow evidence-taking and make cross-party bargaining easier.
- [ANALYSIS] Their value comes from continuity, specialisation and information, not from power to bind the government.
- [LIMIT] "Mini-Parliaments" is an analytical label. Committees cannot replace plenary passage, confidence or final appropriation.
- [ANALYSIS] The strongest reform is default referral with a public, reasoned urgency exception, backed by research capacity and action-taken tracking.

A5. Concise source and current-control note

- Authoritative Core: Polity/basic/Parliament.md.
- Optional procedure source: Polity/advanced/17_Parliament.md; its stale statement that no 106th Amendment commencement notification was located has been superseded and is not repeated.
- Cross-links used: Polity 11, Polity 16, Anti-Defection, Election Commission, Amendment and Basic Structure, President and Vice-President.
- Official parliamentary control: <https://sansad.in/> and Digital Sansad debates/Bills/committee records.
- Official 7th Session overview: <https://static.pib.gov.in/WriteReadData/specificdocs/documents/2026/apr/doc2026418851201.pdf>.
- Official Census control: <https://censusindia.gov.in/>.
- [LIMIT] Session labels, office holders, committee chairs, committee referrals, live Bill status and litigation status must be rechecked before future present-tense use.
- [LIMIT] No current MPLADS amount is quoted. The stable routed propositions are that MPLADS is a scheme, funds are non-lapsable and utilisation is monitored/inspected through the scheme framework.

CONSOLIDATED REGISTER NOTES

Parliament's constitutional identity

- Article 79: President + Rajya Sabha + Lok Sabha; President is integral but not a House member.
- Core functions: representation, law, constitutional amendment, supply, scrutiny and executive accountability.
- Sovereignty limit: competence, rights, federalism, special procedure, judicial review and basic structure.

Articles 79-122 rapid decoded spine

Range	What to reconstruct
79-88	institution, composition, duration, qualifications, sessions, addresses and cross-House participation
89-98	presiding officers, removal/acting safeguards, salaries and separate secretariats
99-106	oath, voting/quorum, vacancies, disqualification forums, privilege and member pay
107-111	ordinary legislation, joint sitting, Money Bills, certification and assent
112-117	AFS, grants, appropriation, later/interim grants and Financial Bills
118-122	rules, financial-business regulation, language, judge-conduct bar and procedural autonomy

Text-rule-convention-practice firewall

- Constitutional text: Articles and amendment effects.
- Statute: RPA, 1977 LoP Act, 1959 disqualification-exemption Act.
- House rule: questions, motions, private members' business and committees.
- Convention: three session labels, PAC opposition chair, political neutrality expectations.
- Judgment: binding interpretation such as Sita Soren or Raja Ram Pal.
- Dated practice: current office-holder, vacancy, session and Bill status; always date-stamp.

Article 79 identity card

Parliament = President + Rajya Sabha + Lok Sabha

President: integral, not a member

India: constitutional supremacy, not British legal parliamentary sovereignty

- [FACT] President summons, prorogues, addresses and assents.
- [ANALYSIS] Lok Sabha = popular/financial-confidence chamber; Rajya Sabha = permanent/federal-revising chamber.
- **Trap:** Never define Parliament as the two Houses alone.

Two Houses: composition, election and term

Recall	Rajya Sabha	Lok Sabha
Ceiling	250	550
Core current strength	245 sanctioned	543 elected
Election	MLAs; PR-STV; open ballot	Direct; FPTP
Nomination	12	None
Age	30	25
Term	Member: 6 years; one-third every 2 years	House: normally 5 years
Dissolution	Never	Yes

- [FACT] 104th Amendment ended Anglo-Indian nomination to Lok Sabha.
- [FACT] 2003 Rajya Sabha domicile/open-ballot changes were statutory; *Kuldip Nayar* upheld them.
- **Trap:** Rajya Sabha is population-weighted, not equal-per-State.

Delimitation and freeze chronology

42nd Amdt, 1976 -> freeze on 1971 basis

84th Amdt, 2001 -> defer until relevant first post-2026 census figures are published

87th Amdt, 2003 -> 2001 figures for boundary readjustment

Article 82 -> readjustment authority fixed by Parliament

Article 329(a) -> delimitation law/allotment insulated from court challenge

- [FACT] Four all-India Delimitation Commissions: 1952, 1962, 1972, 2002 Acts.
- [LIMIT] Jammu and Kashmir post-2019 was a distinct statutory exercise.
- [LIMIT] No automatic unfreezing on 1 January 2026 and no lawful State-wise projection.

Membership and disqualification quick card

- **Article 84:** citizenship; oath; 30 RS/25 LS; statutory qualifications.
- **Article 102:** office of profit; court-declared unsound mind; undischarged insolvent; foreign citizenship/allegiance; parliamentary-law disqualification; Tenth Schedule.
- **Article 103:** President decides sitting-member Article 102(1) question after ECI opinion.
- **RPA 1951:** conviction/corrupt practice/dismissal/government contract/government-company office/expense-account grounds.
- **Lily Thomas (2013):** no sitting-member section 8(4) shield; stay conviction, not merely sentence.
- **Trap:** Election petition in High Court and Article 103 reference are distinct routes.

Office of profit and Leader of Opposition

- [FACT] Office-of-profit purpose: prevent executive patronage from compromising legislative independence.
- [FACT] Tests include appointment/removal, remuneration, governmental control and functions.
- [FACT] Parliament (Prevention of Disqualification) Act, 1959 exempts listed offices.
- [FACT] LoP is statutory under the 1977 Act; the Act itself contains no ten-percent threshold.
- [LIMIT] Recognition practice and statutory text must not be conflated.
- [LIMIT] Largest opposition leader and formally recognised LoP may differ.
- **PYQ trap:** Do not invent the first Lok Sabha opposition party without exact verified source.

Session and sitting vocabulary

Term	Controller	Effect
Summoning	President	Calls House/session
Adjournment	Presiding officer	Pauses sitting
Adjournment sine die	Presiding officer	Ends sitting without next date
Prorogation	President	Ends session; Bills survive
Dissolution	President	Ends Lok Sabha life; selective Bill lapse

- **Article 85:** no more than six months between sessions.
- **Article 100(3):** quorum one-tenth; Core recall 55 LS/25 RS.
- **Trap:** No constitutional minimum sitting days; Budget/Monsoon/Winter are conventions.
- [CURRENT] 8th Session of 18th Lok Sabha adjourned sine die 13 August 2026.

Questions and motions memory grid

Starred = oral + supplementaries

Unstarred = written + no supplementaries

Short-notice = urgent, shorter notice, oral

Zero Hour = Indian innovation; not in Rules

Information -> discussion -> censure -> finance -> confidence

- Calling Attention: urgent ministerial statement.
- Half-an-Hour: clarify an earlier answer.
- Short-Duration: discussion without formal vote.
- Adjournment Motion: urgent definite matter, censure, Lok Sabha, 50.
- No-Confidence: Lok Sabha, 50 for admission, no reasons necessary.
- **Article 75(3):** collective responsibility only to Lok Sabha.

Presiding-officer card

- **Speaker:** Articles 93-97; House-elected; resignation to Deputy; removal by effective majority after 14 days.
- **Continuity:** remains after dissolution until immediately before new House first sitting.
- **Article 96:** does not preside over own removal; may vote first instance, no casting vote.
- **Powers:** rules/order; Article 110 certificate; Article 108 joint sitting; Article 100 casting vote; Tenth Schedule.
- **Deputy Speaker:** independently House-elected; full powers when presiding; no constitutional numerical deadline.
- [CURRENT]/[LIMIT] 17th Lok Sabha had no Deputy Speaker; do not assume current 18th Lok Sabha vacancy.
- **Chairman RS:** Vice-President ex officio, not RS member; Deputy Chairman elected by RS.

Privilege and bribery firewall

- **Article 105:** speech/vote immunity and parliamentary publication protection.
- **Breach of privilege:** violation of a specific privilege.
- **Contempt:** wider obstruction of House functioning.
- **Raja Ram Pal (2007):** legislative privilege subject to limited review for illegality.
- **Sita Soren (2024):** seven judges, unanimous; *P.V. Narasimha Rao* overruled; no bribery immunity; offence complete on acceptance.
- **Trap:** *Sita Soren (2024)* did not abolish bona fide speech/vote privilege.

Bill procedure compact spine

Introduction -> general discussion -> committee/consideration ->
third reading -> second House -> President

- Ordinary Bill: either House; both agree; Article 111 return once possible.
- Private Member's Bill: sponsor category, not separate constitutional Bill class.
- Committee referral: valuable but not constitutionally automatic.

Bill-class firewall

Class	Origin	Rajya Sabha	Joint sitting
Ordinary	Either House	Equal	Yes
Money, Arts 109-110	LS only	14-day recommendations	No
Financial-I, Art 117(1)	LS only	Full	Yes
Financial-II, Art 117(3)	Either House	Full	Yes
Amendment, Art 368	Either House	Equal/separate passage	No

- **Money Bill:** only Article 110 matters + incidental; Speaker certificate.
- **Financial-I:** Article 110 matters plus other matters.
- **Financial-II:** expenditure from Consolidated Fund, but not Article 110 class.
- **Amendment:** total-membership majority + two-thirds present/voting; some also half-State ratification; President must assent.

Money Bill current doctrine

- **Puttaswamy (2018):** Aadhaar route upheld 4:1; dissent challenged it.
- **Rojer Mathew v. South Indian Bank (2019):** larger seven-judge reference.
- [CURRENT] No visible final larger-Bench decision located by 7 September 2026.
- [LIMIT] Safe phrase: Article 110 certificate is textually final but subject to narrow constitutional review for illegality/misuse.

Joint sitting and lapse rules

- **Article 108:** rejection/final disagreement/six-month delay for eligible Bills.
- **Presiding officer:** Lok Sabha Speaker.
- **Only three:** Dowry 1961; Banking Service 1978; POTA 2002.
- **No joint sitting:** Money Bill or constitutional amendment.

LAPSES: pending LS | passed LS, pending RS

SURVIVES: pending RS only | awaiting assent | returned by President |
joint sitting already notified

Budget and grant chain

Art 112 AFS -> general discussion -> DRSC ->

Art 113 demands/cuts/guillotine ->

Art 114 Appropriation -> Finance Bill ->

CAG -> PAC -> excess-grant regularisation

- Charged: discussed, not voted.
- Demands: Lok Sabha only; President recommendation.
- Policy Cut: Re 1; Economy Cut: specified amount; Token Cut: Rs 100.
- Article 115: supplementary/additional/excess.
- Article 116: vote on account/vote of credit/exceptional grant.
- **Trap:** supplementary = in-year insufficiency; excess = post-facto overspending.

Constitutional funds

- **Consolidated Fund, Art 266(1):** appropriation required.
- **Public Account, Art 266(2):** appropriation not required.
- **Contingency Fund, Art 267:** unforeseen advance; later recouped.
- **Trap:** Not every public-money withdrawal uses identical procedure.

Executive accountability stack

Questions -> debates/motions -> legislation -> budget ->

DRSC scrutiny -> CAG/PAC audit -> no-confidence -> elections

- [ANALYSIS] Strong instruments: law, supply, information and survival.
- [ANALYSIS] Weak use: whip, majority, executive agenda, disruption, guillotine, limited referral and acceleration routes.
- **Verdict:** textually strong, behaviourally uneven.

Committee numbers that must not be swapped

Committee	Composition	Key function
PAC	22 = 15+7	CAG/post-expenditure
Estimates	30 LS only	Economy/efficiency in estimates
CoPU	22 = 15+7	Public undertakings
DRSC	31 = 21+10	Ministry demands/Bills/reports
Welfare SC/ST	30 = 20+10	NCSC/NCST reports; Article 335

- DRSC chronology: **17 in 1993 -> 24 from 2004.**
- DRSC service: **16 LS Secretariat + 8 RS Secretariat.**
- Ministers barred in financial trio, DRSCs and Welfare SC/ST as controlled by Core.
- Subordinate Legislation, not PAC, scrutinises delegated legislation.
- Ethics ≠ Privileges.

- Consultative Committee ≠ parliamentary committee.

Rajya Sabha graded-power card

- **Equal:** ordinary Bills; Article 368 amendments; major electoral participation.
- **Weaker:** Money Bills; demands for grants; confidence.
- **Numerically weaker:** joint sitting.
- **Exclusive Core pair:** Article 249 and Article 312.
- **Continuity:** permanent House.
- **Verdict:** supporting on money/confidence, co-equal on law/amendment, distinctive on federation.

Anti-defection impact

- **52nd Amendment, 1985:** Tenth Schedule.
- **91st Amendment, 2003:** split deleted; merger only at two-thirds; office/cap reforms.
- Grounds: voluntarily giving up; whip defiance not permitted/condoned within 15 days.
- Independent joins party -> disqualified.
- Nominated joins after six months -> disqualified.
- **Kihoto Hollohan:** Speaker tribunal, reviewable.
- **Keisham Meghachandra:** about three-month norm suggested; independent tribunal proposed.
- [ANALYSIS] Stability gain <-> deliberative autonomy loss.

IPG-IPU-CPA recall

IPG: Indian parliamentary association, 1949

IPG -> India's National Group in IPU

IPG -> main India Branch in CPA

IPU: global national-parliament organisation

CPA: Commonwealth parliamentary network

- Speaker = ex-officio IPG President.
- Deputy Speaker + RS Deputy Chairman = ex-officio Vice-Presidents.
- **Trap:** IPG is not MEA; IPU is not inter-governmental.

Parliamentary decline and reform spine

Diagnosis

1. Executive controls drafting and most time.
2. Whip reduces member independence.
3. Disruption and few sittings reduce questioning.
4. Guillotine passes unexamined grants.
5. Optional committee referral thins legal scrutiny.
6. Ordinance/contested Money Bill routes compress bicameralism.

Counterweights

1. No-confidence and supply.
2. Questions and motions.
3. Rajya Sabha revision.
4. DRSC and PAC-CAG.
5. Judicial review.
6. Elections/public debate.

Priority reforms

1. Predictable calendar and protected scrutiny time.
2. Default Bill referral with reasoned urgency exceptions.

3. Research staff and action-taken monitoring.
4. Narrower whip for confidence/core finance.
5. Timely, reasoned presiding-officer decisions.
6. Strict Article 110 "only" test.

Women's reservation three-register card

Register	Status on 28 Aug 2026
Enacted/incorporated	Yes; assented September 2023; Arts 330A/332A/334A
Commenced	Yes; 16 April 2026
Operational reservation	No

commencement -> first post-commencement census ->
 publication of relevant figures -> delimitation for this purpose ->
 reservation takes effect

- One-third in LS, State Assemblies and Delhi Assembly, including within SC/ST seats.
- Article 334A(2): continuance as Parliament may by law determine.
- Article 334A(3): rotation after each subsequent delimitation.
- **Trap:** Quote "fifteen years from such commencement"; never calculate 2041.

Census 2027 trigger card

- Houselisting window: 1 April-30 September 2026; State/UT-specific 30-day period.
- Population Enumeration: February 2027 generally; September 2026 snow-bound.
- Reference: 1 March 2027 generally; 1 October 2026 snow-bound.
- First fully digital census; self-enumeration; caste enumeration announced.
- Statutory basis: Census Act 1948 and Rules 1990.
- [LIMIT] Publication date unknown -> delimitation date unknown -> reservation-operation date unknown.

Defeated 2026 Bills card

Introduced 16 Apr:
 131st Amendment Bill + Delimitation Bill + UT Laws Amendment Bill

Division 17 Apr:
 298 for : 230 against; 528 present/voting
 total-membership limb cleared
 two-thirds present/voting limb failed

Result:
 constitutional amendment defeated; linked Bills did not pass

- Proposed 850 ceiling = 815 States + 35 UTs, **Bill text only**.
- Proposed 2011 Census basis = **Bill proposal only**.
- Existing law: ceiling 550; elected 543; Article 334A unchanged.
- **Trap:** A defeated Bill is not law, precedent or forecast.

PYQ routing map

- **Mains direct:** 2018 committees; 2019 MP decline; 2020 Speaker; 2020 Rajya Sabha; 2021 accountability; 2021 DRSCs; 2023 committee architecture.
- **Cross-owned Mains:** 2024 cabinet growth/parliamentary marginalisation.
- **Prelims 2018-2023:** LoP history; Subordinate Legislation; Money Bill; office of profit; regulator oversight; RS powers; MPLADS; sessions; LS exclusive powers; Deputy Speaker; Finance/Money Bill.
- **Prelims 2024-2025:** Money Bill; Ethics; 106th Amendment; Speaker removal; Bill lapse; prorogation/dissolution; Speaker continuity/party.
- **Prelims 2026:** question types; Welfare SC/ST Committee.
- **Provenance:** 2018-2023 keys unavailable locally; 2024-2025 official keys held but option letters not reproduced; 2026 key provisional.

Universal Mains answer checklist

1. Decode directive and every limb
 2. State a direct thesis
 3. Use mark-scaled named evidence
 4. Explain what each evidence unit proves
 5. Add counterpoint/status qualification
 6. Give a degree-based verdict
- **10 marks:** 2-3 named evidence units.
 - **15 marks:** 4-6 named evidence units.
 - **20 marks:** 5-8 named evidence units plus reform/graded judgment where demanded.
 - **Non-negotiable pattern:** claim -> named evidence -> analysis -> qualification -> verdict.

Final rapid-fire traps

1. President is part of Parliament, not a House member.
2. RS ceiling 250; LS ceiling 550; Core strengths 245/543.
3. Anglo-Indian Lok Sabha nomination is abolished.
4. Freeze waits for publication of relevant post-2026 census figures.
5. No constitutional minimum sitting days.
6. Prorogation ends session; dissolution ends Lok Sabha.
7. Starred questions allow supplementaries; unstarred do not.
8. Zero Hour is not in the Rules.
9. Speaker survives dissolution and does not preside over own removal.
10. Official control checked 7 September 2026 dates the Deputy Speaker vacancy from May 2019.
11. *Sita Soren (2024)* removes bribery immunity, not bona fide speech immunity.
12. Money Bill contains only Article 110 matters.
13. Financial Bill-I is not subject to 14-day RS restriction.
14. No joint sitting for Money or amendment Bills.
15. Only three historical joint sittings.
16. Charged expenditure is discussed, not voted.
17. Policy Cut = Re 1; Token Cut = Rs 100.
18. Public Account does not need appropriation.
19. PAC 22; Estimates 30 LS-only; CoPU 22.
20. DRSC: 17 in 1993, 24 from 2004, 31 = 21+10.
21. Welfare SC/ST: 30 = 20+10.
22. RS exclusive Core pair: Articles 249 and 312.
23. Tenth Schedule merger threshold: two-thirds.

24. IPG = IPU National Group + CPA main India Branch.
25. 106th Amendment commenced 16 April 2026; reservation not operational.
26. Census enumeration/reference date is not publication date.
27. Never derive a 2041 women's-reservation end date.
28. 131st Amendment/Delimitation/UT package was defeated, not enacted.
29. *Rojer Mathew v. South Indian Bank (2019)* larger issue has no visible final resolution as of 7 September 2026.
30. Never quote a current MPLADS rupee amount without official live verification.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Core concept, origin and constitutional identity

PARLIAMENT = President + Rajya Sabha + Lok Sabha (Article 79)

|

+-- law-making and constitutional amendment
 +-- taxation, supply and expenditure authorisation
 +-- representation of people and States
 +-- executive accountability
 +-- deliberation, petitions, committees and public record
 `-- constitutionally limited: competence + rights + federalism + review + basic structure

Cross-links after minimum rule:

- Article 75(3): Council collectively responsible to Lok Sabha -> detailed owner Topic 16.
- Article 123: temporary ordinance power during the specified recess condition -> President interface.
- Tenth Schedule: defection grounds and adjudication -> anti-defection owner.
- Article 368: special amendment procedure and basic-structure limit -> amendment owner.

ASCII MASTER FLOW - PANEL 2/12: Composition, election, duration and delimitation

Ancient sabha/samiti -> historical vocabulary, not direct legal source
 1861-1935 councils -> representation, questions, budget discussion and bicameral experience
 1946-49 Constituent Assembly -> responsible government + bicameralism + constitutional supremacy
 1950 Articles 79-122 commence
 1951 First Amendment, s.6 -> substituted Article 85(1)-(2): six-month inter-session ceiling plus presidential prorogation/dissolution powers
 1952 first Lok Sabha / Council of States begin
 1985 52nd Amendment -> Article 102(2) + Tenth Schedule defection disqualification
 2001 84th Amendment, ss.3-7 -> Article 81(3) proviso, Article 82 third proviso and linked Articles 170/330/332: freeze extended to first post-2026 census publication; 1991 data enabled limited boundary/reserved-seat readjustment
 2003 87th Amendment, ss.2-5 -> Article 81(3) proviso cl.(ii), Article 82 third proviso cl.(ii), Article 170(2)/(3) Explanations and Article 330 Explanation: 1991 replaced by 2001 census
 2019 104th Amendment, s.2 -> Article 334 long line: eighty years for cl.(a) SC/ST reservation, seventy years for cl.(b) Anglo-Indian special representation; latter ceased after 2020
 2023 106th Amendment, ss.2-5 -> inserted Article 239AA(2)(ba)-(bc), Articles 330A/332A/334A: one-third women's reservation, including within SC/ST seats, after the census-publication/delimitation trigger

ASCII MASTER FLOW - PANEL 3/12: Articles 79-88 organisation and participation

79 -> President + Council of States + House of the People constitute Parliament.
80 -> Rajya Sabha: State/UT representation + 12 presidential nominees in literature, science, art and social service.
81 -> Lok Sabha: State/UT seats and population-representation principles; current elected strength 543, vacancies vary.
82 -> readjustment follows census through parliamentary law/authority, subject to constitutional freeze provisos.
83 -> Rajya Sabha continues; LS normally five years; Emergency extension one year at a time, max six months after cessation.
84 -> citizenship, prescribed oath-related requirement, age 30 RS/25 LS and qualifications by parliamentary law.
85 -> President summons/prorogues and dissolves LS; max six months between last sitting and next session's first sitting.
86 -> President may address either/both Houses and send messages.
87 -> special address after general election and first session each year; Houses discuss the address.
88 -> ministers/Attorney-General may participate across Houses/joint sitting/committees; vote follows membership.

ASCII MASTER FLOW - PANEL 4/12: Articles 89-106 officers, secretariats and membership

89-92 -> Vice-President is ex officio RS Chairman; RS elects Deputy Chairman; vacancy/acting/removal safeguards decoded.
93-96 -> LS elects Speaker/Deputy Speaker; effective-majority removal + 14 days' notice; Speaker survives dissolution to new House's first sitting.
97 -> presiding-officer salaries/allowances by parliamentary law and charged on Consolidated Fund.
98 -> each House has separate secretariat; common posts possible; Parliament regulates service conditions.
99 -> Third Schedule oath/affirmation before taking seat.
100 -> present-and-voting majority; chair casting vote on equality; vacancies do not invalidate proceedings; quorum one-tenth.
101 -> double membership, resignation, disqualification vacancy and sixty-day unauthorised-absence route.
102(1) -> office of profit, court-declared unsound mind, undischarged insolvency, foreign citizenship/allegiance, statutory grounds.
102(2) -> Tenth Schedule defection disqualification, inserted by 52nd Amendment (1985).
103 -> President decides Article 102(1) sitting-member question after obtaining ECI opinion.
104 -> daily constitutional monetary liability for knowingly sitting/voting before oath or while unqualified/disqualified.
105 -> speech/vote/publication immunity and House privileges; functional, not criminal impunity.
106 -> MPs' salaries/allowances determined by parliamentary law.
Current checked 7 September 2026 -> Speaker Om Birla; LS Deputy Speaker vacant; RS Chairman C. P. Radhakrishnan; Deputy Chairman Harivansh.

ASCII MASTER FLOW - PANEL 5/12: Sessions, language, questions, motions and resolutions

SESSION (President summons/prorogues) -> SITTING (chair adjourns/sine die)
Budget/Monsoon/Winter -> convention, not constitutional categories.
Article 120 -> Hindi or English; chair may permit mother tongue.
Question Hour -> starred oral + supplementaries; unstarred written; short-notice urgent oral; private-member questions possible.
Zero Hour -> informal Indian innovation since 1962; not written in Rules.
Calling Attention -> urgent ministerial statement; no vote.
Adjournment Motion -> LS extraordinary urgent-public-matter censure; fifty-member support.
No-confidence -> LS Rule 198; fifty-member leave; reasons unnecessary; passage tests whole Council under Article 75(3).
Censure -> reasons/policy or actor specified; politically serious but not identical to no-confidence.
Resolution -> self-contained substantive decision/opinion; every resolution is a motion, not every motion a resolution.
Cut motions -> policy Re 1; economy specified reduction; token Rs 100.

ASCII MASTER FLOW - PANEL 6/12: Articles 107-111 legislation, deadlock and lapse

107 -> ordinary Bill may originate either House; both ordinarily agree; prorogation does not lapse Bills.
Ordinary route -> introduction -> principle -> committee/detailed scrutiny -> clauses -> third reading -> second House -> President.
Government Bill -> minister sponsor; Private Member's Bill -> non-minister sponsor under allotted House time.
108 -> eligible deadlock: rejection, final amendment disagreement or >6-month delay -> President may summon joint sitting.
Joint sitting excluded -> Money Bill and Constitution Amendment Bill.
Three instances -> Dowry Prohibition 1961; Banking Service Commission Repeal 1978; POTA 2002.
109 -> Money Bill LS-only; RS recommendations within 14 days; LS may accept/reject; no joint sitting.
110 -> Bill must contain ONLY listed money matters + incidental provisions; Speaker certifies.
111 -> President: assent/withhold; may return non-Money Bill once; repassage makes assent mandatory.
Lapse on LS dissolution -> Bill pending in LS; Bill passed by LS pending in RS.
No lapse -> RS-pending not passed by LS; both-House-passed awaiting assent; returned Bill; notified joint-sitting intention.

ASCII MASTER FLOW - PANEL 7/12: Articles 112-119 budget and financial control

112 Annual Financial Statement -> estimated receipts/expenditure + charged/voted split.
113 -> charged expenditure discussed, not voted; LS votes demands for grants on presidential recommendation.
114 -> Appropriation Act legally authorises withdrawal from Consolidated Fund.
115 -> supplementary/additional/excess grants.
116 -> vote on account / vote of credit / exceptional grant.
117(1) Financial Bill-I -> Article 110 matter + other matter; LS-only introduction + recommendation; RS otherwise ordinary power.
117(3) Financial Bill-II -> either-House origin; recommendation before consideration; ordinary bicameral power.
118 -> House rules and joint-sitting procedure.
119 -> Parliament may by law regulate financial-business completion.
Power-of-purse chain -> Budget -> grants/cut motions -> appropriation -> execution -> CAG -> PAC.

ASCII MASTER FLOW - PANEL 8/12: Committees, delegated legislation and executive scrutiny

Standing -> financial / DRSC / inquiry / scrutiny-control / day-to-day House committees.
Ad hoc -> Select or Joint Committee on Bill; inquiry JPC.
PAC -> 22 (15 LS+7 RS); CAG-linked post-expenditure regularity; Opposition chair by convention.
Estimates -> 30 LS only; economies, efficiency and estimate presentation.
CoPU -> 22 (15 LS+7 RS); specified public undertakings.
DRSCs -> 24; normally 31 each (21 LS+10 RS); demands, referred Bills, annual reports, long-term policy; ministers barred.
Subordinate Legislation Committee -> checks rules/regulations against parent Act, delegation and procedure.
Government Assurances Committee -> tracks ministerial undertakings on floor.
Ethics Committee -> unethical conduct; distinct from privilege breach.
Private Members' Bills and Resolutions Committee -> classification/time allocation for LS private business.
Committee value -> time + expertise + evidence + cross-party work.
Limit -> advisory reports + discretionary referral + one-year term + attendance/research constraints.

ASCII MASTER FLOW - PANEL 9/12: Rajya Sabha, Lok Sabha and sovereignty limits

EQUAL -> ordinary Bills, Article 368 amendments, impeachment/removal participation, elections where Constitution so provides.
LOK SABHA SPECIAL -> confidence Art 75(3); demands Art 113; Money/Financial-I origin Arts 109/117; joint-sitting numbers.
RAJYA SABHA SPECIAL ->
Art 249: 2/3 present/voting national-interest resolution opens temporary State-List competence.
Art 312: same gateway authorises creation of All India Service by parliamentary law.
Art 67(b): initiates Vice-President removal; LS agrees.
Arts 352/356/360: approval-continuity bridge when LS is dissolved, subject to later LS approval.
INDIAN PARLIAMENT != WESTMINSTER SOVEREIGN ->
limited by Seventh Schedule competence, Fundamental Rights, federalism, special procedures, judicial review and basic structure.

ASCII MASTER FLOW - PANEL 10/12: Amendments, cases and ordinance interface

First Amendment 1951, s.6 -> substituted Article 85(1)-(2): six-month inter-session control and presidential prorogation/dissolution powers.

31st Amendment 1973, s.2 -> Article 81(1)(a)-(b) and proviso to Article 81(2)(a): raised then-applicable State ceiling to 525, fixed UT ceiling at 20 and protected small States from strict inter-State ratio.

42nd Amendment 1976, ss.24-25 -> proviso to Article 81(3) and third proviso to Article 82: 1971 census basis retained until publication of the first census after 2000.

52nd Amendment 1985, s.3 and Schedule -> inserted Article 102(2) and the Tenth Schedule: parliamentary defection becomes disqualification.

61st Amendment 1988, s.2 -> Article 326: voting age reduced from 21 to 18, enlarging the Lok Sabha electorate.

84th Amendment 2001, ss.3-7 -> Article 81(3) proviso, Article 82 third proviso and linked Articles 170/330/332: extended the freeze and enabled 1991-based limited readjustment.

87th Amendment 2003, ss.2-5 -> Article 81(3) proviso cl.(ii), Article 82 third proviso cl.(ii), Article 170(2)/(3) Explanations and Article 330 Explanation: 1991 replaced by 2001.

104th Amendment 2019, s.2 -> Article 334: cl.(a) SC/ST reservation extended to eighty years; cl.(b) Anglo-Indian special representation retained only for seventy years and ceased.

106th Amendment 2023, ss.2-5 -> Article 239AA(2)(ba)-(bc) plus Articles 330A/332A/334A: one-third women's reservation, including SC/ST sub-reservation, after the statutory trigger.

Kuldip Nayar (2006) -> upheld RS open ballot and removal of State-domicile requirement.

Kihoto Hollohan (1992) -> Speaker's Tenth Schedule decision subject to judicial review.

Lily Thomas (2013) -> invalidated RPA s.8(4) sitting-member conviction shield.

Raja Ram Pal (2007) -> expulsion power exists, but privilege action is reviewable for substantive illegality.

Sita Soren (2024) -> bribery for speech/vote receives no legislative immunity; overrules PV Narasimha Rao on that point.

Roger Mathew (2019) -> Money Bill certification not wholly immune; broader Article 110 issue referred to larger Bench.

D.C. Wadhwa (1987) / Krishna Kumar Singh (2017) -> routine ordinance repromulgation is constitutionally impermissible.

ASCII MASTER FLOW - PANEL 11/12: Current control, traps, ethics and reform

106th Amendment -> commenced 16 April 2026; reservation still non-operational under Article 334A sequence.

Census 2027 -> notified; publication date of relevant figures and delimitation date remain unknown.

2026 delimitation-linked Bills -> introduced, constitutional amendment defeated 17 April 2026; proposals never became law.

Roger Mathew larger-Bench Article 110 issue -> no final official judgment located by 7 September 2026.

TRAPS:

- President part of Parliament, not House member.
- RS State seats unequal; RS permanent, members not permanent.
- Article 85 has no three-session or sitting-day minimum.
- Speaker continues after dissolution; no constitutional party-resignation duty.
- Money Bill != every Finance Bill; Appropriation != taxation.
- charged expenditure discussable, not voted.
- joint sitting excludes Money and amendment Bills.
- Article 122 irregularity shield != immunity from substantive review.

REFORM:

minimum sitting calendar + default committee referral + protected Question Hour
+ reasoned/timely presiding rulings + narrower survival whip
+ pre-legislative consultation + post-legislative review + research support.

ASCII MASTER FLOW - PANEL 12/12: PYQ routes, answer spine and qualified verdict

- 1 DEFINE -> Article 79 tripartite, bicameral and constitutionally limited institution.
- 2 CLASSIFY SOURCE -> text / statute / House rule / convention / judgment / dated practice.
- 3 MAP MECHANISM -> representation -> deliberation -> legislation/supply -> scrutiny -> accountability.
- 4 NAME EVIDENCE -> exact Article + committee/case/amendment + one-line effect.
- 5 EVALUATE -> formal capacity versus political use; popular mandate versus federal revision.
- 6 QUALIFY -> procedure autonomy does not erase constitutional review; stability does not justify deliberative bypass.
- 7 REFORM -> target the diagnosed mechanism, not generic 'strengthening'.

VERDICT:

Parliament remains constitutionally powerful but never sovereign; democratic authority becomes legitimate when popular choice, federal revision, financial consent, detailed scrutiny and constitutional limits operate together.